



Council

An Ordinary Meeting of Lismore City Council will be held at the Council Chambers on Tuesday 9 August 2022 at 6.00pm

Members of Council are requested to attend.

Lismore City Council acknowledges the people of the Bundjalung nation, traditional custodians of the land on which we meet.

John Walker
General Manager

2 August 2022



ETHICAL DECISION MAKING AND CONFLICTS OF INTEREST

A guiding checklist for councillors, staff and community committees

Ethical decision making

- Is the decision or conduct legal?
- Is it consistent with Government policy, Council's objectives and Code of Conduct?
- What will the outcome be for you, your colleagues, the Council, anyone else?
- Does it raise a conflict of interest?
- Do you stand to gain personally at public expense?
- Can the decision be justified in terms of public interest?
- Would it withstand public scrutiny?

Conflict of interest

A conflict of interest is a clash between private interest and public duty. There are two types of conflict:

- Pecuniary – an interest that you have in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to yourself or another person or entity defined in part 4 of the Lismore City Council Code of Conduct with whom you are associated.
- Non-pecuniary – a private or personal interest that you have that does not amount to a pecuniary interest as defined in the Lismore City Council Code of Conduct. These commonly arise out of family or personal relationships, or out of involvement in sporting, social, religious or other cultural groups and associations, and may include an interest of a financial nature.

The test for conflict of interest

- Is it likely I could be influenced by personal interest in carrying out my public duty?
- Would a fair and reasonable person believe I could be so influenced?
- Conflict of interest is closely tied to the layperson's definition of "corruption" – using public office for private gain.
- Important to consider public perceptions of whether you have a conflict of interest.

Identifying problems

- Do I have private interests affected by a matter I am officially involved in?
- Is my official role one of influence or perceived influence over the matter?
- Do my private interests' conflict with my official role?

Disclosure and participation in meetings

- A Councillor or a member of a Council Committee who has a pecuniary interest in any matter with which the Council is concerned and who is present at a meeting of the Council or Committee at which the matter is being considered must disclose the nature of the interest to the meeting as soon as practicable.
- The Councillor or member must not be present at, or in sight of, the meeting of the Council or Committee:
 - a. at any time during which the matter is being considered or discussed by the Council or Committee, or
 - b. at any time during which the Council or Committee is voting on any question in relation to the matter.

No Knowledge - a person does not breach this clause if the person did not know and could not reasonably be expected to have known that the matter under consideration at the meeting was a matter in which he or she had a pecuniary interest.

Non-pecuniary Interests - Must be disclosed in meetings.

There are a broad range of options available for managing conflicts & the option chosen will depend on an assessment of the circumstances of the matter, the nature of the interest and the significance of the issue being dealt with. Non-pecuniary conflicts of interests must be dealt with in at least one of the following ways:

- It may be appropriate that no action be taken where the potential for conflict is minimal. However, Councillors should consider providing an explanation of why they consider a conflict does not exist.
- Limit involvement if practical (eg. Participate in discussion but not in decision making or vice versa). Care needs to be taken when exercising this option.
- Remove the source of the conflict (eg. Relinquishing or divesting the personal interest that creates the conflict)
- Have no involvement by absenting yourself from and not taking part in any debate or voting on the issue as of the provisions in the Code of Conduct (particularly if you have a significant non-pecuniary interest)

Whilst seeking advice is generally useful, the ultimate decision rests with the person concerned.

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Notice of Rescission Motions



Notice of Rescission

Councillors Vanessa Ekins; Darlene Cook; Adam Guise have given notice of their intention to move the following rescission motion:

That Council rescind its decision on Item 16.1 B from 12 July 2022 meeting.

Councillor Comment

We intend to move at the 9 August 2022 Ordinary Council meeting a rescission motion on Item 16.1 B Funding agreement with Department of Planning, Industry and Environment (Office of Local Government division) for Capacity and Capability Grant

16.1 Documents for Signing

1/22 On submission to the meeting the motion was **RESOLVED** that Council note the following documents be executed as negotiated under delegated authority by the General Manager:

Item B **Funding agreement** with Department of Planning, Industry and Environment (Office of Local Government division) for Capacity and Capability Grant

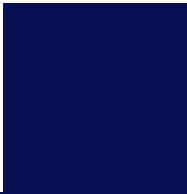
(Councillors Gordon/Bing) (BP22/464)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen and Krieg

Voting against: Councillors Cook, Ekins, Guise and Rob

There are no attachments for this report. **TRIM Record No:** BP22/488:EF19/25-4

Notice of Motions



Notice of Motion

Councillor Adam Guise has given notice of intention to move:

That Council acknowledges flood impacted ratepayers' desire for house relocations, buy backs and land swaps, and the certainty this would provide them, particularly to the most vulnerable in our community.

Councillor Comment

Outcome Sought

Thousands of residents and ratepayers have been impacted by the devastating February and March floods. Many of these people are uncertain as to what the future holds for them living and working on the floodplain. Many have expressed the desire to relocate their homes to higher ground, and would be interested in schemes to relocate, land swap or have their land acquired on just terms. Council should support these people, particularly the most vulnerable, in order for them to relocate to higher ground.

Cost of Implementing

Nil

Funding Source

Not applicable

Staff Consulted

General Manager and senior staff through briefings and meetings

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/454:EF19/25-4

Notice of Motion

Councillor Adam Guise has given notice of intention to move:

That Council writes to the Northern Rivers Reconstruction Corporation seeking a meeting and workshop with councillors to discuss the Corporation's role, strategic direction and priorities.

Councillor Comment

Outcome Sought

The Northern Rivers Reconstruction Corporation comes into existence 1 July 2022. This important body will oversee the reconstruction of the Northern Rivers since being impacted by the devastating February and March 2022 floods. It is importance that Lismore council has a seat at the table and that councillors understand the role of the Corporation and provide input into its strategic direction.

Cost of Implementing

Nil

Funding Source

Not applicable

Staff Consulted

Not applicable

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/455:EF19/25-4

Notice of Motion

Councillor Adam Guise has given notice of intention to move:

That Council writes to the Federal Government, Prime Minister and relevant Ministers denouncing the extradition of Julian Assange from the UK and urges the Prime Minister to make a public statement denouncing the extradition.

Councillor Comment

Outcome Sought

Julian Assange has been imprisoned since 2010. He is facing a life sentence in the USA for exposing war crimes. His extradition and potential sentence is a grave threat to public interest journalism and incompatible with the human rights that Australians hold. The power of a public statement from Julian Assange's home country cannot be understated.

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Not required

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/456:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That to:

1. publicly portray more accurately who the governing body of council is
2. improve compliance with the Code of Meeting Practice
3. reduce the risk of Code of Conduct issues arising

staff no longer sit at the council table during Council meetings and the General Manager only speakers, either directly or through the General Manager's nominated staff member, when called upon by the Chairperson.

Councillor Comment

Outcome Sought

Council meetings are meetings of councillors, not councillors and senior staff. The Code of Meeting Practice is silent on staff sitting at the council table. However, the Code of Meeting Practice explicitly prohibits the General Manager from speaking, either directly or through a staff member nominated by the General Manager, when the General Manager is not called upon by the Chairperson. Unless otherwise permitted, the Code of Meeting Practice also prohibits anyone from speaking when someone else is speaking.

Removing staff from the council table will better reflect the hierarchy of council to the community at large, it will improve compliance with the Code of Meeting Practice and reduce the risk of non-compliance.

Cost of Implementing

Not applicable

Funding Source

Not required

Staff Consulted

None

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/518:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That Council:

1. reduce the 2022/23 water consumption charge from \$4.56 to \$4.44
2. give public notice of the charge for at least 28 days

Councillor Comment

Outcome Sought

Since the February flood, council promised rate relief to ratepayers in various forms, including water consumption charges. To date, I struggle to see any such rate relief provided by Council.

Following being told by staff that Council could not prevent the water consumption charge from increasing during the June Council meeting after the public notice period, this motion is required to remedy the situation.

Cost of Implementing

To be determined

Funding Source

To be determined

Staff Consulted

Not applicable

Staff Comment

Manager Finance

The estimated impact on revenues for Lismore Water is \$435,000 (\$280,000 consumption charges and \$155,000 in availability charges).

Rate and charges relief:

Lismore City Council has provided the following relief to affected ratepayers either directly or through successful lobbying of Government bodies. This is considered the most appropriate course of Council as it provides a more targeted response to those affected ratepayers rather than an across board reduction to charges.

- **Rate relief**

As a result of lobbying from the Council the state government has paid the general land rates of ratepayers who have been impacted by the natural disaster and who meet the relevant criteria.

Approximately \$6.2 million has been received from Service NSW and has been applied to the appropriate 2022/23 rates notices, due to be issued 31 July 2022. This equates to an average of \$2,150 per eligible ratepayer.

- **Water Charges**

Council has processed water charges credits to the value of \$295,000 for approximately 1,600 properties. This equates to an average of \$184 per property.

This is in accordance with Council resolution -

Notice of Motion

2. *the interest rate on overdue rates be set at zero (0%) from 1 March 2022 until 30 June 2022*
3. *water charges – accounts be prepared for affected properties based on previous daily usage (BP22/214)*

- **Proposed - Rates & Charges Hardship Policy**

Under the proposed Rates & Charges Hardship Policy ratepayers can seek further assistance either through payment arrangements, review of or reduction in interest.

Other considerations:

Council should also consider the strategic considerations of Lismore Water and the need address its future Capital works program.

- **Future Capital works program**

Lismore Water is estimated to have approximately \$15.6 million in cash reserves as of 30 June 2022, however there is a large amount of capital works to undertake over the next few years (\$9 million in 2022/23, \$7 million 2023/24).

In addition, Lismore Water has a significant backlog of works to be undertaken to bring the network up to a satisfactory standard (approximately \$24.2 million as per Financial Reports 2021).

From a strategic view point it is important that Lismore Water hold sufficient reserves to minimise the impact of these works on future generations.

General Manager

For all the reasons stated above this notice of motion is not supported.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/519:EF19/25-4

Notice of Motion

Councillor Adam Guise has given notice of intention to move:

That Council stream briefings.

Councillor Comment

Outcome Sought

That briefings are streamed live to our website and Facebook

Cost of Implementing

Nil or negligible considering we already stream meetings

Funding Source

General Manager/Governance/OLG \$20m

Staff Consulted

None

Staff Comment

Acting Manager Technology & Innovation

The extension to stream briefings is possible.

Staff would need to be present to ensure no technology issues occur, which would incur staff overtime costs.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/522:EF19/25-4

Questions with Notice



Questions with Notice

Councillor Big Rob has put the following question with notice:

Since September 2021, can the General Manager please advise the total number of code of conduct complaints received each month, how many have been referred to a conduct reviewer, how many have been finalised, how many resulted in adverse findings, and the estimated cost to date of dealing with the complaints?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/514:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Can the General Manager please advise how many and what percentage of women currently occupy permanent roles in the top three levels of management, why there is such a wide gender gap at the top three levels, and how exactly Council is effectively implementing our commitment to provide effective management and responsible governance by improving gender equality in Council's workforce?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/515:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Can the General Manager please advise if any councillors met with staff from the Office of Local Government, either individually or in small groups, without all councillors being advised of, invited to, or otherwise included in any such meetings, prior to the July council meeting where a \$20 million funding agreement was to be considered?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/516:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

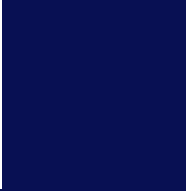
Can the General Manager please confirm whether the State government has now considered the East Lismore Golf Course as a potential flood recovery site and determined it is not suitable, and advise council when this project will be put before council so council can finally publicly have their say and vote on it?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/517:EF19/25-4

Matters Arising



Matters Arising

Subject	Classification as Operational Land - 15 Industry Drive, East Lismore
TRIM Record No	BP22/283:CDR22/544
Prepared by	Property Officer
Reason	To classify newly acquired land as Operational under Section 31 of the Local Government Act, 1993.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure well-managed buildings, land and property assets.

Executive Summary

At its ordinary meeting of 22 March 2022 Council resolved to acquire land from Property NSW with the intention of leasing the property for use by the Lismore Men and Community Shed. The sale was completed and Council took possession of the property on 16 June 2022.

In accordance with the *Local Government Act 1993* all Council land must be classified as Operational or Community land. The purpose of this report is to resolve to classify the land at 15 Industry Drive, East Lismore (being Lot 9 in DP 230347) as Operational land.

Classification of land is a statutory requirement and Council is required to make appropriate classifications based on the circumstances of the acquisition. This land has been acquired for use by the Lismore Men and Community Shed. The classification of the land as Operational will ensure Council can use the land for the purpose for which it was acquired.

The proposal was advertised in *Local Matters* on 16 May 2022. Two submissions were received during the 28-day notice period, with both in support of the proposal.

Recommendation

Pursuant to Section 31 of the *Local Government Act 1993*, the parcel of land being Lot 9 in DP 230347, known as 15 Industry Drive, East Lismore, be classified as Operational land.

Background

On 22 March 2022 Council considered a report relating to the acquisition of land at 15 Industry Drive, East Lismore, from Property NSW with the intention of leasing the property for use by the Lismore Men and Community Shed.

Council resolved that:

1. Council acknowledges the Lismore Men and Community Shed provide valuable community benefit, however has been struggling to find a secure and suitable location to base its operations.
2. agrees to facilitate the process of acquiring real property at 15 Industry Drive, East Lismore (being Lot 9 in DP 230347) from Government Property NSW with the intention of leasing the property for use by the Lismore Men and Community Shed.
3. notes the land will be transferred under Government Property NSW *Community Use Policy*, which allows land to be transferred for a nominal value, subject to a 15-year community use restriction on title.
4. advertise its intention to classify the land as Operational land and a report be brought back to Council within three months of acquiring the land to formally adopt the suitable land classification.
5. delegate authority to the General Manager to finalise the terms of the Contract for sale and purchase of land, the subsequent lease to the Lismore Men and Community Shed and sign all documents necessary to give effect to this resolution.
6. vary its *Leasing of Council Properties Policy* in this instance and enter into direct negotiations with the Lismore Men and Community Shed for the occupation of 15 Industry Drive, East Lismore (being Lot 9 in DP 230347).
7. endorse the use of the Council seal on any documents necessary to give effect to this resolution.

The sale process was concluded on 16 June 2022 and Council is now the owner of the property.

Classification of Public Land

The *Local Government Act 1993* (LG Act) defines public land as any land vested in or under Council control and is managed under the LG Act based on its classification. Classification of public land may occur either by an amendment to the Lismore Local Environment Plan (LEP) or by resolution of Council when first acquired. Councils are encouraged to classify land by Council resolution where suitable.

All public land must be classified by Council as either “Community” or “Operational” land (ss.25-26 LG Act). The purpose of classification is to identify clearly that land which is made available for general use and access by the public because of its use or special features (**Community**) and that land which is not intended for public access and use and has no special restrictions other than those that may apply to any piece of land (**Operational**). As mentioned, Operational land is not generally open to the public but may be used for public purposes such as works depots, sheds or garages. How public land is classified determines the ease or difficulty a Council can have in dealing with the public land and providing flexibility for how the land is managed. It also provides for transparency in Council’s strategic asset management.

Section 31 of the LG Act stipulates any land acquired by Council that is not classified before it is acquired or within three months after it is acquired, will default to Community land. Any future reclassification would then require an amendment to the LEP. By classifying the land as Operational now, Council will save the costs and delays involved with including this land in a LEP amendment. If in the future there was a desire for the land to be reclassified to Community, it then simply requires a Council resolution under Section 33 of the LG Act, rather than a lengthy LEP amendment process.

The land at 15 Industry Drive was acquired for the purpose of leasing the land exclusively to the Lismore Men and Community Shed. Classification of the land as Operational will ensure that Council can use the land for this purpose. This land is not open to the public for general use and access, and therefore a Community land classification is not appropriate under the LG Act.

Comments

Finance

The recommendation as printed is supported.

Lismore City Council

Meeting held 9 August 2022 - Classification as Operational Land - 15 Industry Drive, East Lismore

Other staff comments

Not required.

Public consultation

Council has provided public notice of its intention to classify the subject land as Operational, pursuant to Sections 31 and 34 of the LG Act. The proposal was advertised in *Local Matters* on 16 May 2022. There were two submissions received during the 28-day notice period; both were in support of the proposal.

Conclusion

The land was acquired for use by the Lismore Men and Community Shed, serving an operational function. As such, classification of the land as Operational is the appropriate classification under the LG Act and will ensure that Council can use the land for the purpose for which it was acquired.

Attachment/s

There are no attachments for this report.

Matters Arising

Subject	Classification as Operational Land - 420 Oliver Avenue, Goonellabah
TRIM Record No	BP22/502:CDR21/266
Prepared by	Property Officer
Reason	To classify newly acquired land as Operational under Section 31 of the Local Government Act, 1993.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure well-managed buildings, land and property assets.

Executive Summary

At its ordinary meeting of 12 October 2021 Council resolved to acquire land from the owner of 245 Oliver Avenue, Goonellabah, with the intention of undertaking compensatory planting to meet the environmental compensatory requirements in the REF for the Lismore Employment Lands project. The acquisition was negotiated with the landowner. The acquired land, which was subdivided off 245 Oliver Avenue, is now known as 420 Oliver Avenue (being Lot 2, DP 1285218). The sale was completed and Council took possession of the property on 19 July 2022.

In accordance with the *Local Government Act 1993* all Council land must be classified as Operational or Community land. The purpose of this report is to resolve to classify the land at 420 Oliver Avenue (being Lot 2, DP 1285218) as Operational land.

Classification of land is a statutory requirement and Council is required to make appropriate classifications based on the circumstances of the acquisition. This land has been acquired with the intention of undertaking compensatory planting to meet the environmental compensatory requirements in the REF for the Lismore Employment Lands project. Classification of the land as Operational will ensure Council can use the land for the purpose for which it was acquired, dedicate portions as road and undertake minor boundary adjustments with the adjoining industrial zoned land.

The proposal was advertised in *Local Matters* on 13 June 2022. No submissions were received during the 28-day notice period.

Recommendation

That pursuant to Section 31 of the *Local Government Act 1993* the parcel of land being Lot 2 in DP 1285218, known as 420 Oliver Avenue, Goonellabah, be classified as Operational land.

Background

On 12 October 2021 Council considered a report relating to the acquisition of land for Lismore Employment Lands Mandatory Environmental Compensatory Works. An outcome of the Review of Environmental Factors (REF) for the Lismore Employment Lands Project was to provide compensatory planting for the trees proposed to be removed.

This task is broken up into two key categories:

1. Establishment of compensatory Koala habitat to offset the Koala food trees to be removed (approx. 200 trees); and
2. Establishment of compensatory riparian rainforest habitat to offset all other trees being removed (approx. 300 trees).

The rainforest component can be simply accommodated within existing Council owned land adjacent to the project site and Tucki Tucki Creek (east of Holland Street). However, this same land has been deemed unsuitable for the provision of Koala habitat by our third-party ecologist for the following reasons:

- The NSW Koala Habitat Revegetation Guidelines specify 8m-10m spacing between trees, which means approximately 20,000m² of land is required.
- The creation of an eucalypt forest in close proximity to existing industrial and residential land would create a future bushfire hazard.
- The extensive requirement to control/ remove existing weeds (camphor forest) in a short timeframe has other unintended environmental consequences. It also results in a higher ongoing maintenance effort/ cost, beyond the grant funding horizon (to be funded by Council).

The report recommended Council endorse Option 1 outlined in the report for the acquisition of land at 245 Oliver Avenue. This land has been deemed as the most advantageous to achieve the desired environmental outcomes and has the added benefit of providing Council a future strategic site for similar compensatory planting requirements arising from projects.

Council resolved that:

- "1. Council note the mandatory environmental compensatory requirements in the REF for the Lismore Employment Lands project.*
- 2. Council endorse Option 1 as outlined in the report as the preferred option to meet the environmental compensatory requirements in the REF for the Lismore Employment Lands project.*
- 3. The General Manager be delegated authority to negotiate the acquisition of the identified portion of land in Option 1 and sign all documents necessary to transfer the land to Lismore City Council."*

The acquisition was negotiated with the landowner and subdivided off 245 Oliver Avenue and is now known as 420 Oliver Avenue (Lot 2, DP 1285218). The sale process concluded on 19 July 2022 and Council is now the owner of the property.

Classification of Public Land

The *Local Government Act 1993* (LG Act) defines public land as any land vested in or under Council control and is managed under the LG Act based on its classification. Classification of public land may occur either by an amendment to the Lismore Local Environment Plan (LEP) or by resolution of Council when first acquired. Councils are encouraged to classify land by Council resolution where suitable.

All public land must be classified by Council as either "Community" or "Operational" land (ss.25-26 LG Act). The purpose of classification is to identify clearly that land which is made available for general use and access by the public because of its use or special features (**Community**) and that land which is not intended for public access and use and has no special restrictions other than those that may apply to any piece of land (**Operational**). As mentioned, Operational land is not generally open to the public but may be used for public purposes such as works depots, sheds or garages. How public land is classified determines the ease or difficulty a Council can have in dealing with the public land and providing flexibility for how the land is managed. It also provides for transparency in Council's strategic asset management.

Section 31 of the LG Act stipulates any land acquired by Council that is not classified before it is acquired or within three months after it is acquired, will default to Community land. Any future reclassification would then require an amendment to the LEP. By classifying the land as Operational land now, Council will save

the costs and delays involved with including this land in a LEP amendment. If in the future there was a desire for the land to be reclassified to Community land, it then simply requires a Council resolution under Section 33 of the LG Act, rather than a lengthy LEP amendment process.

The land at 240 Oliver Avenue is a strategic Council landholding that will serve multiple purposes in the near future including:

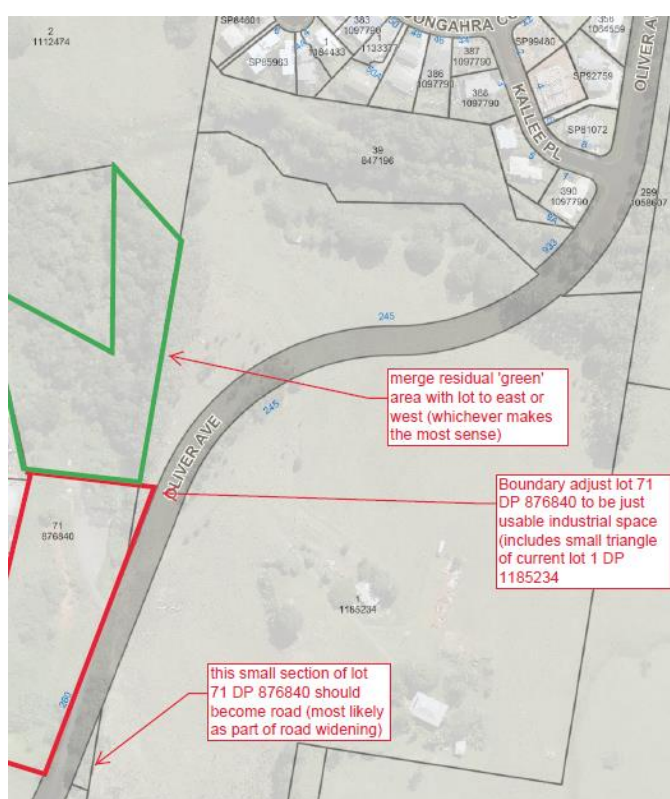
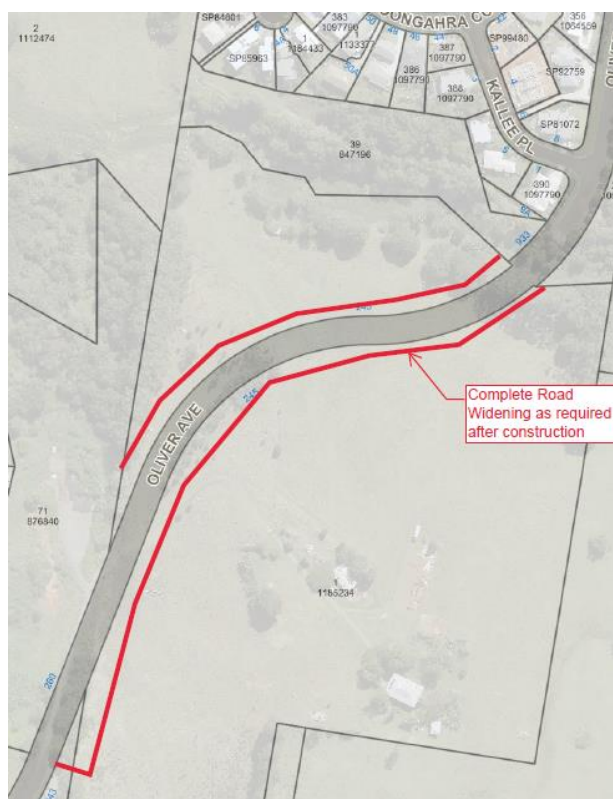
1. Road widening to accommodate the Oliver Avenue link road under construction
2. Boundary adjustments with adjoining Council owned land, specifically the industrial zoned land at 260 Oliver Avenue
3. Compensatory planting required under the Employment Lands REF
4. Potential biodiversity offset planting site for nearby development sites.

If the land were classified as Community land, Council would be restricted in its ability to use the land for the intended purposes without first:

- a) Developing a comprehensive plan of management authorising these uses
- b) Undertaking extensive community consultation to adopt the plan of management
- c) Dealing with submissions and potentially seeking Ministerial approval
- d) Undertaking further public consultation before granting any interests in the land and referring certain objections to the Minister.

For these reasons the land should be appropriately classified as Operational land. Council is always at liberty to reclassify the land to Community land in the future after the Employment Lands Project is completed and consideration given to a Plan of Management of the land in the broader context of Tucki Tucki Creek.

The following diagrams provide a high level illustration of the road widening and boundary adjustments referred to.



Comments

Finance

The recommendation as printed is supported.

Lismore City Council

Meeting held 9 August 2022 - Classification as Operational Land - 420 Oliver Avenue, Goonellabah

Public consultation

Council has provided public notice of its intention to classify the subject land as Operational, pursuant to Sections 31 and 34 of the *Local Government Act 1993*. The proposal was advertised in *Local Matters* on 13 June 2022. There were no submissions received during the 28-day notice period.

Conclusion

The land was acquired for strategic operational purposes including compensatory planting to meet the environmental compensatory requirements in the REF for the Lismore Employment Lands project, road widening for the Oliver Avenue link road and minor boundary adjustments. As such, classification of the land as Operational is the appropriate classification under the LG Act and will ensure that Council can use the land for the purpose for which it was acquired.

Attachment/s

There are no attachments for this report.

Matters Arising

Subject	Adoption of Local Street Guide Outdoor Dining Policy
TRIM Record No	BP22/201:EF20/307
Prepared by	Property Officer
Reason	To report the public exhibition of the Local Street Guide Outdoor Dining Policy and recommend adoption of the Policy.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure well-managed buildings, land and property assets.

Executive Summary

At its November 2020 Council meeting, Council resolved to adopt the NSW Outdoor Dining Policy and accompanying User Guide. As multiple Councils have adopted this state policy, a draft Local Street Guide Outdoor Dining Policy was prepared and subsequently placed on public exhibition. This report recommends that Council adopt the attached Local Street Guide as publicly exhibited.

Recommendation

That:

1. the submission be received and noted.
2. Council adopt the Local Street Guide Outdoor Dining Policy attached to this report.

Background

The Council resolved at its November 2020 meeting that:

1. *Council note the NSW Outdoor Dining Policy (the Policy) established by the NSW Small Business Commission.*
2. *Council adopt the Policy and accompanying User Guide for the entire local government area.*
3. *Council waive the Fees and Charges for current and new outdoor dining approvals.*
4. *The Policy shall replace Lismore City Council's Outdoor Dining Policy (Policy Number 5.2.24), which was adopted on 10 February 2015.*

Both the [NSW Outdoor Dining Policy](#) and accompanying [NSW Outdoor Dining User Guide](#) make regular reference asking applicants to check whether a Local Street Guide has been prepared by their local Council and to ensure their outdoor dining application meets the specific Council requirements.

Local Street Guides are the mechanism where Councils can apply specific requirements to a licence that are not dealt with in the broader policy document. In preparing the NSW Outdoor Dining Policy, the NSW Small Business Commission acknowledged that there may be unique or specific circumstances particular to a local Council that should apply to any licence issued for outdoor dining.

As multiple Councils have adopted this state Policy, a draft Local Street Guide Outdoor Dining Policy (Local Street Guide) has been prepared to provide an opportunity for Council to outline its unique considerations specific to the outdoor dining operation in its local government area.

The draft Local Street Guide contains content from Chapter 3 (titled 'Location and Design') of Council's former [Lismore City Council's Outdoor Dining Policy \(Policy Number 5.2.24\)](#). As noted at Item 4 in Council's November 2020 resolution (referenced above), Council's *Outdoor Dining Policy (Policy Number 5.2.24)* was replaced by the State Policy.

The Local Street Guide has been reviewed by relevant staff in both Council's Built Environment area (including Council's Senior Public Health Officer, Regulatory Service Compliance Coordinator, and Assistant Development Assessment Officer), as well as Council's Assets Section (including Property Officer and Property Services Manager, Parks Coordinator, Design Services Engineer, Assets Engineer and Assets Manager) and has been given its full support.

Comments

Finance

Not required.

Public consultation

Both the Traffic Advisory Committee and Council's Disability Access and Inclusion Advisory Group were initially consulted when the Local Street Guide was being drafted. Once finalised, the draft Local Street Guide was placed on public exhibition for a minimum of 28 days. In response, two submissions were received whereby the first submission was a 'test' conducted by Council staff and the second submission from a local community member has been attached for councillors' due consideration.

Conclusion

The Local Street Guide Outdoor Dining Policy identifies Council's unique considerations and addresses specific matters to our operation of outdoor dining in our local government area. This report recommends that Council adopt the attached Policy as publicly exhibited.

Attachment/s

1. [Local Street Guide Outdoor Dining Policy](#)
2. [Survey Responses Report](#)

Local Street Guide - Lismore City Council

Bringing the Indoor out

A model policy for outdoor dining

This Local Street Guide provides unique considerations specific to Lismore City Council to reflect the operation of outdoor dining. Before making an application, businesses should read the [Outdoor Dining Policy 2019](#) and the [Outdoor Dining User Guide 2019](#).

1. LOCATION AND DESIGN

This section details matters to be considered and addressed when preparing an outdoor dining application:

- The outdoor dining area must be located directly adjacent to the ground floor of the principal restaurant or café, which must have development approval and be registered with Lismore City Council as a food premise.
- Council shall retain discretion on a case-by-case basis as to whether or not any proposed site is appropriate.
- Not all footpaths are suitable for use as outdoor dining areas, or may not have sufficient width to meet pedestrian access/ vehicle access, sightlines, etc. Where a suitable pedestrian access corridor is unable to be provided, outdoor dining will not be permitted.

1.1 Lismore City Council's CBD Style Guide

A CBD Style Guide will shortly be available for viewing on Council's website. The Style Guide provides for consistent use of products, materials, textures, plantings and themes (including items such as seating, bins, bollards and floor surfaces).

If your outdoor dining area is located within Lismore CBD it is essential that you check you are fulfilling the requirements of the CBD Style Guide and ensure your outdoor dining area makes a positive contribution to the amenity of the surrounding area and streetscape.

1.2 Clearance distances

- An outdoor dining area must not compromise pedestrian and vehicle flow; convenience and safety of patrons and the public; existing streetscape elements and amenity.
- Each outdoor dining area will be subject to unique local conditions and setback requirements. Refer to the table on page 6 of the [Outdoor Dining User Guide 2019](#) that outlines minimum clearances.
- Where sight distances for vehicle traffic and pedestrians are favourable, minor modifications of the nominated clearances may be approved.

Local Street Guide - Lismore City Council

Bringing the Indoor out

A model policy for outdoor dining

1.3 Accessibility

Access and usability for all people must be considered when determining whether a site and layout is suitable for outdoor dining. This includes a continuous, accessible path of travel to or within the area to provide access to all services and facilities. There must not be any hazard or impediment which prevents safe negotiation by any person.

Any item located within the outdoor dining area must:

- not obstruct nor protrude into the accessible path of travel;
- not be placed along the shopfront (this includes chairs and A-Frame signs);
- be of a colour that provides a contrast with their background; and
- be designed so that it is accessible by all.

Other requirements:

- materials used for floor areas shall be slip resistant;
- pathways within outdoor dining areas shall have clear sightlines;
- the area be well lit and colour contrasted where appropriate to assist people with vision impairment; and
- outdoor dining areas shall be clearly defined and be separated by barriers which can be safely negotiated by person with vision impairment.

It is the responsibility of the licensee to comply with the requirements of the *Disability Discrimination Act 1992* and to investigate their own responsibilities under the Act.

1.4 Furniture, shade umbrellas and other items

This section provides guidance on the design requirements for both portable and fixed furniture associated with outdoor dining. Furniture includes tables, chairs, umbrellas and shade structures, pots and pot plants, troughs, barricades, heaters, cooling devices, advertising items and any other portable element in the outdoor dining area.

- Outdoor furniture is to add to the amenity of the streetscape. Furniture style must be practical, robust and meet Australian Standards.
- All furniture must be located within the licensed area and must not at any time extend beyond the boundaries. No item is to be placed against any shopfront.
- All furniture must be secured appropriately and safely and not pose an obstacle for pedestrians or traffic.

Local Street Guide - Lismore City Council

Bringing the Indoor out

A model policy for outdoor dining

- Shade umbrellas shall be an appropriate style, height and design to ensure public safety (no sharp edges or points). They must be secure during trading hours and shall not be utilised during extreme windy weather. Umbrellas are not to protrude past the licensed area (i.e. not overhang the footpath and/or car parking space area).
- Water features are not permitted.
- All portable furniture is to be removed in extreme windy conditions.

1.5 Removal of trees and public infrastructure

No tree is to be removed from the streetscape to establish or increase an outdoor dining area. Council-owned infrastructure, such as litter bins or seating, may be relocated with Council's written agreement. The cost of such relocation is at the applicant's cost. Any relocation of public seating is to be made as close as possible to the original location, with shaded areas being the preferred location. No reduction of public seating is to occur.

1.6 Toilet facilities

Toilet facilities are to be made available to patrons in accordance with the requirements of the *Building Code of Australia*. Toilet facilities are required to be available in the building occupied by the principal restaurant premises where alcohol is served or if the total seating provided (indoors and outdoors) exceeds 19 seats.

1.7 Business identification signage

One (1) portable A-frame business identification sign is permitted within the designated outdoor dining area only, and is not permitted on public land outside the designated licensed area.

1.8 Delineation of boundaries

Walls, safety bollards, suitable barriers or planter boxes are required to separate an outdoor dining area from the kerb to prevent pedestrians from entering and exiting the outdoor dining area directly to the carriageway. Installation of such items is at the applicant's cost and must be described in the Outdoor Dining Application for approval.

All boundaries of the licensed area must be defined by either walls, fixed bollards, barriers, markers, planter boxes or other landscaping where appropriate. The establishment of such items, as well as fasteners into the pavement surface is also subject to written approval from Council's Roads Engineer.

Local Street Guide - Lismore City Council

Bringing the Indoor out

A model policy for outdoor dining

Barriers must be maintained at all times to clearly delineate the licensed area. Such barriers, other than on the kerb side, may be framed canvas or fabric free-standing barriers temporarily secured or affixed to the pavement.

Metallic discs (engraved "Outdoor Dining") shall be inserted into the pavement by Council to delineate the outdoor dining area where no other permanent element of separation exists.

1.9 Entertainment

Quiet entertainment may be permitted within the licensed area for the enjoyment of patrons. Such entertainment shall not interfere with amenity or cause any disturbance or annoyance to adjoining retailers, pedestrians or neighbours. There is to be no amplified music in the licensed area, unless approved in writing by Council. Buskers performing in the licensed area must have a permit to busk.

1.10 Heating and cooling devices

Any heating or cooling devices must be contained wholly within the outdoor dining area and be secured (to ensure stability that it cannot be knocked over). All heating devices shall possess automatic turn off devices in the event of overturning. Free-standing gas heaters must comply with the relevant standard and legislation and be certified by a qualified person. When not in use, heating and cooling devices are to be removed from the outdoor dining area.

1.11 Prohibited items

Unless approved otherwise in writing by Council, the following items are prohibited in an outdoor dining area:

- smorgasbord or self-service facilities;
- unsecured and unprotected heating or cooling devices;
- water features;
- vending and amusement machines;
- deep fryer, BBQ or any other cooking appliance; and
- bains-marie, pie warmer or any other temperature holding device.

Food and drink must not be prepared in the licensed area.

1.12 Provision of utilities

Provision of utilities to and outdoor dining area is the responsibility of the licensee. No extension cords or electricity connections are permitted to the outdoor dining area without the written approval of Council. All such connections must be completed and certified by a qualified electrician.

Local Street Guide - Lismore City Council

Bringing the Indoor out

A model policy for outdoor dining

1.13 Smoke free area

Everyone who visits Lismore has the right to a clean and healthy environment. To preserve this right for the community, "No smoking" signs with the international symbol are required to be provided by the licensee and at all times displayed during operation of the outdoor dining area.

1.14 Permanent structures

Permanent structures are **not** covered in the [Outdoor Dining Policy 2019](#).

Use of permanent structures as part of an outdoor dining operation will incur fees as outlined in Council's adopted [Fees and Charges](#).

The Policy defines Permanent structures as:

Any outdoor structure not intended to be moved around frequently and that would be difficult to move without mechanical or other assistance within a 24-hour period.

Use of permanent structures (including but not limited to barriers, planter boxes, shade structures or an anchoring system), requires separate Council consent. The flowchart annexed as Appendix A provides guidance on Council consent process for permanent structures as outdoor dining operation.

Local Street Guide - Lismore City Council

Bringing the Indoor out

A model policy for outdoor dining

APPENDIX A: APPROVAL OF PERMANENT STRUCTURE FLOWCHART

Applicant notifies Council's Built Environment Section on 02 6625 0500 that it would like to construct a permanent structure for outdoor dining operation

Council determines whether the permanent structure is acceptable and will not create a public risk

If the permanent structure is deemed unacceptable or creates a public risk, the request is refused

If the permanent structure is deemed acceptable and does not create a public risk, the Applicant will firstly need to obtain landowner's consent from Council's Assets Section on 02 6625 0500 before lodging a Section 138 Application for the structure

A Development Application is required for a permanent structure which encroaches out to a blister and/or car parking space (for example a permanent awning)

DEVELOPMENT APPLICATION LODGED

The permanent structure is assessed against the Lismore Local Environmental Plan

If the permanent structure does not comply with the provisions of the LEP, then the Development Application is refused

If the permanent structure complies, Development Consent is granted including a condition requiring the preparation and execution of a License Agreement and lodgement of a Structure Engineers Certificate certifying the works

License Agreement prepared and lodged by Applicant with Council for execution and approval including the provisions of a Structural Engineers Certificate certifying the building works

License issued for the permanent structure over Council's land

Construction Certificate Issued

Online Submission

SURVEY RESPONSE REPORT

30 November 2017 - 27 April 2022

PROJECT NAME:

Public Notice and Exhibition of Draft Local Street Guide Outdoor Dining Policy



Online Submission : Survey Report for 30 November 2017 to 27 April 2022



SURVEY QUESTIONS

Online Submission : Survey Report for 30 November 2017 to 27 April 2022

Q1 Name

Anonymous

Test

3/28/2022 09:40 AM

Anonymous

4/20/2022 05:53 PM

Mandatory Question (2 response(s))**Question type:** Single Line Question**Q2 Address**

Anonymous

test

3/28/2022 09:40 AM

Anonymous

4/20/2022 05:53 PM

Optional question (2 response(s), 0 skipped)**Question type:** Single Line Question**Q3 Phone**

Anonymous

test

3/28/2022 09:40 AM

Anonymous

4/20/2022 05:53 PM

Optional question (2 response(s), 0 skipped)**Question type:** Single Line Question

Online Submission : Survey Report for 30 November 2017 to 27 April 2022

Q4 Email

Anonymous

test

3/28/2022 09:40 AM

Anonymous

4/20/2022 05:53 PM

Optional question (2 response(s), 0 skipped)

Question type: Single Line Question

Q5 Submission

Anonymous

test

3/28/2022 09:40 AM

Anonymous

4/20/2022 05:53 PM

I understand al fresco dining is very trendy at the mo and council is trying to kickstart business but it needs to be balanced very carefully with the public's right of way along public footpaths. You find yourself awkwardly navigating around tables and chairs when you're just trying to walk down the street. We must remember we are privatising a public space. Also some people would prefer to take a sandwich and a drink and sit in a public space rather than in a cafe. Have a thought for them. What happened to those old wooden benches were so comfortable?!

Optional question (2 response(s), 0 skipped)

Question type: Essay Question

Matters Arising

Subject	Councillors Expenses & Facilities Policy
TRIM Record No	BP22/344:EF16/286
Prepared by	Executive Assistant - General Manager and Mayor & Councillors
Reason	Adopt the Councillors Expenses & Facilities Policy following public exhibition
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The *Local Government Act 1993* (s252) requires the adoption of a Councillor Expenses and Facilities Policy within 12 months of the commencement of a new council term.

The current policy was adopted in November 2017 and was based on the Office of Local Government's (OLG) best practice model policy.

As resolved at the May Council meeting the policy was placed public exhibition. During the 28 days no public submissions were received.

Recommendation

That Council adopt the Councillors Expenses & Facilities Policy as attached.

Background

At the May Council meeting it was resolved to place the Councillors Expenses & Facilities Policy on public exhibition before considering adoption of the policy.

Public consultation

Public submissions were open via YourSay from 23 May to 19 June 2022. No submissions were received during the exhibition period.

Conclusion

The policy be adopted as exhibited.

Attachment/s

1. [Councillors Expenses & Facilities Policy](#)



POLICY MANUAL

Policy title:	COUNCILLORS EXPENSES AND FACILITIES
Policy number:	1.2.23
Objective:	Provide for the reasonable and appropriate reimbursement of expenses incurred and standard of facilities provided to Councillors to support them in undertaking their civic duties
Link to community vision/service:	Imagine Lismore Delivery Program, Leadership and participation – Our decisions and actions are open, transparent, effective and in the interest of all
Program Area:	Finance
Policy created: 14/11/06	Council reviewed: 25/8/18, 11/11/08, 10/7/12, 14/6/16, 12/9/17, 14/11/17 & 10/5/2022
Last reviewed by staff: 2/5/2022	TRIM Ref: ED17/23098

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Appendix I – Related legislation, guidance and policies

Appendix II – Definitions

Part A – Introduction

1. Introduction

- 1.1. The provision of expenses and facilities enables councillors to fulfil their civic duties as the elected representatives of Lismore City Council.
- 1.2. The community is entitled to know the extent of expenses paid to councillors, as well as the facilities provided.
- 1.3. The purpose of this policy is to clearly state the facilities and support that are available to councillors to assist them in fulfilling their civic duties.
- 1.4. Council staff are empowered to question or refuse a request for payment from a councillor when it does not accord with this policy.
- 1.5. Expenses and facilities provided by this policy are in addition to fees paid to councillors. The minimum and maximum fees a Council may pay each councillor are set by the Local Government Remuneration Tribunal as per Section 241 of the Act and reviewed annually. Council must adopt its annual fees within this set range.

2. Policy objectives

- 2.1. The objectives of this policy are to:
 - enable the reasonable and appropriate reimbursement of expenses incurred by councillors while undertaking their civic duties
 - enable facilities of a reasonable and appropriate standard to be provided to councillors to support them in undertaking their civic duties
 - ensure accountability and transparency in reimbursement of expenses and provision of facilities to councillors
 - ensure facilities and expenses provided to councillors meet community expectations
 - support a diversity of representation
 - fulfil the Council's statutory responsibilities.

3. Principles

3.1. Council commits to the following principles:

- **Proper conduct:** councillors acting lawfully and honestly, exercising care and diligence in carrying out their functions
- **Reasonable expenses:** providing for councillors to be reimbursed for expenses reasonably incurred as part of their role as councillor
- **Participation and access:** enabling people from diverse backgrounds, underrepresented groups, those in carer roles and those with special needs to serve as a councillor
- **Equity:** there must be equitable access to expenses and facilities for all councillors
- **Appropriate use of resources:** providing clear direction on the appropriate use of Council resources in accordance with legal requirements and community expectations
- **Accountability and transparency:** clearly stating and reporting on the expenses and facilities provided to Councillors.

4. Private or political benefit

- 4.1. Councillors must not obtain private or political benefit from any expense or facility provided under this policy.
- 4.2. Private use of Council equipment and facilities by councillors may occur from time to time. For example, telephoning home to advise that a Council meeting will run later than expected.
- 4.3. Such incidental private use does not require a compensatory payment back to Council.
- 4.4. Councillors should avoid obtaining any greater private benefit from Council than an incidental benefit. Where there are unavoidable circumstances and more substantial private use of Council facilities does occur, councillors must reimburse the Council.
- 4.5. Campaigns for re-election are considered to be a political benefit. The following are examples of what is considered to be a political interest during a re-election campaign:
 - production of election material
 - use of Council resources and equipment for campaigning
 - use of official Council letterhead, publications, websites or services for political benefit
 - fundraising activities of political parties or individuals, including political fundraising events.

Part B – Expenses

5. General expenses

- 5.1. All expenses provided under this policy will be for a purpose specific to the functions of holding civic office. Allowances for general expenses are not permitted under this policy.
- 5.2. Expenses not explicitly addressed in this policy will not be paid or reimbursed.

6. Specific expenses

General travel arrangements and expenses

- 6.1. All travel by councillors should be undertaken using the most direct route and the most practicable and economical mode of transport.

- 6.2. Each councillor may be reimbursed or incur travel expenses while undertaking official business or attending approved conferences, seminars or professional development within NSW. This includes expenses:
- for public transport fares
 - for the use of a private vehicle or hire car
 - for airfares
 - for parking costs for Council and other meetings
 - for tolls
 - by Cabcharge card or equivalent
 - for documented ride-share programs, such as Uber, where tax invoices can be issued.
- 6.3. Allowances for the use of a private vehicle will be reimbursed by kilometre at the rate contained in the Local Government (State) Award.
- 6.4. Councillors seeking to be reimbursed for use of a private vehicle must keep a log book recording the date, distance and purpose of travel being claimed. Copies of the relevant log book contents must be provided with the claim.

Interstate and overseas travel expenses

- 6.5. Council considers travel to South East Queensland (area bounded by Coolangatta / Wallangarra / Toowoomba / Noosa Heads) and the ACT will be considered as general travel. Arrangements and expenses for this travel will be governed by Clauses 6.1-6.4.
- 6.6. In accordance with Section 4, Council will scrutinise the value and need for councillors to undertake interstate and overseas travel. Councillors should avoid interstate and overseas travel unless direct and tangible benefits can be established for the Council and the local community. This includes travel to sister and friendship cities.
- 6.7. Councillors seeking approval for any interstate travel must submit a case to, and obtain the approval of, the General Manager prior to travel.
- 6.8. Councillors seeking approval for any overseas travel must submit a case to, and obtain the approval of, a full Council meeting prior to travel.
- 6.9. The case should include:
- objectives to be achieved in travel, including an explanation of how the travel aligns with current Council priorities and business, the community benefits which will accrue as a result, and its relevance to the exercise of the councillor's civic duties
 - who is to take part in the travel
 - duration and itinerary of travel
 - a detailed budget including a statement of any amounts expected to be reimbursed by the participant/s.
- 6.10. Total overseas travel expenses for councillors must be included in the Council's annual budget.
- 6.11. For interstate journeys by air of less than three hours, the class of air travel is to be economy class.
- 6.12. For interstate journeys by air of more than three hours, the class of air travel may be premium economy.
- 6.13. For international travel, the class of air travel is to be premium economy if available. Otherwise, the class of travel is to be economy.
- 6.14. Bookings for approved air travel are to be made through the General Manager's office.
- 6.15. For air travel that is reimbursed as Council business, councillors will not accrue points from the airline's frequent flyer program. This is considered a private benefit.

Travel expenses not paid by Council

- 6.16. Council will not pay any traffic or parking fines or administrative charges for road toll accounts.

Accommodation and meals

- 6.17. In circumstances where it would introduce undue risk for a councillor to travel to or from official business in the late evening or early morning, costs for accommodation and meals on the night before or after the meeting may be approved by the General Manager. This includes where a meeting finishes later than 9.00pm or starts earlier than 7.00am and the councillor lives more than 50 kilometres from the meeting location.
- 6.18. Council will pay for costs for accommodation and meals while councillors are undertaking approved conferences, seminars or professional development outside the Northern Rivers.
- 6.19. The daily limit for accommodation within Australia is to be consistent with the amount charged at the conference, seminar or professional development venue. If accommodation is not provided, the daily limit is to be no more than the cost for NRMA 4 Star rating or equivalent accommodation in the vicinity. The limit for meals is to be consistent with the Australian Taxation Office's Tax Determination – Reasonable Travel Allowances, as adjusted annually.
- 6.20. The daily limits for accommodation and meal expenses outside Australia are to be determined in advance by the General Manager, being mindful of Clause 6.19.
- 6.21. Councillors will not be reimbursed for alcoholic beverages.

Refreshments for Council related meetings

- 6.22. Appropriate refreshments will be available for Council meetings, Council committee meetings, councillor briefings, approved meetings and engagements, and official Council functions as approved by the General Manager.
- 6.23. As an indicative guide for the standard of refreshments to be provided at council related meetings, the General Manager must be mindful of Clause 6.19.

Conferences, seminars and professional development

- 6.24. Council is committed to ensuring its councillors are up to date with contemporary issues facing Council and the community, and local government in NSW.
- 6.25. In the first year of a new Council term, Council will provide a comprehensive induction program for all councillors which considers any guidelines issued by the Office of Local Government (OLG). The cost of the induction program will be in addition to the recurrent conference, seminar and professional development funding.
- 6.26. Approval to attend a conference, seminar or professional development is subject to a written request to the General Manager. In assessing a councillor request, the General Manager must consider factors including the:
- relevance of the topics and presenters to current Council priorities and business and the exercise of the councillor's civic duties
 - the cost in relation to the total remaining budget.
- 6.27. Council will meet the reasonable cost of registration fees, transportation and accommodation associated with attendance at a conference, seminar or professional development approved by the General Manager. Council will also meet the reasonable cost of meals when they are not included in the registration fees. Accommodation and meals costs not included in the registration fees will be subject to Clauses 6.17-6.21.
- 6.28. At least one councillor shall write or present a report on any conference, seminar or professional development attended by one or more councillors.
- 6.29. Council will set aside a total amount of \$22,000 annually in its budget, indexed annually by the rate peg percentage, to facilitate councillor attendance at conferences, seminars and professional development. This allocation is for all councillors. The General Manager will ensure that access to the budget is distributed equitably.

Expenses for spouse, partner and accompanying persons

- 6.30. Where the Mayor is required to attend a conference or seminar function on behalf of Council, and the nature of the function is such that the Mayor's spouse, partner or accompanying person could reasonably be expected to attend, Council will meet their reasonable expenses e.g. ticket, meal and direct cost of attending the function.
- 6.31. Where the Mayor requests a councillor to attend a conference or seminar function on behalf of Council in their stead, and the nature of the function is such that the councillor's spouse, partner or accompanying person could reasonably be expected to attend, Council will meet their reasonable expenses eg. ticket, meal and direct cost of attending the function.
- 6.32. For attendance at the Local Government NSW Annual Conference official conference dinner, or another relevant local government conference, a councillor's spouse, partner or accompanying person may attend and the Council will meet their reasonable expenses eg. ticket and meal. This is limited to one conference per financial year.
- 6.33. Council will meet the reasonable costs of travel and childcare at conferences, seminars and professional development for a child under 16 where a councillor is the principal carer.

Information and communications technology (ICT) expenses

- 6.34. Council will reimburse councillors for expenses associated with appropriate ICT devices and services up to a limit of \$860 per annum for each councillor. This may include mobile phone and tablet services and data, and home internet costs.
- 6.35. Reimbursements will be made only for communications devices and services used for councillors to undertake their civic duties, such as:
- receiving and reading council business papers
 - relevant phone calls and correspondence
 - diary and appointment management.
- 6.36. Councillors may seek reimbursement for applications on their mobile electronic communication device that are directly related to their duties as a councillor, within the maximum limit.

Special requirement and carer expenses

- 6.37. Council encourages wide participation and interest in civic office. It will seek to ensure Council premises and associated facilities are accessible, including provision for sight or hearing impaired councillors and those with other disabilities.
- 6.38. Transportation provisions outlined in this policy will also assist councillors who may be unable to drive a vehicle.
- 6.39. In addition to the provisions above, the General Manager may authorise the provision of reasonable additional facilities and expenses in order to allow a councillor with a disability to perform their civic duties.
- 6.40. Councillors who are the principal carer of a child or other elderly, disabled and/or sick immediate family member will be entitled to reimbursement of reasonable carer's expenses for attendance at official business, plus reasonable travel from the principal place of residence.
- 6.41. Child care expenses may be claimed for children up to and including the age of 16 years where the carer is not a relative.
- 6.42. In the event of caring for an adult person, councillors will need to provide suitable evidence to the General Manager that reimbursement is applicable. This may take the form of advice from a medical practitioner.

Home office expenses

- 6.43. Each councillor may be provided with goods or reimbursed for reasonable costs associated with the maintenance of a home office, such as minor items of consumable stationery and printer ink cartridges.

7. Insurances

- 7.1. In accordance with Section 382 of the Act, Council is insured against public liability and professional indemnity claims. Councillors are included as a named insured on this Policy.
- 7.2. Insurance protection is only provided if a claim arises out of or in connection with the councillor's performance of his or her civic duties, or exercise of his or her functions as a councillor. All insurances are subject to any limitations or conditions set out in the policies of insurance.
- 7.3. Council shall pay the insurance policy excess in respect of any claim accepted by Council's insurers, whether defended or not.
- 7.4. Appropriate travel insurances will be provided for any councillors travelling on approved interstate and overseas travel on Council business.

8. Legal assistance

- 8.1. Council may, if requested, indemnify or reimburse the reasonable legal expenses of:
 - a councillor defending an action arising from the performance in good faith of a function under the Act provided that the outcome of the legal proceedings is favourable to the councillor
 - a councillor defending an action in defamation, provided the statements complained of were made in good faith in the course of exercising a function under the Act and the outcome of the legal proceedings is favourable to the councillor
 - a councillor for proceedings before an appropriate investigative or review body, provided the subject of the proceedings arises from the performance in good faith of a function under the Act and the matter has proceeded past any initial assessment phase to a formal investigation or review and the investigative or review body makes a finding substantially favourable to the councillor
- 8.2. In the case of a code of conduct complaint made against a councillor, legal costs will only be made available where the matter has been referred by the General Manager to a conduct reviewer and the conduct reviewer has commenced a formal investigation of the matter and makes a finding substantially favourable to the councillor.
- 8.3. Legal expenses incurred in relation to proceedings arising out of the performance by a councillor of his or her functions under the Act are distinguished from expenses incurred in relation to proceedings arising merely from something that a councillor has done during his or her term in office. For example, expenses arising from an investigation as to whether a councillor acted corruptly would not be covered by this section.
- 8.4. Council will not meet the legal costs:
 - of legal proceedings initiated by a councillor under any circumstances
 - of a councillor seeking advice in respect of possible defamation, or in seeking a non-litigious remedy for possible defamation
 - for legal proceedings that do not involve a councillor performing their role as a councillor
- 8.5. Reimbursement of expenses for reasonable legal expenses must have Council approval by way of a resolution at a Council meeting prior to costs being incurred.

Part C – Facilities

9. General facilities for all councillors

Facilities

- 9.1. Council will provide the following facilities to councillors to assist them to effectively discharge their civic duties:
- a Councillor common room appropriately furnished to include access to pigeon holes and appropriate refreshments
 - iPad or equivalent device, and a personal computer, printer and modem
 - filling cabinet up to four drawers or alternative storage facilities to equivalent cost
 - at home ICT set up and maintenance services
 - access to shared car parking spaces while attending council offices on official business
 - personal protective equipment for use during site visits
 - a name badge which may be worn at official functions, indicating that the wearer holds the office of a councillor and/or mayor or deputy mayor
- 9.2. Councillors may book meeting rooms for official business in a specified council building at no cost. Rooms may be booked through a specified officer in the Mayor's office or other specified staff member.
- 9.3. The provision of facilities will be of a standard deemed by the General Manager as appropriate for the purpose.

Stationery

- 9.4. Council will provide the following stationery to councillors each year:
- Letterhead to the Mayor to be used only for correspondence associated with civic duties
 - business cards
 - Christmas or festive cards

Administrative support

- 9.5. Council will provide administrative support to councillors to assist them with their civic duties only. Administrative support may be provided by staff in the Mayor's office or by a member of Council's administrative staff as arranged by the General Manager.
- 9.6. As per Section 4, Council staff are expected to assist councillors with civic duties only, and not assist with matters of personal or political interest, including campaigning.

10. Additional facilities for the Mayor

- 10.1. Council will provide to the Mayor a maintained vehicle to a similar standard of other Council vehicles, with a fuel card. The vehicle will be supplied for business use.
- 10.2. The Mayor must keep a log book setting out the date, distance and purpose of all travel. This must include any travel for private benefit. The log book must be submitted to Council on a monthly basis.
- 10.3. The Mayoral allowance will be reduced to cover the cost of any private travel recorded in the log book, calculated on a per kilometre basis by the rate set by the Local Government (State) Award.
- 10.4. A parking space at Council's offices will be reserved for the Mayor's council-issued vehicle for use on official business.
- 10.5. Council will provide the Mayor with a furnished office incorporating a computer configured to Council's standard operating environment, telephone and meeting space.
- 10.6. Council may provide the Mayor with a mobile phone and pay for all mobile phone services and data costs.

- 10.7. In performing his or her civic duties, the Mayor will be assisted by staff providing administrative and secretarial support, as determined by the General Manager.
- 10.8. As per Section 4, staff in the Mayor's office are expected to work on official business only, and not for matters of personal or political interest, including campaigning.

Part D – Processes

11. Approval, payment and reimbursement arrangements

- 11.1. Expenses should only be incurred by councillors in accordance with the provisions of this policy.
- 11.2. Approval for incurring expenses, or for the reimbursement of such expenses, should be obtained before the expense is incurred.
- 11.3. Up to the maximum limits specified in this policy, approval for the following may be sought after the expense is incurred:
- local travel relating to the conduct of official business
 - carer costs
 - ICT expenditure \$860
- 11.4. Final approval for payments made under this policy will be granted by the General Manager

Direct payment

- 11.5. Council may approve and directly pay expenses. Requests for direct payment must be submitted to the General Manager for assessment against this policy using the prescribed form, with sufficient information and time to allow for the claim to be assessed and processed.

Reimbursement

- 11.6. All claims for reimbursement of expenses incurred must be made on the prescribed form, supported by appropriate receipts and/or tax invoices and be submitted to the General Manager

Advance payment

- 11.7. Council may pay a cash advance for councillors attending approved conferences, seminars or professional development.
- 11.8. Requests for advance payment must be submitted to the General Manager for assessment against this policy using the prescribed form with sufficient information and time to allow for the claim to be assessed and processed.
- 11.9. Councillors must fully reconcile all expenses against the cost of the advance within one month of incurring the cost and/or returning home. This includes providing to council:
- a full reconciliation of all expenses including appropriate receipts and/or tax invoices
 - reimbursement of any amount of the advance payment not spent in attending to official business or professional development

Notification

- 11.10. If a claim is approved, Council will make payment directly or reimburse the councillor through accounts payable.
- 11.11. If a claim is refused, Council will inform the councillor in writing that the claim has been refused and the reason for the refusal.

Reimbursement to council

- 11.12. If Council has incurred an expense on behalf of a councillor that exceeds a maximum limit, exceeds reasonable incidental private use or is not provided for in this policy:
- Council will invoice the councillor for the expense
 - the councillor will reimburse Council for that expense within 14 days of the invoice date

- 11.13. If the councillor cannot reimburse Council within 14 days of the invoice date, they are to submit a written explanation to the General Manager. The General Manager may elect to deduct the amount from the councillor's allowance.

Timeframe for reimbursement

- 11.14. Unless otherwise specified in this policy, councillors must provide all claims for reimbursement within six months of an expense being incurred and by 31 July each year for the preceding financial year. Claims made after this time cannot be approved.

12. Disputes

- 12.1. If a councillor disputes a determination under this policy, the councillor should discuss the matter with the General Manager.
- 12.2. If the councillor and the General Manager cannot resolve the dispute, the councillor may submit a notice of motion or the General Manager report to a Council meeting seeking to have the dispute resolved.

13. Return or retention of facilities

- 13.1. All unexpended facilities or equipment supplied under this policy are to be relinquished immediately upon a councillor or Mayor ceasing to hold office or at the cessation of their civic duties.
- 13.2. Should a councillor desire to keep any equipment allocated by Council, then this policy enables the councillor to make application to the General Manager to purchase any such equipment. The General Manager will determine an agreed fair market price or written down value for the item of equipment.
- 13.3. The prices for all equipment purchased by councillors under Clause 13.2 will be recorded in Council's annual report.

14. Publication

- 14.1. This policy will be published on Council's website.

15. Reporting

- 15.1. Council will report on the provision of expenses and facilities to councillors as required in the Act and Regulations.
- 15.2. Detailed reports on the provision of expenses and facilities to councillors will be publicly tabled at a Council meeting every six months and published in full on Council's website. These reports will include expenditure summarised for each councillor.

16. Auditing

- 16.1. The operation of this policy, including claims made under the policy, will be included in Council's audit program and an audit undertaken at least every two years.

17. Breaches

- 17.1. Suspected breaches of this policy are to be reported to the General Manager.
- 17.2. Alleged breaches of this policy shall be dealt with by following the processes outlined for breaches of the Code of Conduct, as detailed in the Code and in the Procedures for the Administration of the Code.

18. Review

- 18.1. In accordance with section 252, *Local Government Act 1993*, the policy must be adopted by the Council within twelve months of the commencement of a new council term.

PART E – Appendices

Appendix I: Related legislation, guidance and policies

Relevant legislation and guidance:

- *Local Government Act 1993*, Sections 252 and 253
- *Local Government (General) Regulation 2005*, Clauses 217 and 403
- Guidelines for the payment of expenses and the provision of facilities for Mayors and Councillors in NSW, 2009
- Local Government Circular 09-36 Guidelines for Payment of Expenses and Facilities
- Local Government Circular 05-08 legal assistance for Councillors and Council Employees.

Related Council policies:

- Code of Conduct

Appendix II: Definitions

The following definitions apply throughout this policy.

Term	Definition
accompanying person	Means a spouse, partner or de facto or other person who has a close personal relationship with or provides carer support to a Councillor
appropriate refreshments	Means food and beverages, provided by Council to support Councillors undertaking official business
Act	Means the <i>Local Government Act 1993</i> (NSW)
clause	Unless stated otherwise, a reference to a clause is a reference to a clause of this policy
Code of Conduct	Means the Code of Conduct adopted by Council or the Model Code if none is adopted
Councillor	Means a person elected or appointed to civic office as a member of the governing body of Council who is not suspended, including the Mayor
General Manager	Means the General Manager of Council and includes their delegate or authorised representative
incidental personal use	Means use that is infrequent and brief and use that does not breach this policy or the Code of Conduct
maximum limit	Means the maximum limit for an expense or facility provided in the text and summarised in Appendix 1
NSW	New South Wales
official business	Means functions that the Mayor or Councillors are required or invited to attend to fulfil their legislated role and responsibilities for Council or result in a direct benefit for Council and/or for the local government area, and includes: • meetings of Council and committees of the whole • meetings of committees facilitated by Council • civic receptions hosted or sponsored by Council • meetings, functions, workshops and other events to which attendance by a Councillor has been requested or approved by Council
professional development	Means a seminar, conference, training course or other development opportunity relevant to the role of a Councillor or the Mayor
Regulation	Means the <i>Local Government (General) Regulation 2005</i> (NSW)
Year	Means the financial year, that is the 12 month period commencing on 1 July each year

Matters Arising

Subject	Draft Disability Inclusion Action Plan
TRIM Record No	BP22/513:EF21/12-2
Prepared by	Community Engagement Coordinator
Reason	To seek Council's approval to place the Draft Disability Inclusion Action Plan on public exhibition.
Strategic Theme	An inclusive and healthy community
Strategy	Our community is a desirable place to live, an easy place to work and a welcoming place to visit.
Action	Promote positive attitudes and behaviours toward people with disability.

Executive Summary

Under the *Disability Inclusion Act 2014* all NSW Government agencies and councils are required to develop Disability Action Inclusion Plans that will ensure their services, infrastructure and community facilities are more accessible to people with disability.

The draft Disability Action Plan (DIAP) went on Public Exhibition for 28 days and there were five submissions received. It was included as agenda item at the April Access and Inclusion Committee.

Local Council DIAP renewals are due July 2022.

Recommendation

That Council adopt the Disability Inclusion Action Plan 2022 - 2026 as attached.

Background

Under the *Disability Inclusion Act 2014*, Lismore City Council is required to develop a Disability Inclusion Action Plan. This plan outlines the strategies and actions that Council will put in place, over a four year period, to ensure it continues to recognise and respond to the rights, needs and values of people with a disability. It details how the organisation will make targeted and continual efforts to reduce the barriers that people with a disability face when living, working and visiting the Lismore LGA and improve inclusion and accessibility for all.

The four focus areas of the plan are:

1. Developing positive community attitudes and behaviours
2. Creating liveable communities
3. Supporting access to meaningful employment
4. Improving access to mainstream services through better systems and processes.

The strategies and actions developed through the plan will be reflected in Council's Community Strategic Plan and also embedded in the related 4-year Delivery Program documents, thereby becoming integrated into Council's Integrated Planning & Reporting Framework.

Public consultation

- Between March – June 2021, a community survey was open, and 91 surveys were completed.
- Three community workshops were held in July & August 2021.
- Two consultation meetings with disability organisations.
- Contacted 55 service providers and community organisations.
- The draft plan went on public exhibition from the 13 May 2022 to 10 June 2022 and was included on the agenda at Access and Inclusion Committee's May 2022 meeting. Minimal feedback was received at the committee meeting but feedback that was deemed appropriate was included in the final plan.

Attachment/s

1. [↗](#) Lismore City Council Disability Inclusion Action Plan 2022-2026 (Over 7 pages)

Matters Arising

Subject	Rates & Charges Hardship Policy
TRIM Record No	BP22/510:EF19/13-4
Prepared by	Manager Finance
Reason	To place the amended Rates & Charges Hardship Policy on public exhibition
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

At the 12 July 2022 Council meeting, Council resolved to place the amended Rates & Charges Hardship Policy on public exhibition and for the matter to be brought back to the August 2022 meeting.

The amended policy was placed on display from Wednesday 13 July 2022 until Friday 5 August 2022 inclusive.

At the time of writing this report Council had received one submission.

Council will be provided a copy of all the submissions received once the display period is concluded and before the meeting on the 9 August 2022.

Recommendation

That Council adopts the amended Rates & Charges Hardship Policy.

Background

The events of February/March have had a significant financial impact on our ratepayers and community. Council indicated an intention to explore all possible avenues for rate relief and support within its financial capacity.

The Office Local Government (OLG) provided guidance to Council on its obligations regarding rates and rates relief. Council also received legal advice that supports the advice from the Office of Local Government

The following is a summary of the advice received:

- Council has no legal ability to not charge rates; rates need to be levied.
- Council has no legal ability to write off rates across rating categories, or holistically for segments of the population.
- Relief on rates and charges needs to be on a case-by-case basis and applied through an appropriate mechanism.

Relief under Council's Rates & Charges Hardship Policy applies to individuals who are required to pay rates and charges. Council notes that in some circumstances these payments flow through to tenants and leases as part of their commercial arrangements. It is beyond the scope of Council to offer relief to non-ratepayers; the expectation should be that relief should be passed through by landlords if it is available.

Comments

Finance

Contained within the report.

Public consultation

Council placed the draft Rates & Charges Hardship Policy on public exhibition from 13 July 2022 and invited submissions up to and including 5 August 2022.

Conclusion

Relief on rates and charges needs to be on a case-by-case basis and applied through an appropriate mechanism. The most appropriate mechanism is through Council's Hardship Policy 1.5.11.

The previous Rates & Hardship Policy did not provide enough flexibility to address the issues adequately.

A revised policy was placed on public exhibition from 13 July 2022 and invited submissions up to and including 5 August 2022 and now requires adoption by Council.

Attachment/s

1. [1.5.11 Rates & Charges Hardship Policy](#)



POLICY MANUAL

Policy title:	RATES & CHARGES HARDSHIP
Policy number:	1.5.11
Objective:	To provide assistance to those ratepayers who are experiencing genuine financial hardship with the payment of rates and charges.
Link to community vision/service:	Civic Leadership/Management
Program Area:	Finance
Policy created: 12/05/09	Council reviewed: 13/04/2022
Last reviewed by staff: <u>06/04/2022</u>	TRIM Ref: ED10/15841, ED12/283, ED16/33033 & ED22/9029

Background:

The *Local Government Act 1993* (LGA) provides for councils to make concessions to ratepayers experiencing genuine financial hardship. It also provides for concessions to pensioners.

The purpose of this policy is to provide guidance as to how Council will respond to ratepayer requests for assistance because the payment of rates and charges would cause genuine financial hardship.

Financial Hardship Provisions:

The LGA provides for the following options:-

- a) **Section 564** – Council may accept an arrangement for the periodical payment of rates or charges. Council may also write off or reduce interest accrued on rates and charges if the person complies with the arrangement.
- b) **Section 567** – Council may write off accrued interest on rates and charges payable if in Council's opinion the reasons that the person was unable to pay the rates and charges when they became payable were beyond the person's control, or; that the person is unable to pay the accrued interest for reasons beyond that person's control, or; that the payment of the accrued interest would cause the person hardship.
- c) **Section 577** – Council may extend the pension concession to a ratepayer (subject to conditions) to avoid hardship and permits Council to issue an order specifying a person who is not an eligible pensioner to be deemed an eligible pensioner and therefore qualify for the full pensioner reduction.
- d) **Section 601** – Provides for ratepayers who incur a rate increase in the first year following a general revaluation of land values to apply to Council for rate relief if the increase in the amount of rates payable will cause them substantial financial hardship. Council may waive, reduce or defer

the payment of the whole or any part of the increase in the amount of the rate payable by the ratepayer in such circumstances, for such period and subject to such conditions as it thinks fit.

In addition to financial hardship provisions, the LGA provides the following pensioner concession provisions:-

- e) **Section 575** – *The rates and charges for an eligible pensioner (subject to conditions) are to be reduced by up to 50% or a maximum of \$250 for ordinary rates and domestic waste management charges, \$87.50 for water supply charges and \$87.50 for sewerage charges.*
- f) **Section 582** – Council may waive or reduce rates, charges and interest due by any person prescribed by the regulations who is in receipt of a pension, benefit or allowance under the Social Security Act 1991 of the Commonwealth.

Application of Financial Hardship and Pensioner Concessions Provisions:

a) Section 564 – Payment Arrangement

- The applicant/s will be required to enter into and maintain a payment arrangement which will pay all rates or charges including future interest charges, as they fall due or accrue, and/or, significantly reduce any arrears at the end of the payment arrangement period.
- In the event that a payment in full under an arrangement is not made and Council is not notified of any financial difficulties, the total amount outstanding becomes payable and is subject to Council's normal debt recovery procedures.
- Where an applicant/s requests the write off or reduction of accrued interest charges applicable to a payment arrangement, "b) Section 567 – Write off Accrued Interest" Charges, is to apply.
- The General Manager has delegated authority to enter into an agreement which is acceptable to Council with applicant/s for this purpose.

b) Section 567 – Write off Accrued Interest Charges

- The applicant/s is suffering financial hardship as a result of having to pay the rates and charges as and when they fall due.
- The applicant/s must be the owner/spouse or part owner of the property and be liable for the payment of rates on the property.
- The property for which the hardship application applies must be the sole or principal place of residency of the applicant/s.
- The property for which the hardship application applies must be categorised as residential for rating purposes.
- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority up to the delegated amount to assess and determine an application for this purpose.

- Eligible applications that are more than the General Manager's delegated amount are to be reported to Council for determination. The report will be considered in Closed Council to protect the applicant/s privacy in accordance with Section 10A(2)(b) of the LGA.

c) Section 577 – Extension of Pension Concession

- Council may consider it proper to extending a part pension concession to a full pension concession, to avoid hardship, for an eligible person:-
 - i. who occupies a dwelling as his or her sole or principal place of living, which dwelling is the sole or principal place of living of an eligible pensioner, and
 - ii. who is jointly liable with that eligible pensioner or with that eligible pensioner and one or more other persons in respect of the land on which that dwelling is situated, and
 - iii. in respect of whom a reduction of rates or charges would not, if that person were solely liable in respect of that land, be required to be made under Part 8 Division 1 of the LGA.
- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority up to the delegated amount to assess and determine an application for this purpose.

d) Section 601 – Hardship resulting from a General Revaluation

- The applicant/s would suffer substantial financial hardship if required to pay the rates when they fall due.
- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- An application must be submitted within 6 months of the posting date of the rates notice in the first year of the general revaluation.
- The property must be categorised as residential for rating purposes.
- The applicant must occupy the property as their sole or principal place of residence.
- Rate relief will only be considered if the rates payable exceed 5% of the gross household income.
- The amount of the rate relief will be the difference between the Ordinary Residential Rate payable on the property for the previous year with the allowable rate percentage increase applied for the current year (i.e. the rate pegging increase allowable under Section 506 of the LGA) and the Ordinary Residential Rates payable on the property in the rating year that General Revaluations are being used for the first time.

- The maximum amount of rate relief will be \$250.
- Payment of the difference calculated of up to \$250 may be deferred to the following rating year. One quarter of the amount deferred may be added to each of the quarterly instalments. Interest may be written off on the deferred amount unless it is not paid by the quarterly instalment due date.
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority to assess and determine an application for this purpose.

e) Section 575 – Pensioners Concessions

- To be eligible for a pensioner concession, the ratepayer must be an eligible pensioner as defined by Clause 134 of the *Local Government (General) Regulation 2005*.
- As a guide, the ratepayer must hold at least either a valid Pensioner Concession Card or valid Gold Care (TPI or EDA) issued by the Commonwealth. As other conditions apply, an Application for a Pensioner Concession* must be completed and submitted to allow eligibility and concession entitlement to be fully assessed.
- The pensioner must own and occupy the property as his or her sole or principal place of living. If the property is owned by more than one eligible pensioner, they are to be treated as a solely eligible pensioner.
- If the property is owned by one pensioner and one non pensioner, provided that the non-pensioner is the spouse of the eligible pensioner, they are to be treated as a solely eligible pensioner. If the other person is not the spouse of the eligible pensioner and does not hold a Pensioner Concession card, the reduction is divided by the number of owners and granted to the eligible pensioner.
- If a person becomes an eligible pensioner after the day on which a rate or charge is made and levied, the person is entitled to a reduction of the rate or charge proportionate to the number of full quarters remaining after the day on which the person becomes an eligible pensioner in the year in which the rate or charge is made.
- Council will provide a pensioner concession to an eligible pensioner on their rates and charges based on meeting all the requirements of Section 575 of the LGA of 50% or up to the State Government set maximum rebate amount of \$250 for ordinary rates and domestic waste management charges, \$87.50 for water supply charges and \$87.50 for sewerage charges.

f) Section 582 – Reductions for Eligible Pensioners

- The applicant/s must be a person prescribed by the regulations who is in receipt of a pension, benefit or allowance under the *Social Security Act 1991* of the Commonwealth.
- The applicant/s is suffering financial hardship as a result of having to pay the rates and charges as and when they fall due.
- The applicant/s must be the owner/spouse or part owner of the property and be liable for the payment of rates on the property.
- The property for which the hardship application applies must be the sole or principal place of residency of the applicant/s.
- The property for which the application to waive or reduce rates, charges and interest must be categorised as residential for rating purposes.

- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority up to the delegated amount to assess and determine an application for this purpose.

Natural Disaster Event:

In the event of a Natural Disaster (as declared by the Federal Government) the following additional provisions will apply at the discretion of Council:

- Council may agree and publish a short form Rates & Charges Hardship Application Form (Natural Disaster) and may amend the requirements relating to provision of supporting documentation at its discretion.
- In the case of rates and charges notices issued in the six months following a Natural Disaster (or such other period at the discretion of the General Manager), the following provisions limiting eligibility to apply for the write off of Accrued Interest Charges under s567 of the LGA will not apply:
 - The property for which the hardship application applies must be the sole or principal place of residency of the applicant/s.
 - The property for which the hardship application applies must be categorised as residential for rating purposes.
- Council may, in its discretion, agree to relief in the form of adjusting water charges where excess water use could reasonably be considered as relating to the Natural Disaster event.

Confidentiality and privacy:

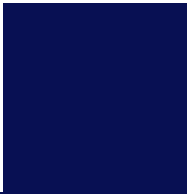
Council staff will conduct themselves with courtesy and respect when dealing with ratepayers and shall maintain the confidentiality and privacy of all ratepayers' personal circumstances.

Evaluation and review:

The policy will be evaluated and reviewed during the term of every Council.

*The Rates & Charges Hardship Application Form and Application for a Pensioner Concession can be downloaded from Council's website www.lismore.nsw.gov.au.

Reports of the General Manager



Report

Subject	Infrastructure Contributions Discount Policy
TRIM Record No	BP22/412:EF21/231
Prepared by	Acting Strategic Planning Coordinator
Reason	To support businesses by waiving Council's infrastructure contributions for any change of use of an existing commercial premises.
Strategic Theme	A prosperous and vibrant city
Strategy	Our community has diverse business and industry, as well as opportunities for investment and growth.
Action	Support and encourage a diverse and competitive mix of business and industry.

Executive Summary

The attached policy provides a mechanism whereby Council can exempt any change of use within a business zone from the payment of levies. The policy does not apply to any levies collected by Lismore City Council on behalf of Rous County Council. The policy is intended to encourage and facilitate new and returning businesses as part of the post-flood recovery for a period of two years. The policy may be extended or amended by a future resolution of Council.

Recommendation

That Council adopts the attached Infrastructure Contributions Discount Policy for the Change of Use of Commercial Premises.

Background

As part of the recovery phase after the devastating floods of February and March 2022 Lismore City Council is keen to encourage and facilitate the return of businesses to premises that are currently vacant. One of the impediments to new businesses starting, or an existing business moving to a different premise, is that in some circumstances such a change of use may attract infrastructure contributions from Council.

In most instances the change of use of a commercial premises is covered under the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*. In such circumstances, no DA consent is required and therefore the change of use does not attract any levies. However, if the change falls outside of what is defined within the SEPP and the change of use is considered to be an intensification of the previously approved use, levies may apply.

Under Section 7.11 (previously Section 94) of the *Environmental Planning and Assessment Act, 1979*, Council has a Section 94 Contributions Plan that allows for a financial levy to be applied to new development. This money is held in reserve and utilized for the provision of new public facilities. Lismore Council's current Contributions Plan applies where there is a change of use of an existing commercial building (that is not otherwise exempt from development consent) and where the number of employees (full time equivalent) is increased from the previously approved use. The rate in 2021/22 is \$7695.54 per additional FTE employee.

Similarly, Section 64 of the *Local Government Act, 1993*, enables Council to levy developer charges for water supply, sewage and stormwater infrastructure. A Development Servicing Plan (DSP) details the water and sewage developer charges to be levied on a development. These Section 64 levies are calculated on the proportional load that the development will place upon the water and sewage system

and expressed in terms of equivalent tenements (ETs). Each premises will have as a minimum a credit of one (1) ET and depending on historical use and gross floor area, may have more credits.

Where a business that is calculated to have a higher load such as a hairdresser or a medical or dental practice, the number of ET credits that a building has may not be sufficient to meet the calculated additional demand and Section 64 levies will be applied. One new ET for water and sewer for a CBD premises is currently \$17,443. This includes \$8943 that is collected on behalf of Rous County Council. An additional ET in East Lismore / Goonellabah is \$22,392 including the Rous water component.

Proposed Policy

The attached policy provides a mechanism whereby Council can exempt any change of use within a business zone from the payment of levies. The policy does not apply to any levies collected by Lismore City Council on behalf of Rous County Council.

Operable Clauses

Businesses seeking development consent for a change of use of any existing building within a Business Zone (B1, B2, B3, B4 or B6, or the equivalent Employment Zones once gazetted by the Department of Planning and Environment), will be exempt from payment of Lismore City Council Section 64 water and sewer levies and any development contributions required under the Section 94 Contribution Plan (2014) or any subsequent plan, provided the business:

1. Utilises the fabric of an existing building and does not increase, by more than 10%, the operational and/or public areas of that building, and
2. Does not require additional Council owned and operated infrastructure for either its reticulated water service or its wastewater service.

Transitional Arrangements

This policy comes into effect on the date it is adopted by Council. It will also be applied to any development application that has been lodged and accepted by Lismore City Council on that date but is yet to be determined.

Any consent issued for a change of use in a business zone that has incurred levies since the floods, may apply to the General Manager to have such levies waived under delegated authority.

Comments

Finance

This policy will encourage business returning to Lismore and thus assist with the economic recovery of Lismore post-flood recovery. The recommendation as printed in this report is supported.

Public consultation

No formal public consultation has been undertaken.

Conclusion

The attached policy provides a mechanism whereby Council can exempt any change of use within a business zone from the payment of levies. This policy is intended to encourage and facilitate new and returning businesses as part of the post-flood recovery for a period of two years. The policy may be extended or amended by a future resolution of Council.

Attachment/s

1. [Contributions Discount Policy for a Change of Use](#)



POLICY MANUAL

Policy title:	Infrastructure Contributions Discount Policy for the Change of Use of Commercial Premises
Policy number:	TBA
Objective:	To facilitate new commercial uses of existing buildings as part of Lismore's flood recovery.
Link to community vision/service:	CSP (B1) – 'Our community has diverse business and industry, as well as opportunities for investment and growth'.
Program Area:	Development and Compliance
Application:	This policy will lapse on 30 June 2024 unless it is reviewed prior to this date and Council resolves to modify, vary, revoke or extend the application of this policy at its discretion.
Policy created:	June 2022
Last reviewed by staff:	TRIM Ref: ED22/13968

The catastrophic flood events of 2022 have impacted all sections of our community including the business community. Vacancy rates of commercial buildings are at an all time high. In order to encourage new businesses, or former businesses wanting to relocate to a different premises, this policy sets out the criteria whereby Lismore City Council will provide an exemption to its adopted Infrastructure Contributions Plan and Development Serving Plans.

Operable Clauses

Businesses seeking development consent for a change of use of any existing building within a Business Zone (B1, B2, B3, B4 or B6, or the equivalent Employment Zones once gazetted by the Department of Planning and Environment), will be exempt from payment of Lismore City Council Section 64 water and sewer levies and any development contributions required under the Section 94 Contribution Plan (2014) or any subsequent plan, provided the business:

1. Utilises the fabric of an existing building and does not increase, by more than 10%, the operational and/or public areas of that building, and
2. Does not require additional Council owned and operated infrastructure for either its reticulated water service or its wastewater service.

Transitional Arrangements

This policy comes into effect on the date it is adopted by Council. It will also be applied to any development application that has been lodged and accepted by Lismore City Council on that date but is yet to be determined.

Any consent issued for a change of use in a business zone that has incurred levies since the floods, may apply to the General Manager to have such levies waived under delegated authority.

Report

Subject	Competitive Neutrality Complaints Policy
TRIM Record No	BP22/410:EF22/47
Prepared by	Manager Investment & Commerce
Reason	Develop a policy that states Council's process and response to a competitive neutrality complaint
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

In accordance with National Competition Policy, Council is required to establish an effective system to deal with complaints relating to competitive neutrality in respect of its businesses.

A Competitive Neutrality Complaints policy is considered part of an effective complaints management system.

This is consistent with advice from the NSW Office of Local Government and recommendations from the Independent Competitive Neutrality Review of GSAC businesses by Grant Thornton Australia.

A draft Competitive Neutrality Complaints policy has been developed so that Council's process and response to competitive neutrality complaints is transparent.

Recommendation

That adopt the Competitive Neutrality Complaints Policy.

Background

Competitive neutrality is based on the concept of the 'level playing field' for all competitors in a market, be they public or private sector competitors. The National Competition Policy requires that where councils compete in the market place, they should do so on a basis that does not utilise their public position to gain an unfair advantage over a private sector competitor.

Council has declared the following as businesses from a National Competition Policy perspective:

Category 1 (Turnover > \$2 million)

1. Water Supplies Services
2. Wastewater Services
3. Northern Rivers Quarry & Asphalt
4. Northern Rivers Waste – Disposal

Category Two (Turnover < \$2 million)

1. Lismore Memorial Gardens – Crematorium
2. Goonellabah Sports & Aquatic Centre – Gym & Swim School

The National Competition Policy also requires councils to establish an effective system to deal with complaints relating to competitive neutrality in respect of its businesses.

While management has in place a dated Competitive Neutrality – Complaints Handling System procedure, it does not have the required transparency of a Council policy.

To provide the required transparency, and in response to the NSW Office of Local Government advice on complaints they had received and recommendations from the Independent Competitive Neutrality Review of GSAC businesses by Grant Thornton Australia, a draft Competitive Neutrality Complaints Policy has been developed.

The Policy is attached and includes information under these headings:

- Background – Information about Competitive Neutrality
- Mechanism – Effectively an assessment of the complaint will be prepared for the General Manager
- Response Time – Four weeks
- Remedies – List possible options and if not satisfied will provide NSW Office of Local Government contact details
- References – Guidelines on the Management of Competitive Neutrality Complaints, NSW Department of Local Government, 1997
- Policy Review – At least once during each Council term

Comments

Finance

Not required.

Public consultation

Not required.

Attachment/s

1. [Download](#) Draft Competitive Neutrality Complaints Policy



Policy title:	COMPETITIVE NEUTRALITY COMPLAINTS
Policy number:	1.2.29
Objective:	To outline the process of assessment and responding to competitive neutrality complaints
Link to community vision/service:	LEADERSHIP AND PARTICIPATION
Program Area:	GOVERNANCE
Policy created: May 2022	Council reviewed: 14/06/2022
Last reviewed by staff: May 2022	TRIM Ref: ED22/12884

Background:

Council is responsible for the implementation and operation of an effective mechanism to manage complaints relating to competitive neutrality.

Competitive neutrality is the concept of a “level playing field” between persons competing in a market place. The principle is that Council should operate in this market place without any net competitive advantages over businesses as a result of its public ownership.

A complaint regarding competitive neutrality is:

- A complaint that Council has not met its requirements under the Policy Statement or “Pricing and Costing for Council Businesses - A Guide to Competitive Neutrality”. This includes a concern that Council has not established an effective complaints handling mechanism;
- A complaint that council has not abided by the spirit of competitive neutrality in the conduct of a business activity.

Mechanism:

Complaints concerning competitive neutrality should be addressed in writing to the Public Officer, Lismore City Council.

The Public Officer will ensure the complaint is correctly registered in the Records Management System.

Notification of the complaint will be provided to the General Manager.

An assessment of the complaint will be undertaken and include a review of issues such as:-

- specific issue or issues raised in the complaint;
- the costing methodology of the business activity;
- the nature of the business and the number of competitors; and
- the administrative procedures relating to the action that instigated the complaint.

The assessment results will be reported to the General Manager.

Response Time:

A response to the complainant will be provided within four weeks.

Remedies:

Council will make it clear what remedies it can provide to resolve a competitive neutrality complaint. The most common forms of resolution may be:

- to provide more information to the complainant for a more accurate understanding of competition policy;
- to investigate / review the business activity if a legitimate complaint is made;
- to change business practice where a complaint is justified.

If the complainant is not satisfied with the Council's response, they will be provided with the NSW Office of Local Government's contact details.

References

Guidelines on the Management of Competitive Neutrality Complaints, NSW Department of Local Government, 1997

Review:

The policy will be reviewed at least once during the term of every council.

Report

Subject	Unreasonable Conduct Advisory Group
TRIM Record No	BP22/419:EF19/804-4
Prepared by	Governance & Customer Service Manager
Reason	To determine the community members to be part of the advisory group.
Strategic Theme	Leadership and participation
Strategy	Our decisions and actions are open, transparent, effective and in the interests of all.
Action	Manage Council meetings and provide support to Councillors in fulfilling their role.

Executive Summary

Council resolved in July 2021 to adopt the Unreasonable Conduct Model Policy and Procedure.

Council also resolved that the Terms of Reference for the Unreasonable Conduct Advisory Group be adopted with the addition that the two community members of the advisory group are to be selected by an Expression of Interest process and will be appointed by Council vote. The community members are to have qualifications or experience in social work or a related field.

An expression of interest process has been run and Council now needs to appoint community members to the Advisory Group.

Recommendation

That Council appoint to the Unreasonable Conduct Advisory Group.

Background

Details of the applicants will be provided to councillors prior to the Council meeting.

Conclusion

Community members will be appointed to the Unreasonable Conduct Advisory Group.

Attachment/s

There are no attachments for this report.

Report

Subject	Planning Proposal - 1443 Bangalow Road, Clunes
TRIM Record No	BP22/351:EF21/38
Prepared by	Strategic Planner
Reason	To amend the Minimum Lot Size for 1443 Bangalow Road, Clunes (Lot 1 DP 832781) in order to enable a dwelling entitlement.
Strategic Theme	Our built environment
Strategy	Our land-use planning caters for all sectors of the community.
Action	Ensure a diverse range of land use and development opportunities are available.

Executive Summary

Council has received a Planning Proposal to amend the Minimum Lot Size of 1443 Bangalow Road, Clunes with the intention of enabling a dwelling entitlement.

1443 Bangalow Road is a 1.8-hectare lot in the rural RU1 zone approximately 2km southwest of Clunes. The site has historically been used as a vehicle body repair shop and continues to have 'existing use rights' under a historic consent. Another previous consent for this site (DA92/1) to create a 'special purpose lot' came with a condition that the land "only be used for the purpose of a panel beating and spray-painting workshop". This use is no longer considered appropriate, and this is the primary reason a Planning Proposal is now needed.

The residential use of this site will be subject to a future development application and will be dependent on the vehicle body repair shop consent being surrendered and the sheds removed to create a vegetated buffer. The attached Planning Proposal has considered the environmental, social and heritage related impacts of a change of use and concludes that a residential use can be satisfactorily achieved. It is the view of Council staff that a residential use for this site would provide a land-use more in line with the character of the surrounding area and recommends that the Planning Proposal be supported.

Recommendation

That:

1. Council supports the Planning Proposal to change the Minimum Lot Size for 1443 Bangalow Road, Clunes.
2. the Planning Proposal be submitted to the Department of Planning and Environment with a request for Gateway determination.
3. Council confirm staff are to proceed to public exhibition of the Planning Proposal, in accordance with the Gateway determination.
4. Council confirms that should no objections be made during the public exhibition stage, that the Planning Proposal be submitted to the Department of Planning and Environment for making of the LEP; or, that should any objections be raised at the public exhibition stage, staff report back to Council for further consideration.

Background

Council received a Planning Proposal seeking to amend the minimum lot size of 1443 Bangalow Road, Clunes from 40ha to 1.5ha. Currently, due to the history of the site and the existing DA conditions, the site has no dwelling entitlement. This change in lot size would allow Council to assess and determine a development application for a dwelling or dual occupancy, provided that the landowner surrenders the development consent for the existing use rights ('vehicle body repair shop').

The Planning Proposal was subject to a Councillor briefing in March 2021.

The subject site

Lot 1 DP 832781 (1443 Bangalow Road, Clunes) is located in a rural area (Zone RU1) on a classified road. It is approximately 2km south-west of the village of Clunes and 14km north-east of the Lismore CBD, as shown in figure 1, the zoning of the site and the surrounding area is shown in figure 2.

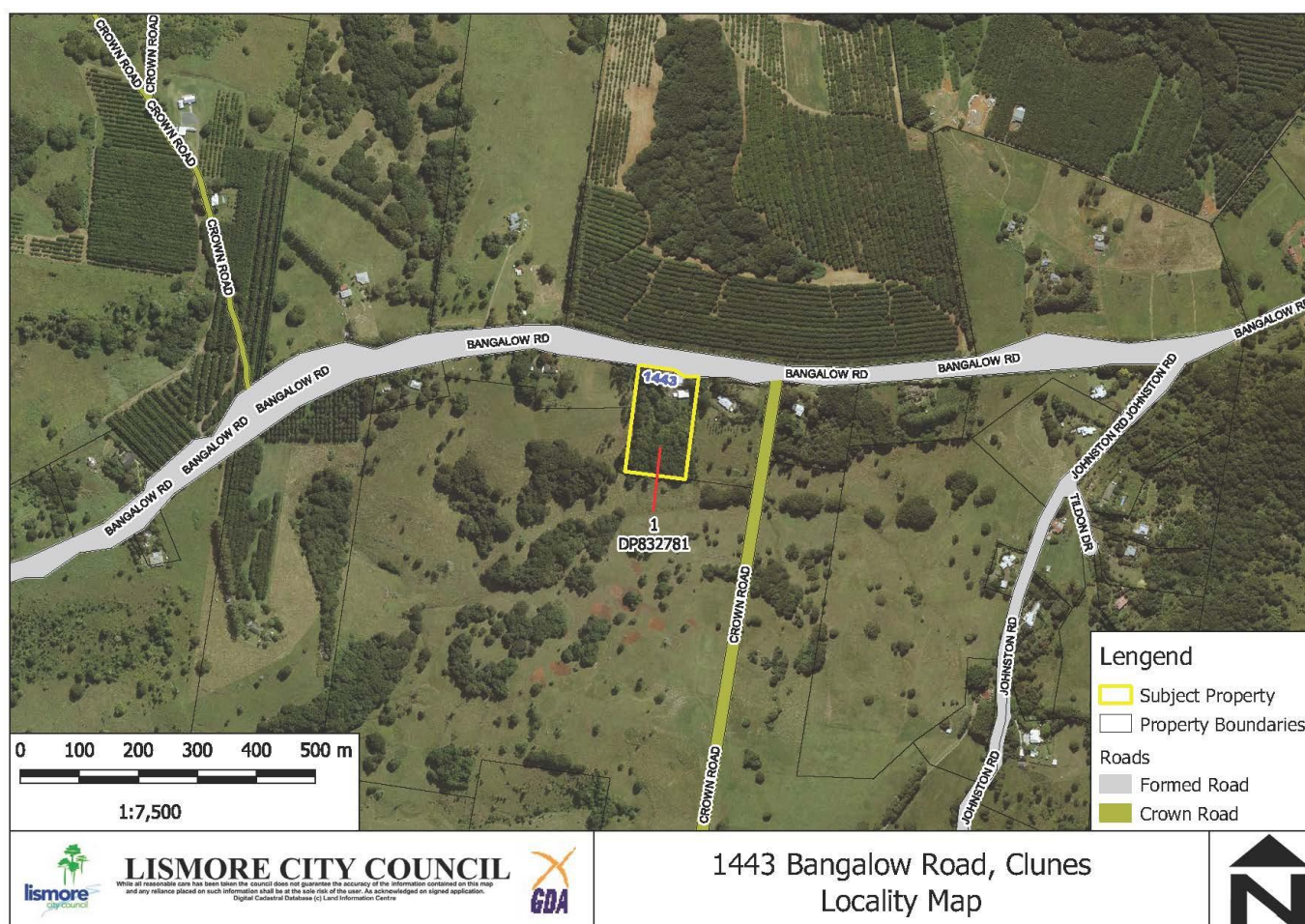


Figure 1: Locality of the subject site

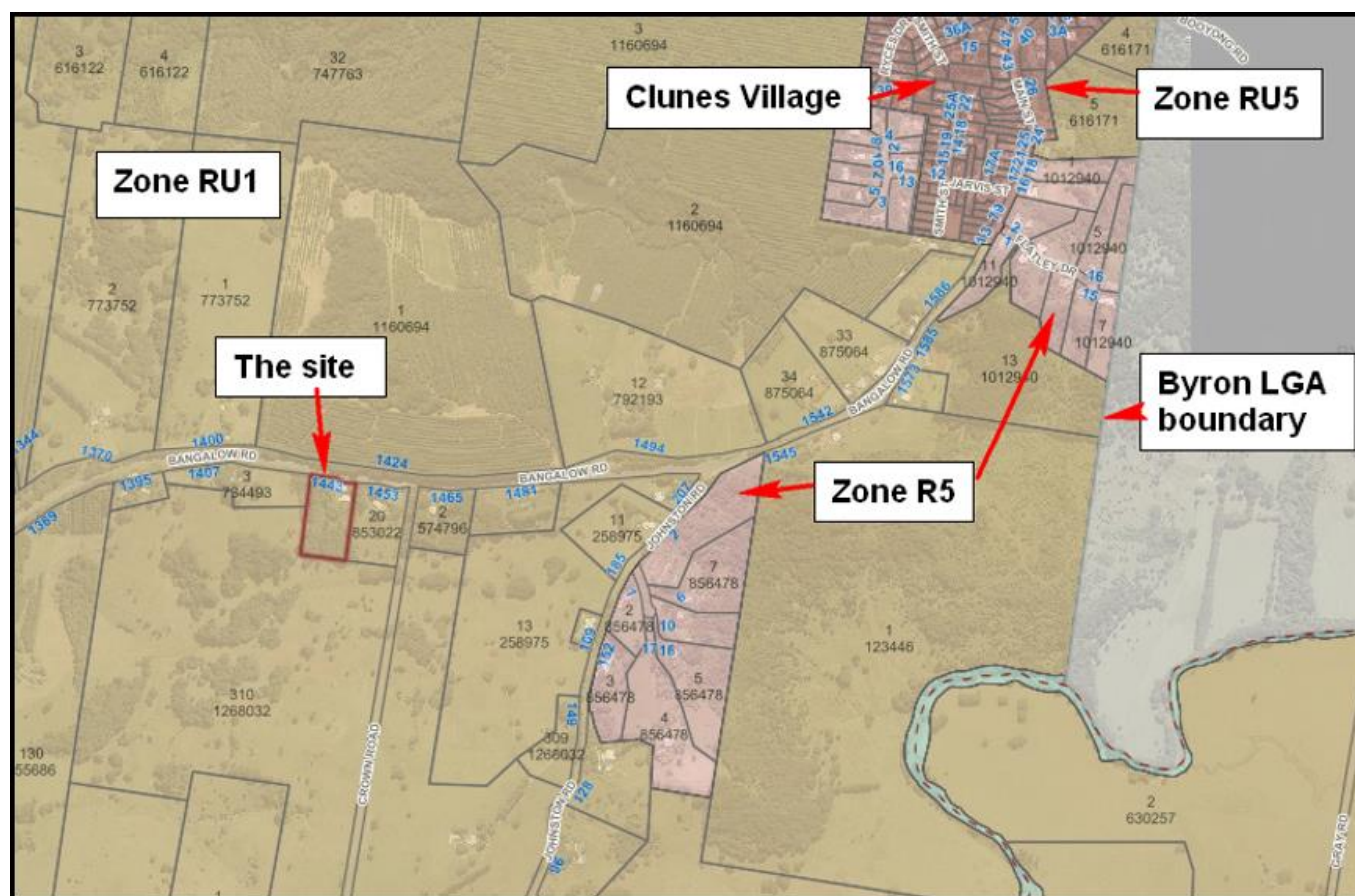


Figure 2: Zoning of subject site and surrounding locality

The land has an area of 1.8ha and surrounding land uses include rural residential lots of a similar size to the east and west, grazing land to the south and intensive agriculture (macadamia plantation) on the northern side of Bangalow Road. The site contains two existing buildings (sheds) and associated infrastructure and is largely covered in vegetation.

The site has been used as a 'vehicle body repair shop' or a similar use since the 1960's. However, since 2000 when the Lismore LEP came into force, the use of the land for a 'vehicle body repair shop' has been prohibited by the land use table for Zone RU1 and remains prohibited in the Lismore LEP 2012. However, by virtue of the previous consents, the site enjoys "Existing Use" rights under Division 4.11 of the EP&A Act and Clauses 39 to 46 of the EP&A Act Regulations. These provisions allow for a future expansion or intensification of the existing use at the site.

Clause 6(7) of the Lismore Interim Development Order No.40 allowed for the creation of a special purpose lot of under 40 hectares and DA92/1 included a condition that the lot "only be used for the purpose of a panel beating and spray-painting workshop". Therefore, the lot does not have an entitlement to a dwelling under Clause 4.2B of the Lismore LEP 2012.

Overview of the planning proposal

The detailed Planning Proposal is located at Attachment 1 to this report and has been structured in line with the NSW Department of Planning and Environment guidelines. Table 1 of this report provides an overview of the Planning Proposal, including Council's assessment of the environmental, social and heritage related impacts.

Table 1 – Planning Proposal summary

Part	Requirement	Description of Planning Proposal
1	OBJECTIVES OR INTENDED OUTCOMES	To amend the minimum lot size and enable a dwelling entitlement for 1443 Bangalow Road, Clunes (Lot 1 DP 832781).
2	EXPLANATION OF PROVISIONS	The objective of the proposal will be achieved by amending the Lot Size Map (LSZ_005) to allow for a new minimum lot size of 1.5ha (Y2). No change to the written instrument (LLEP 2012) is required.
3	JUSTIFICATION Section A – Need for the Planning Proposal <i>Q1. Is the planning proposal a result of an endorsed LSPS, strategic study or report?</i> <i>Q2. Is the planning proposal the best means of achieving the objectives or intended outcomes, or is there a better way?</i>	- The land is not mapped in any strategic study or report, it was initiated by the landowner. However, the proposed residential use of the land is more consistent with the surrounding land use pattern in the area. The proposal will also result in the discontinued use of the current 'vehicle body repair shop' which is no longer a permitted use within zone RU1. - The Planning Proposal is the best way to enable a residential use on the subject site.
	JUSTIFICATION Section B – Relationship to strategic planning framework <i>Q3. Will the planning proposal give effect to the objectives and actions of the applicable regional or district plan or strategy (including any exhibited draft plans or strategies)?</i> <i>Q4. Is the planning proposal consistent with a council LSPS that has been endorsed by the Planning Secretary or GSC, or another endorsed local strategy or strategic plan?</i> <i>Q5. Is the planning proposal consistent with any other applicable State and regional studies or strategies?</i> <i>Q6. Is the planning proposal consistent with applicable State Environmental Planning Policies?</i> <i>Q7. Is the planning proposal consistent with applicable Ministerial Directions (s.9.1 directions)?</i>	- The Planning Proposal aligns with the North Coast Regional Plan - The Planning Proposal is consistent with Imagine Lismore 2017-2027, Council's Community Strategic Plan - No other state or regional plans are applicable - The Planning Proposal is consistent with the State Environmental Planning Policies (SEPPs) - The Planning Proposal is consistent with Section 9.1 Ministerial directions, or any inconsistencies can be justified
	JUSTIFICATION Section C – Environmental, social and economic impact <i>Q8. Is there any likelihood that critical habitat or threatened species, populations or ecological communities, or their habitats, will</i>	- Council's mapping does not indicate any significant ecological constraints on the site. Any future DA that requires any vegetation removal or disturbance will need to address the relevant planning controls at that time. - The contamination report that accompanies the Planning Proposal concludes that the site is uncontaminated. Council's Environmental Health team have reviewed the report and are satisfied.

Part	Requirement	Description of Planning Proposal
	<i>be adversely affected because of the proposal?</i> Q9. Are there any other likely environmental effects of the planning proposal and how are they proposed to be managed? Q10. Has the planning proposal adequately addressed any social and economic effects?	- A technical Land Use Conflict Risk Assessment (LUCRA) report was submitted to Council and has been reviewed by Council's Environmental Health Team. As a result, an 80m buffer, which includes a 30m biological buffer, has been agreed to provide a buffer from Bangalow Road and the agricultural use to the north (macadamia orchard). - A Wastewater Management Report was submitted to Council to support the planning proposal. The report identifies a suitable area for the placement of an on-site sewage management system, which meets council's On-site Sewage and Wastewater Management Strategy, including the provision of reserve land application areas and compliance with buffer setbacks to waterways and property boundaries. - Any future DA for a dwelling will need to demonstrate compliance with the requirements in Planning for Bushfire Protection 2019 - There are no known Aboriginal sites of places identified within 50 meters of the subject land and the land is not listed as a heritage item - The Planning Proposal will not adversely impact upon existing rural land and will not impact upon the uses that are currently able to be undertaken at the site other than allowing consideration for a dwelling and removing the existing use at the site for a vehicle repair body repair shop. There is suitable industrial zoned land in Lismore for this land use.
	JUSTIFICATION Section D – Infrastructure (Local, State and Commonwealth) Q11. Is there adequate public infrastructure for the planning proposal?	All services are available or can be provided
	JUSTIFICATION Section E – State and Commonwealth Interests Q12. What are the views of State and Commonwealth public authorities and government agencies consulted in order to inform the Gateway determination?	It is recommended that the Rural Fire Service are consulted following the Gateway Determination
4	MAPS	LEP Maps are provided in section 4 of the Planning Proposal found within Appendix 1 of this report

Part	Requirement	Description of Planning Proposal
5	COMMUNITY CONSULTATION	Recommended 28-day exhibition period (Refer to Attachment 1 for detail)
6	PROJECT TIMELINE	Recommendation of approximately 12 months for completion (Refer to Attachment 1 for detail)

Comments

Finance

Not required.

Other staff comments

The Environmental Health and Public Health team provided a referral for the Planning Proposal. Their comments have been incorporated into the Planning Proposal and table 1 above.

Public consultation

Council will commence community consultation post Gateway determination. For the purposes of public notification, it is considered that a twenty-eight (28) day public exhibition period is appropriate. The duration of the exhibition period will be determined as part of the Gateway determination.

Notification of the exhibited planning proposal will include:

- publication in Council's Local Matters newsletter that circulates in the area affected by the Planning Proposal;
- the websites of Lismore City Council and the Department of Planning and Environment;
- letter to adjoining landholders

The written notice will:

- provide a brief description of the objectives or intended outcomes of the Planning Proposal;
- indicate the land that is the subject of the Planning Proposal;
- state where and when the Planning Proposal can be inspected;
- provide detail that will enable members of the community to make a submission.

Exhibition material:

- the Planning Proposal, in the form approved for community consultation by the Director General of the Department of Planning and Environment;
- the Gateway determination;
- any studies required as part of the Planning Proposal.

The Gateway determination will confirm the public consultation requirements.

Conclusion

The Planning Proposal seeks to change the minimum lot size for 1443 Bangalow Road, Clunes (Lot 1 DP 832781) to enable a development application for a residential use to come forward on the land. Council's initial assessment of the Planning Proposal finds that the land can suitably accommodate a residential use and that a residential use would be more in line with the surrounding characteristic of the area.

Following Council approval, the Planning Proposal will be submitted to the NSW Department of Planning and Environment for Gateway determination and then subsequently consulted on with relevant agencies and the public. It is expected that a further report to Council will be made early 2023 to discuss the outcomes of this process, if required.

Attachment/s

1. [↗](#) Planning Proposal - Change to minimum lot size, 1443 Bangalow Road (Over 7 pages)

Report

Subject	Land reclassification and rezoning - various parcels at Lismore Heights and Goonellabah
TRIM Record No	BP22/389:AF22/57
Prepared by	Strategic Planner
Reason	to seek support in principle for the change of classification and zoning to five (5) vacant land parcels currently deemed as Local Parks, to enable residential land and generate funding for upgrades to existing recreational assets
Strategic Theme	Our built environment
Strategy	Our land-use planning caters for all sectors of the community.
Action	Ensure land is available and serviced to meet population growth in locations that are accessible, close to services and employment, and suitable for development.

Executive Summary

In 2013, Council developed a pocket park divestment strategy, whereby small, underutilised parks would be sold to fund park upgrades. As part of that strategy five (5) parcels of land have been identified as suitable for reclassification and rezoning.

This report is seeking support in principle and for Staff to take the next step in the process, which would be to prepare a Planning Proposal for the five (5) parcels to change from 'Community' to 'Operational' and rezoned from RE1 Public Recreation to R1 General Residential. Pending this, the sites could then be considered for sale and the revenue could go a significant way in contributing to funding Lismore's major park upgrades.

Should a Planning Proposal be supported, it will be reported back to Council for further consideration.

Recommendation

That:

1. a Planning Proposal be prepared that would reclassify and rezone five (5) parcels of Public Open Space as identified in this report, enabling them to be considered for future sale and residential development.
2. a further report be reported back to Council prior to submitting the Planning Proposal to the NSW Department of Planning and Environment.

Background

Lismore City Council's Sport and Recreation Plan to 2024 provides a planning framework for sport and recreation including strategies for the future use and development of sport and recreation facilities, services and programs. It reflects the community's stated desire to maintain Lismore as a regional sports hub and strong support for more and better-connected walkways and cyclepaths.

Recommendations of the Sport and Recreation Plan (as set by its accompanying resource document), include:

- “Rationalise small parks with poor functionality provided there is another park within 500m radius of most residents”; and
- “Set up a dedicated fund to apply proceeds of sale toward upgrading existing parks, improving access, or acquiring land for parks”

In 2013, Council developed a pocket park divestment strategy, whereby small, underutilised parks would be sold to fund park upgrades. In April 2013 Council resolved to reclassify several small parks from Community to Operational land as part of the divestment strategy. Subsequently 12 parcels of land were sold, and the proceeds used to fund upgrades across Lismore’s major parks, including Kadina Park, Heritage Park and Nesbitt Park.

Council staff have now identified five (5) additional Council-owned parcels of Public Open Space that are believed to be underperforming and are within a 500m radius of another park or Public Open Space and are therefore suitable for disposal in accordance with the divestment strategy.

It is acknowledged that these parcels of Public Open Space are likely to provide some environmental and local value to residents. At present however, it is not believed that the parcels provide any recreational benefits, nor are they widely used as Public Open Space or parks by the local community. The benefit they do offer, by way of scenery and greenery, must then be weighed against the financial burden on the Council in maintaining the sites. The income that could be generated by disposal of the land, alongside the savings to Council’s maintenance budget, could go a significant way in contributing to funding Lismore’s major park upgrades. Estimated land values, as well as indication of what could be delivered with the revenue, is discussed within this report.

This report is seeking in principle support to take the next step in the process, which would be to prepare a Planning Proposal for the parcels to change their classification from ‘Community’ to ‘Operational’ and rezoned from RE1 Public Recreation to R1 General Residential.

This report outlines a summary of each parcel of Public Open Space as well as an outline of the process to be undertaken should support in principle be given. Further detail on the parcels, as well as the identification and discussion on any constraints or impacts would be provided as part of the Planning Proposal and would be reported back to Council within the financial year. The Planning Proposal would propose changes to the land-use classification and zoning that would allow the sites to then be considered for disposal and residential use.

Subject Sites

8 Holmesleigh Drive, Goonellabah – Lot 33 DP 251293

This is a vacant parcel of Council-owned land that does not contain any play or recreational equipment. The site was dedicated as Public Open Space as part of the original subdivision and is now maintained by Council.

Key characteristics of the land include:

- 769m2
- Average slope of 10%
- One medium sized Eucalypt tree is present at the front of the block and would require removal. An initial review by LCC’s Project Manager – Infrastructure & Open Spaces supports the removal based on a tree health assessment – further review of constraints posed by other trees at the rear of the property would be reviewed under the Planning Proposal.
- The site is not flood effected, does not include heritage items, and is not expected to be contaminated

	Current Characteristic	Proposed Characteristic
Classification	Community	Operational
Zone	RE1 Public Recreation	R1 General Residential
Height of Building	NA	8.5m
Minimum Lot Size	NA	400m ²

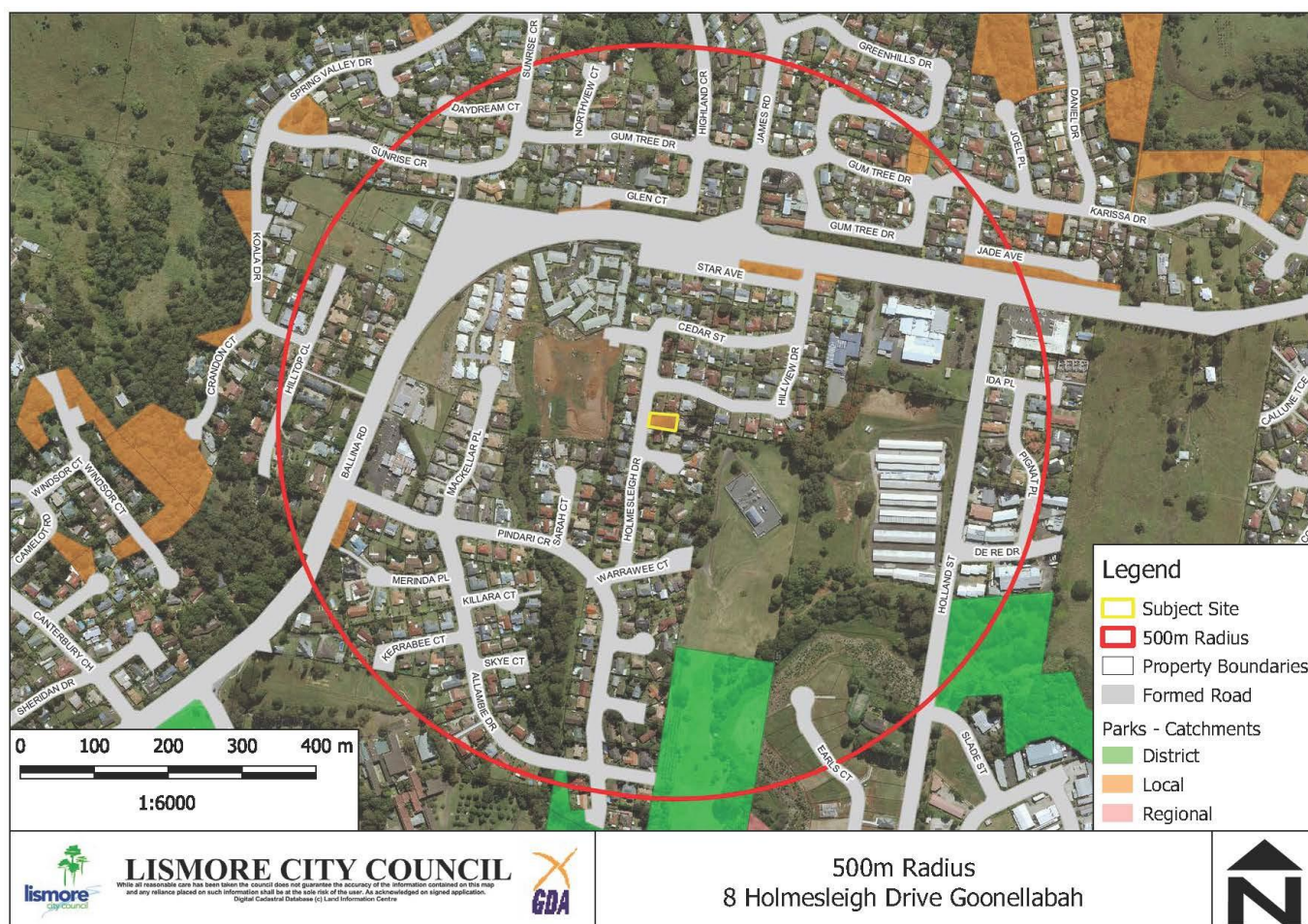


Image 1 – 8 Holmesleigh Drive, with the 500m radius shown

Five (5) other parcels of Public Open Space are within a 500m radius of the site:

- four pieces of verge land on Ballina Road
- Greenhills Local Park, approximately 800m via road to the north

Two (2) District Parks are within a 500m radius of the site:

- a section of the Richmond Birdwing Butterfly Gully land and open space alongside Tucki Tucki Creek, approximately 570m via road to the south east
- Hepburn Park, approximately 800m south east via road and then pedestrian access (beyond Tucki Tucki creek)

Additionally, Kadina Street playground, which is a regional park, is approximately 950m via road to the south west and a section of the Richmond Birdwing Butterfly Gully land, which is not classified as a park but is zoned as Public Recreation, is approximately 250m via road to the southwest.

2 Kareela Avenue, Lismore Heights – Lot 29, DP 232727

This is a vacant parcel of Council-owned land that does not contain any play or recreational equipment. Key characteristics of the land include:

- 816m²
- Average slope of 18%
- One Eucalypt tree, with significant deadwood, would require removal. An initial review by LCC's Project Manager – Infrastructure & Open Spaces supports the removal based on the tree's exposure to high winds in the locality – further review of constraints posed by the tree would be reviewed under the Planning Proposal
- The site is not flood effected, does not include heritage items, and is not expected to be contaminated

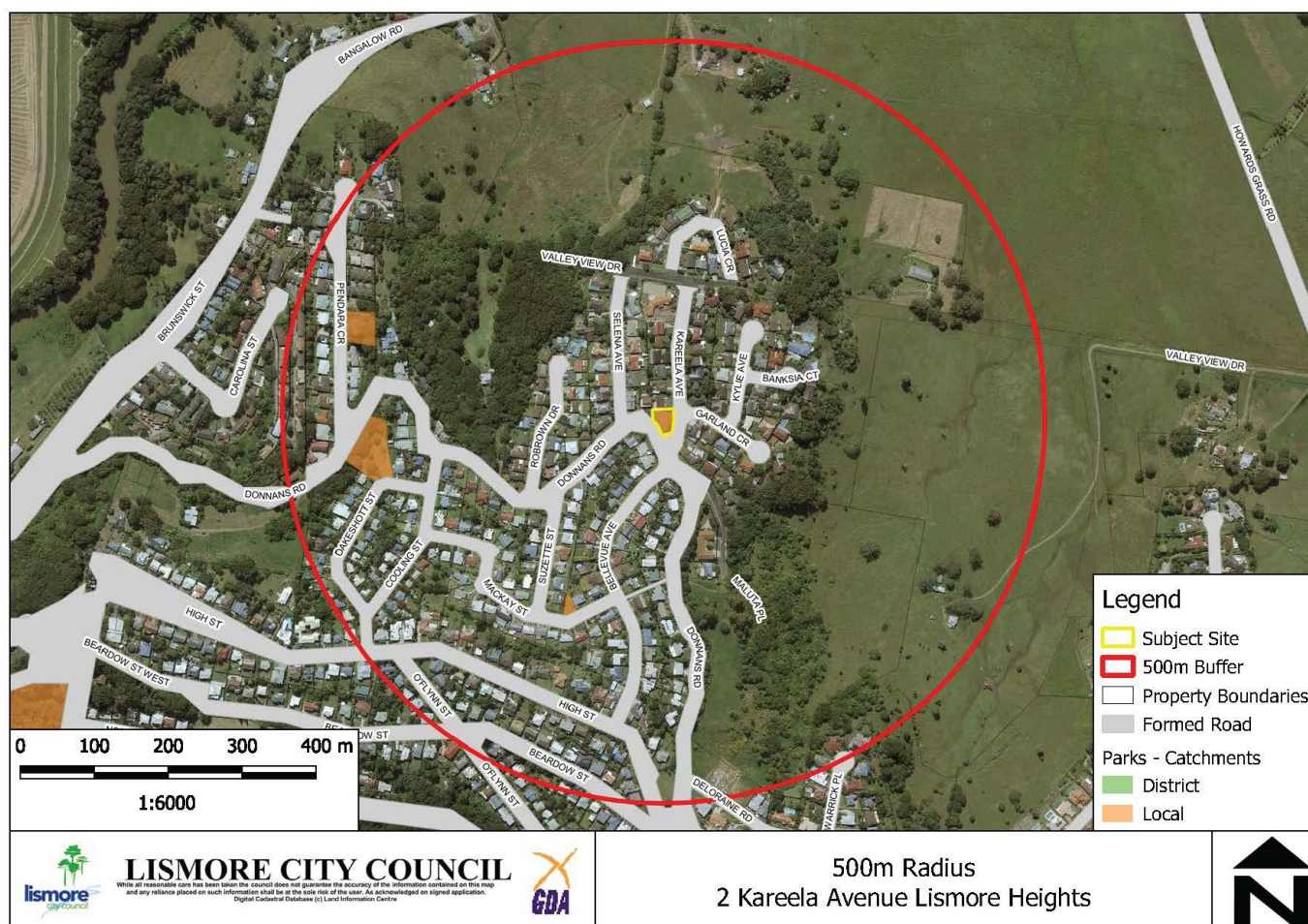


Image 2 - 2 Kareela Avenue, imagery taken April 2022

	Current Characteristic	Proposed Characteristic
Classification	Community	Operational
Zone	RE1 Public Recreation	R1 General Residential
Height of Building	NA	8.5m
Minimum Lot Size	NA	400m ²

There are three (3) existing parcels of Public Open Space, classified as Local Park, within a 500m radius of the site:

- Oakshott Street Playground, approximately 460m via road to the south west
- Parcel of vacant open space zoned Public Recreation and classified as operational on Weemala Street, approximately 300m to the south via road
- Parcel of heavily treed land to the west of the site on Pandora crescent, approximately 680m via road

19 Julie Crescent, Goonellabah – Lot 41, DP 800534

This is a vacant parcel of Council-owned land at the end of a residential cul-de-sac that does not contain any play or recreational equipment. Key characteristics of the land include:

- 2,010m²
- Average slope is 13%
- LCC's Project Manager – Infrastructure & Open Spaces confirms that, from an initial assessment, there is ample location for a building envelope without significant vegetation removal.
- The site is not flood effected, does not include heritage items, and is not expected to be contaminated

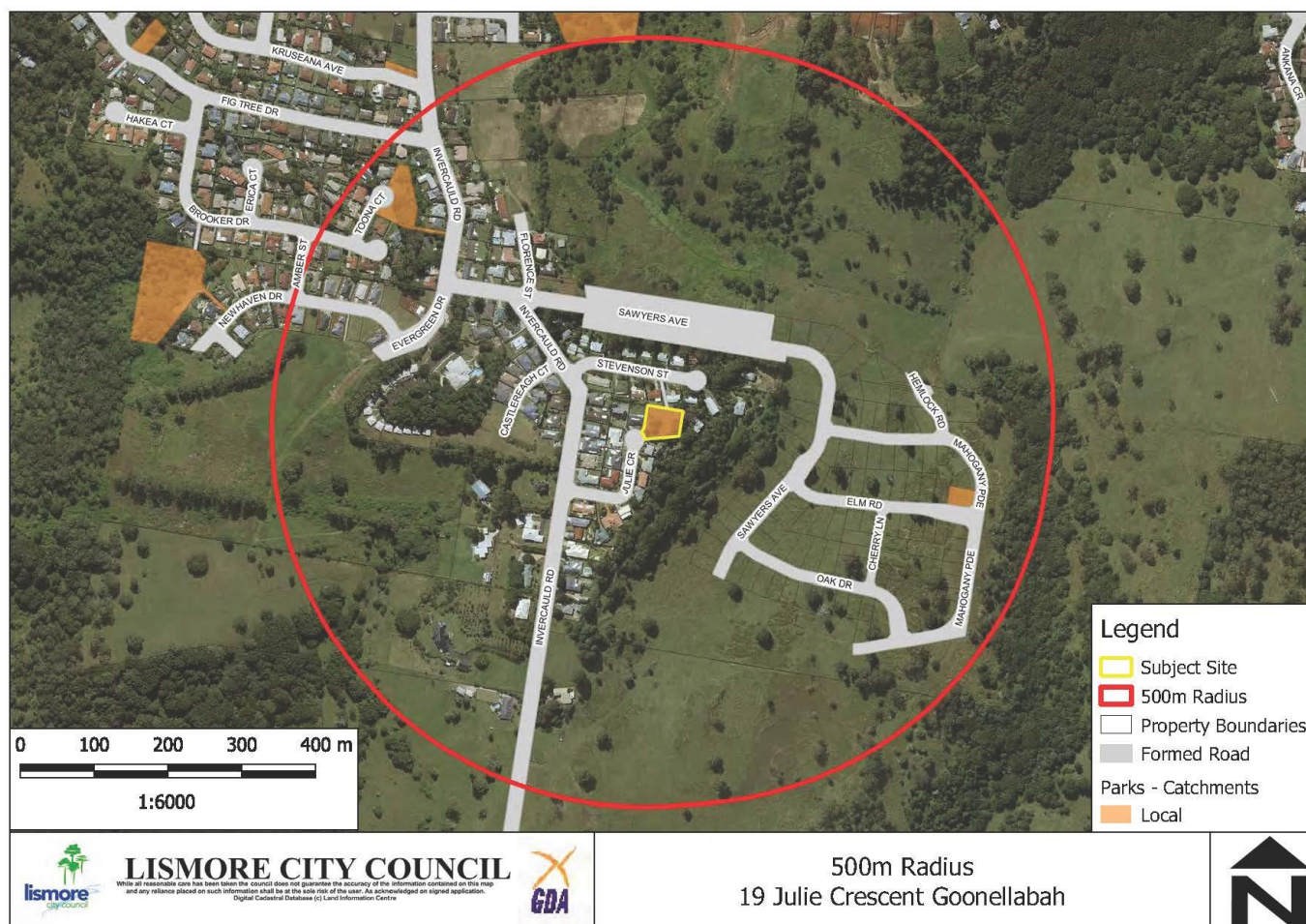


Image 3 – 19 Julie Crescent, imagery taken April 2022

	Current Characteristic	Proposed Characteristic
Classification	Community	Operational
Zone	RE1 Public Recreation	R1 General Residential
Height of Building	NA	8.5m
Minimum Lot Size	NA	400m ²

There are two (2) existing Local Parks within a 500m radius of the site:

- Toona Court Local Park, which includes picnic tables and open space, is approximately 660m via road
- Mahogany Parade Local Park, which includes play equipment, is approximately 1100m via road

7 Parkwalk Drive, Goonellabah – Lot 14, DP 792695

This is a vacant parcel of Council-owned land at the end of a residential cul-de-sac that does not contain any play or recreational equipment. Key characteristics of the land include:

- 602m²
- Average slope of 19%
- An initial review by LCC's Project Manager – Infrastructure & Open Spaces supports the removal of trees in this location given the small size and ease of replacement – further review of constraints posed by the trees would be reviewed under the Planning Proposal
- The site is not flood effected, does not include heritage items, and is not expected to be contaminated

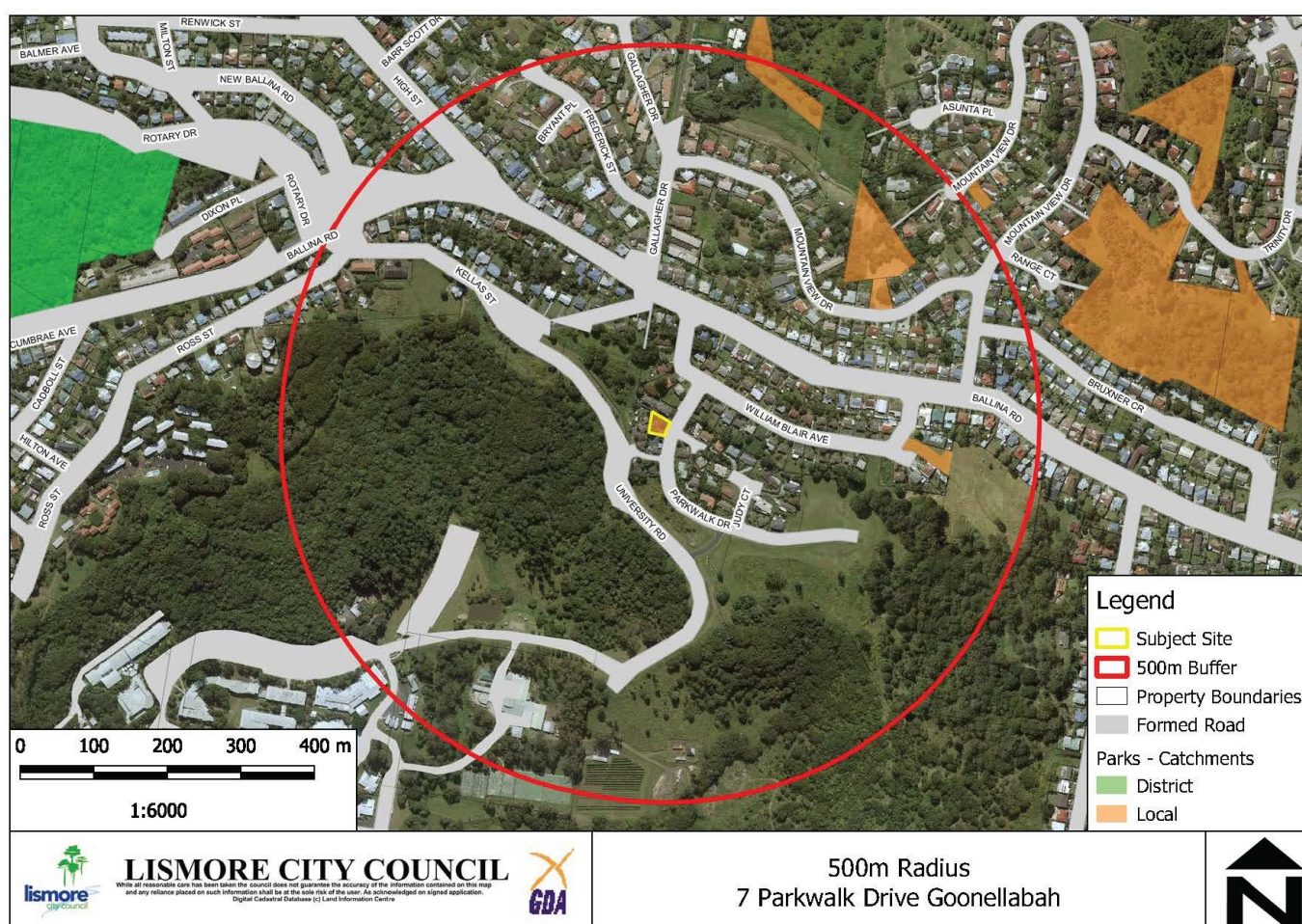


Image 4 – 7 Parkwalk Drive, imagery taken April 2022

	Current Characteristic	Proposed Characteristic
Classification	Community	Operational
Zone	RE1 Public Recreation	R1 General Residential
Height of Building	NA	8.5m
Minimum Lot Size	NA	400m ²

There are three (3) existing parcels of Public Open Space, classified as Local Parks, within a 500m radius of the site:

- Vacant land at William Blair Avenue, approximately 365m via road to the east
- Vacant land at Mountain View Drive, approximately 800m via road to the north
- Verge land at the corner of Ballina Road and High Street

The closest playground and sports field is Clifford Park which is within a 1000m radius of the site.

15 Lee Crescent, Goonellabah – Lot 11, DP 248490

This is a vacant parcel of Council-owned land at the end of a residential cul-de-sac that does not contain any play or recreational equipment. Key characteristics of the land include:

- 1,042m²
- Average slope of 14%
- All trees on this property are located on the rear boundary. It is unlikely that future development would require significant tree removal or pruning.
- A NBN line dissects the site and may need moving or application of an easement – further review will be carried out as part of the Planning Proposal or sale
- Residents of this street received a grant to beautify this parcel of Public Open Space in 2005 – consultation with neighbours will be carried out as part of the Planning Proposal

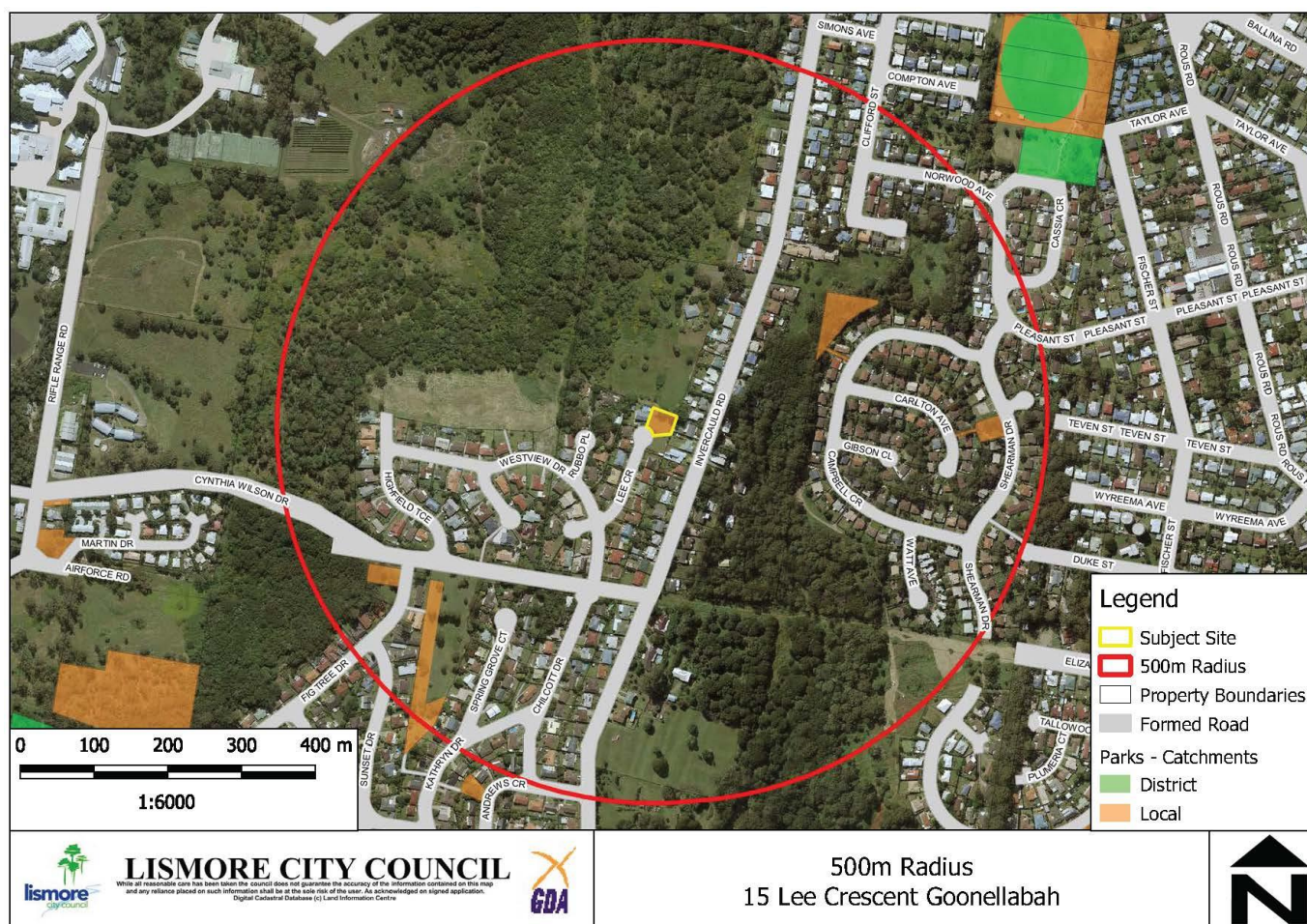


Image 5 – 15 Lee Crescent, imagery taken April 2022

	Current Characteristic	Proposed Characteristic
Classification	Community	Operational
Zone	RE1 Public Recreation	R1 General Residential
Height of Building	NA	8.5m
Minimum Lot Size	NA	400m ²

There are four (4) existing parcels of Public Open Space, classified as Local Parks, within a 500m radius of the site:

- Vacant land off Invercauld Road, to the rear of Gundurimba Creek, approximately 770m via road
- Shearman Drive playground, approximately 2000m via road or 1000m via pedestrian link
- Vacant land off Cynthia Wilson Drive, approximately 440m via road
- Vacant land on the corner of Cynthia Wilson Drive and Fig Tree Drive, approximately 500m via road

Land value and revenue

Detailed land valuations have not been carried out at this stage. This is because the process of reclassifying and rezoning land can take around 12 months. By this time, it is highly likely that land values would have significantly changed. Instead, Council's Property Officer has provided the below estimated values based on their experience and land values in surrounding areas. The prices present a broad indication of what each block is likely to achieve if sold in the current market assuming a dwelling is permitted to be erected and all constraints have been addressed (i.e. correct zoning, no caveats/restrictions on title). The prices shown below may change significantly and unexpectedly over a relatively short period of time. Given the likely timeframe to rezone the land an updated sale price would be required once rezoning has occurred.

Please note: There is currently limited supply of residential land available in the Lismore Area, as such prices are inflated. The vacant land market has all the making of a perfect storm; given the recent disaster the demand for contractors is high, construction costs are rising, there are supply chain issues, inflationary pressures and the threat for further rate rises. There are also a number of large land developments in the process that could potentially hit the market at the same time, if this meets the current pent-up demand for residential land, there is the potential for an oversupply which would have a detrimental impact on market value (at the time of writing this there has been no announcements made regarding land swaps etc following the floods).

Land Parcel	Estimated Value
8 Holmesleigh Drive	\$380,000 - \$400,000
2 Kareela Avenue	\$400,000 - \$420,000
19 Julie Crescent	\$500,000 - \$550,000
7 Parkwalk Drive	\$250,000 - \$275,000
15 Lee Crescent	\$390,000 - \$410,000

The broad indications show that the reclassification and rezoning of the five (5) parcels could result in a potential total income ranging from \$1,920,000 to \$2,055,000 for the Council Pocket Park fund.

The Pocket Park Fund would continue to be used as co-contribution for grants for future open space projects within our major parks including:

- Wade Park
- Heritage Park
- Lismore Youth Precinct
- Kadina Park
- Nesbitt Park

A report will be presented to Council for resolution prior to the sale of each parcel and prior to withdrawing funds for specific projects.

Planning pathway

To change the classification and zoning of the land parcels, an amendment to the Lismore LEP 2012 would be needed. The change to the Lismore LEP 2012 would require:

- Amendment to Schedule 4 *Classification and reclassification of Public Land*
- Amendment to the following LEP Maps
 - Land Zoning
 - Height of Buildings
 - Minimum Lot Size

In order to make an amendment to the Lismore LEP a Planning Proposal must be prepared and submitted to the NSW Department of Planning and Environment (DPE). Typically, the process of preparing a Planning Proposal through to gazettal of the LEP amendment takes around 12 months and includes public and agency consultation. The public consultation will include broad advertisement as well as letters to adjoining landowners of each of the subject land parcels.

Following the close of the public exhibition period, a public hearing will be held specifically relating to the reclassification of the land from 'Community' to 'Operational'. This will be carried out in accordance with section 29 of the Local Government Act 1993. Once all submissions have been reviewed, a further report to Council will be made.

An indicative timeframe for the process is below

- Report to Council for support in principle – **July 2022**
- Report to Council for support to submit a Planning Proposal – **August 2022**
- Gateway determination issued – **September 2022**
- Agency and public consultation – **October 2022**
- Public Hearing – **November 2022**
- Consideration of submissions – **December 2022**
- Council consideration of the proposal post exhibition – **February 2023**
- Anticipated date of submission to the Department for notification of the making of the LEP – **March 2023**
- Anticipated date for plan making – **April 2023**

Comments

Finance

Not required.

Community Recreation Planner

The pocket park divestment strategy is an ongoing strategy of Council that provides a saving from maintenance. The upgrades that have been achieved at parks including Heritage, Nesbitt and Kadina have been well received by the community.

Conclusion

This report is seeking support in principle and for Staff to take the next step in the process, which would be to prepare a Planning Proposal for the five (5) parcels to change from 'Community' to 'Operational' and rezoned from RE1 Public Recreation to R1 General Residential. Pending this, the sites could then be considered for sale and the revenue could contribute to funding Lismore's major park upgrades.

Should a Planning Proposal be supported, it will be reported back to Council for further consideration prior to submission to DPE.

Attachment/s

There are no attachments for this report.

Report

Subject	Councillors Expenses and Facilities Policy - January 2022 to June 2022 Reporting
TRIM Record No	BP22/345:EF19/668-4
Prepared by	Executive Assistant - General Manager and Mayor & Councillors
Reason	To satisfy the six monthly reporting requirement of the Councillors Expenses and Facilities Policy
Strategic Theme	Leadership and participation
Strategy	Our decisions and actions are open, transparent, effective and in the interests of all.
Action	Manage Council meetings and provide support to Councillors in fulfilling their role.

Executive Summary

The Councillors Expenses and Facilities Policy was adopted by Council in September 2017.

The policy requires a six monthly report to Council on the provision of expenses and facilities to councillors including a summary of expenses for each Councillors.

The period covered by this report is from 1 January to 30 June 2022.

The adopted report will be published on the Council's website.

Recommendation

That Council receive and note the report.

Background

Policy 1.2.23 – Councillors Expenses and Facilities was adopted by Council in September 2017. The policy sets requirements for reporting back to Council on a six monthly basis. In particular, Clause 15 Reporting states:-

15.1. Council will report on the provision of expenses and facilities to Councillors as required in the Act and Regulations.

15.2. Detailed reports on the provision of expenses and facilities to Councillors will be publicly tabled at a Council meeting every six months and published in full on Council's website. These reports will include expenditure summarised for each Councillor.

Attachment/s

1. [Councillor expenses worksheet 2021_22 Jan-June](#)

	Office Equipment and Facilities	Telephone calls	Conferences & Seminars	Training and Professional Development	Interstate Visits	Overseas Visits	Expenses for spouse	Child care
Bird	-	-	-	-	-	-	-	-
Bing	-	-	-	-	-	-	-	-
Cook	-	-	-	-	-	-	-	-
Ekins	-	40.00	1,423.80	-	-	-	-	-
Guise	-	-	-	-	-	-	-	-
Gordon	-	-	-	-	-	-	-	-
Colby	-	-	-	-	-	-	30.00	-
Krieg	-	-	3,164.00	-	-	-	65.00	-
Jensen	-	-	1,423.80	-	-	-	-	-
Hall	-	-	-	-	-	-	-	-
Rob	-	-	-	655.33	-	-	-	-
Non-specific	-	-	-	-	-	-	-	-
Total	-	40.00	6,011.60	655.33	-	-	95.00	-

Report

Subject	Recruitment Process and Selection Panel
TRIM Record No	BP22/451:EF22/94
Prepared by	Governance & Customer Service Manager
Reason	Council determine members of the selection panel and approve the recruitment process for the position of General Manager
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The council's governing body is responsible for recruiting the general manager. The governing body of council should delegate the task of recruitment to a selection panel and approve the recruitment process. The panel will report back to the governing body of council on the process and recommend the most meritorious applicant for appointment by the Council.

Recommendation

That Council:

1. appoint the Mayor, the Deputy Mayor and Councillor to the selection panel.
2. delegate authority to the above members of the selection panel to appoint an independent member of the panel.
3. delegate authority to the selection panel to appoint a recruitment consultant to run the recruitment process once a request for quotation process has been undertaken.

Background

The first step in the recruitment process for a permanent General Manager is Council determining a selection panel and approving the recruitment process. The Office of Local Government has published Guidelines for the Appointment and Oversight of General Managers which advises the following:

The selection panel should consist of at least the mayor, the deputy mayor, another councillor and, ideally, a suitably qualified person independent of the council. The selection panel membership should remain the same throughout the entire recruitment process. Selection panels must have at least one male and one female member (other than in exceptional circumstances).

The appointment of an independent member could vary depending on the councillor appointed by the governing body as there is a requirement to have both male and female on the panel. Therefore the appointment of the independent member should be delegated to the councillors on the panel.

The selection panel is responsible for preparing a report to the council's governing body that:

- outlines the selection process
- recommends the most meritorious applicant with reasons

- recommends an eligibility list if appropriate
- recommends that no appointment is made if the outcome of interviews is that there are no suitable applicants.

This report should be confidential and reported to a closed meeting of council. The council's governing body must by resolution approve the position of the general manager being offered to the successful candidate before the position is actually offered to that candidate.

The contract of the Interim General Manager is current until 8 February 2023, the recruitment process needs to begin now to ensure it is complete by that date.

Comments

Finance

The recommendation as printed is supported. The 2022/23 budget includes funding to undertake the recruitment of the position.

Public consultation

Not required.

Attachment/s

There are no attachments for this report.

Report

Subject	Annual Mayor and Councillor Fees
TRIM Record No	BP22/475:EF19/25-4
Prepared by	Executive Assistant - General Manager and Mayor & Councillors
Reason	For the Council to determine the maximum fees payable to the Mayor and Councillors for 2022/23
Strategic Theme	Leadership and participation
Strategy	Our decisions and actions are open, transparent, effective and in the interests of all.
Action	Manage Council meetings and provide support to Councillors in fulfilling their role

Executive Summary

The Local Government Remuneration Tribunal each year determines the range of annual fees to be paid to Mayors and Councillors. Council needs to determine within the category range the fees to be paid.

Recommendation

That Council determine the fees payable to the Mayor and Councillors for 2022/23.

Background

Pursuant to Section 241 of the *Local Government Act 1993*, the Local Government Remuneration Tribunal has determined the annual fees to be paid to Mayors and Councillors during the period 1 July 2022 to 30 June 2023. The Tribunal has determined a 2 per cent increase in the minimum and maximum fees. The full determination can be viewed at <https://www.remtribunals.nsw.gov.au/local-government/current-lgrt-determinations>

Lismore City Council is categorised as a Regional Centre. Council needs to determine the annual fee to be paid within the minimum and maximum range as determined by the Tribunal. If Council does not fix a fee, the amount defaults to the minimum.

Councillor Fee

The Councillor fee for Regional Centre councils is a minimum fee of \$14,380 each (\$158,180 in total) and a maximum fee of \$25,310 each (\$278,410 in total). The fee included in the budget by Council for the 2022/23 financial year was the total amount of \$272,900 (\$24,809 each).

Mayoral Fee

The Mayoral fee for Regional Centre councils is a minimum fee of \$29,920 and a maximum fee of \$62,510. The fee included in the budget by Council for the 2022/23 financial year was the amount of \$61,300.

Comments

Finance

If Council adopts the maximum fee as outlined within this report, there will be an unfavourable and unfunded impact to the 2022/23 Operational Plan of \$7,400.

Being \$6,100 in councillor fees (increase in allowances of \$5,500 and \$600 in additional superannuation) and Mayoral Fees of \$1,300 (increase in the fee of \$1,200 and \$100 in additional superannuation).

Attachment/s

There are no attachments for this report.

Report

Subject	2022 Local Government NSW Conference
TRIM Record No	BP22/460:EF19/25-4
Prepared by	Executive Assistant - General Manager and Mayor & Councillors
Reason	Council to determine voting delegates and motions to be approved and submitted.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The 2022 Local Government NSW Conference will be held at the Crown Plaza Hunter Valley from Sunday 23 to Tuesday 25 October 2022.

Council is required to determine its three voting delegates and any proposed motions to be submitted to the Conference.

Recommendation

That Council determines the:

1. three voting delegates to the 2022 Local Government NSW Conference.
2. motions to be submitted to the 2022 Local Government NSW Conference.

Background

The 2022 Local Government NSW (LGNSW) Conference will take place at the Crown Plaza Hunter Valley from Sunday 23 to Tuesday 25 October 2022.

The Conference is the main policy making event for the local government sector where issues are debated and motions put forward for consideration by delegates.

Lismore City Council is entitled to three voting delegates. The Mayor is usually one, but this is not compulsory. A decision on voting delegates is required to meet the deadline to provide the names to LGNSW.

For three councillors attending, this is estimated to cost \$7,000, which includes conference fees and accommodation.

Councillors were asked to submit notices of motion for consideration. No submissions were received by the 31 July deadline.

Comments

Finance

The budget included in the 2022/23 Operational Plan is sufficient to cover the estimated \$7,000. The recommendation as printed is therefore supported.

Attachment/s

There are no attachments for this report.

Report

Subject	Investments - July 2022
TRIM Record No	BP22/465:EF22/122
Prepared by	Management Accountant
Reason	Required by Local Government Act 1993, Local Government (General) Regulation 2021 and Council's Investment Policy
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Investments as of 30 July 2022 are estimated to be \$133,262,000.

The interest rate reported for July 2022 is estimated to be 1.35% which is below the 90 Day Bank Bill Index of 2.21%. The final interest return may vary due to actual returns achieved on investments advised after month end.

Recommendation

That the report be received and noted.

Background

The *Local Government Act 1993* (Section 625), *Local Government (General) Regulations 2021* (Clause 212) and Council's Investment Policy requires a monthly report be submitted to Council on investments. The report is to include the source and amount of funds invested, investment portfolio performance for the period and a statement of compliance in relation to the requirements of the *Local Government Act 1993*.

Report on Investments

- | | |
|--|---------------|
| • Confirmation of Investments – at Market Value – 30 June 2022 | \$123,962,000 |
| • Estimated Investments – at Market Value – 30 July 2022 | \$133,262,000 |

Investments increased by \$4.60 million from the date of writing the June 2022 report until the end of the month. This was due to grant funding received from Public Works Advisory in relation to the Emergency and Immediate Reconstruction works carried out on water and wastewater infrastructure of \$8.83 million offset by creditor payments made at month end of \$4.64 million. Investments increased by a further \$9.30 million during July. This was due to the receipt of \$2.00 million property flood insurance, \$604,000 artwork flood insurance, \$1.720 million motor vehicle/plant flood insurance, \$6.31 million Service NSW payment of rates for flood affected properties, \$786,900 Local Roads and Community Infrastructure Round 2 grant funds along with a water rates instalment due during the month. These funds received were offset by payments to creditors and the normal staff payroll during the month. Creditor's payments are still quite inflated at present due to the additional work being carried out after the recent flooding events.

The current rate of return on investments for July 2022 is estimated to be 1.35% using actual returns where available, and estimates based on the previous period balances and interest rates. This is below the 90

Day Bank Bill Index of 2.21%. Short term (less than 12 month) interest rates have continued to rise quickly in the last month. This is still being influenced not only by the increase in the cash rate, but also competition for funding in the marketplace, rising costs of living and high inflation. Council has been investing with some favourable interest rates; however, it will take some time as investments come due and are reinvested for the current rate of return to increase over the whole portfolio.

The estimated interest earned for July 2022 is \$145,494 which is more than the pro rata budget to date of \$72,075. This is a favourable variance of \$73,419. The budgeted interest for the year was based on market conditions in March/April 2022 at the time of preparing the budget. Market conditions have changed since this time. The interest earned on investments will be monitored over the coming months and a budget adjustment reported in the September Quarterly Budget Review if required.

Compliance with Policy Requirements

The current investment policy was adopted by Council in May 2020.

The following is a summary of where Council's investments currently sit in relation to the adopted policy requirements:

Long Term Rating	Maximum Portfolio Limit	Current Holding
AAA	100%	
AA+ to AA-	100%	53%
A+ to A	100%	16%
A-	40%	
BBB+	20%	17%
BBB	10%	8%
BBB- and below – Local ADIs	5%	3%
BBB- and below – other *	5%	3%
TCorp	100%	

*Note – the total for this long-term rating category is below the maximum portfolio limit however the individual institution limits are still outside policy requirements. A move towards policy compliance in this space is continuing.

Fossil Free (Ethical) Investments

As part of the current policy framework and within the limits of prevailing legislation, Council's investments will be made in consideration of the principals of ethical investment management.

To meet the adopted Investment Policy requirements, the holdings in some institutions that are fossil fuel free have been divested as they do not meet the rating criteria.

Following is a summary of the movement:

Type of Investment	As reported for June 2022		As reported for July 2022	
	Value of Investments	% Of Portfolio	Value of Investments	% Of Portfolio
No Investment in Fossil Fuel Industry	\$34,000,000	28%	\$41,000,000	31%
Investment in Fossil Fuel Industry	\$85,362,000	72%	\$92,262,000	69%

The investment market remains challenging, and Council cannot control the availability of suitable investments or the rates of return. Where possible investments are made to achieve the intention of the investment policy of Council around fossil fuels, however this must be made within the constraints of the

current market, the availability of investment products and maintaining a diverse portfolio that minimises the risk to Council's capital.

The information for the assessment has been sourced from the website www.marketforces.org.au which is an affiliate project of the Friends of the Earth Australia. This is still considered the best information available to make this assessment.

Comments

Responsible Accounting Officer

All investments with various financial institutions have been made in accordance with the *Local Government Act 1993* and *Local Government (General) Regulations 2005*. A new investment policy was adopted in May 2020 moving towards the framework suggested by TCorp to comply with its borrowing requirements. A move towards the policy is continuing, taking into consideration the difficulty of investing during COVID-19 and now the cashflow requirements of the recent flood event. The portfolio is now sitting within maximum portfolio limits for rating categories however there are still some investments that do not satisfy the limit requirements per institution.

Conclusion

A report on investments is required to be submitted to Council monthly. As of 30 July 2022, investments total \$133,262,000 and the annualised rate of return is estimated at 1.35%.

Attachment/s

1. [Download](#) Capital Value Movements including name of institution, purchase date and maturity
2. [Download](#) Estimated Interest showing interest rate and estimated interest earned for the year
3. [Download](#) Total Investment Portfolio held by month and Weighted Average Interest Rate - Graphical
4. [Download](#) Investment by Type - Graphical
5. [Download](#) Investment by Institution as a percentage of total portfolio - Graphical

**Capital Value Movements
Summary of Investments held as at
31 July 2022**

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Cash Based Returns					
CBA Business On Line Banking A/C	Cash Management Account	AA-	N/A	N/A	\$ 17,262,000
AMP Bank Cash Management Account	Cash Management Account	BBB	N/A	N/A	\$ 3,000,000
Bank of Sydney Ltd	Term Deposit	Not Rated	29/7/2021	29/7/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	29/7/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	1/2/2022	1/8/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	8/3/2022	5/8/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	7/4/2022	5/8/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	21/9/2021	17/8/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	20/8/2020	18/8/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	22/11/2021	19/8/2022	\$ 1,000,000
Auswide Bank Ltd	Term Deposit	BBB-	20/8/2019	23/8/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	25/8/2021	25/8/2022	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	25/8/2021	25/8/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	28/2/2022	29/8/2022	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	1/9/2021	1/9/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	14/12/2021	12/9/2022	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	30/9/2021	30/9/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	16/11/2021	12/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	17/1/2022	14/10/2022	\$ 1,000,000
ME Bank	Term Deposit	BBB	22/4/2022	19/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	20/10/2021	20/10/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	21/1/2022	21/10/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	26/4/2022	24/10/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	26/4/2022	24/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	25/3/2022	25/10/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	25/7/2022	8/11/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	11/2/2022	11/11/2022	\$ 2,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	19/11/2021	18/11/2022	\$ 2,000,000
National Australia Bank	Term Deposit	AA-	22/6/2022	21/11/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	23/6/2022	21/11/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	22/11/2021	22/11/2022	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	26/4/2022	22/11/2022	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	7/6/2022	7/12/2023	\$ 4,000,000
Bank of Queensland	Term Deposit	BBB+	10/5/2022	12/12/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	14/6/2022	13/12/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	19/1/2022	15/12/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	20/12/2021	20/12/2022	\$ 4,000,000
Westpac Banking Corporation	Term Deposit	AA-	21/2/2022	21/12/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	25/7/2022	22/12/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	8/7/2022	4/1/2023	\$ 2,000,000
Suncorp	Term Deposit	A+	19/4/2022	16/1/2023	\$ 2,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	8/7/2022	18/1/2023	\$ 2,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	25/1/2022	25/1/2023	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	25/2/2022	25/1/2023	\$ 2,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	26/4/2022	25/1/2023	\$ 2,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	31/1/2022	27/1/2023	\$ 2,000,000
IMB Bank	Term Deposit	BBB	22/7/2022	7/2/2023	\$ 1,000,000
Summerland Credit Union	Term Deposit	Not Rated	17/2/2021	17/2/2023	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	19/2/2022	19/2/2023	\$ 4,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	21/2/2022	21/2/2023	\$ 2,000,000
National Australia Bank	Term Deposit	AA-	25/2/2022	27/2/2023	\$ 2,000,000

**Capital Value Movements
Summary of Investments held as at
31 July 2022**

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Suncorp	Term Deposit	A+	22/7/2022	10/3/2023	\$ 1,000,000
Suncorp	Term Deposit	A+	17/3/2022	17/3/2023	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	22/6/2022	20/3/2023	\$ 2,000,000
National Australia Bank	Term Deposit	AA-	24/6/2022	21/3/2023	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	8/7/2022	11/4/2023	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	19/7/2022	19/4/2023	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	29/6/2022	26/4/2023	\$ 1,000,000
Suncorp	Term Deposit	A+	26/4/2022	26/4/2023	\$ 2,000,000
Suncorp	Term Deposit	A+	8/7/2022	4/5/2023	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	9/5/2022	9/5/2023	\$ 2,000,000
AMP Bank	Term Deposit	BBB	17/5/2022	17/5/2023	\$ 3,000,000
Suncorp	Term Deposit	A+	25/7/2022	22/5/2023	\$ 2,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	25/7/2022	20/6/2023	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	24/7/2022	24/6/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA+	29/6/2022	29/6/2023	\$ 3,000,000
National Australia Bank	Term Deposit	AA-	29/7/2021	31/7/2023	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	31/7/2023	\$ 1,000,000
Rabobank	Term Deposit	Not Rated	30/7/2018	1/8/2023	\$ 1,000,000
Rabobank	Term Deposit	Not Rated	13/12/2018	13/12/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	25/8/2021	25/8/2025	\$ 1,000,000
Investment on Hand					\$ 133,262,000

Investments Redeemed from 28/06/2022 to 26/07/2022 (Note 2)

National Australia Bank	Term Deposit	AA-	29/6/2021	29/6/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	2/9/2021	29/6/2022	\$ 1,000,000
Commonwealth Bank of Australia	Term Deposit	AA-	20/1/2022	19/7/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	24/3/2022	22/7/2022	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	24/3/2022	24/7/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	25/1/2022	25/7/2022	\$ 1,000,000

\$ 9,000,000

- Note 1: Market Value is the Capital Value of the Investment.
- Note 2: These investments were redeemed during the period. They are not part of the Balance of Investments Held.
- Note 3: These Counterparties & Products are authorised under the Minister's Investment Order. The rating is based on the entities long term S & P Rating.
- Note 4: "Indicative" Source of Funds based on the restricted/unrestricted fund balances as at reporting date.

"Indicative" Source of Funds (Note 4)

Externally Restricted - Water Fund	17,723,377
Externally Restricted - Wastewater Fund	41,737,857
Externally Restricted - Other	30,655,567
Externally Restricted - RTRL	2,053,493
Internally Restricted	41,091,707
Unrestricted	-
	<u>\$ 133,262,000</u>

Estimated Interest
on Investments
for July 2022

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Cash Based Returns						
CBA Business On Line Banking A/C	Cash Management Account	AA-	0.45%	\$ 17,262,000	\$ 6,597	0.06%
AMP Bank Cash Management Account	Cash Management Account	BBB	0.50%	\$ 3,000,000	\$ 1,274	0.01%
Bank of Sydney Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 255	0.00%
Bank of Queensland	Term Deposit	BBB+	0.45%	\$ 1,000,000	\$ 382	0.00%
P & N Bank	Term Deposit	BBB	0.40%	\$ 1,000,000	\$ 340	0.00%
Suncorp	Term Deposit	A+	0.51%	\$ 1,000,000	\$ 433	0.00%
National Australia Bank	Term Deposit	AA-	0.78%	\$ 2,000,000	\$ 1,325	0.01%
Suncorp	Term Deposit	A+	0.35%	\$ 3,000,000	\$ 892	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,189	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 340	0.00%
Auswide Bank Ltd	Term Deposit	BBB-	1.80%	\$ 1,000,000	\$ 1,529	0.01%
Suncorp	Term Deposit	A+	0.35%	\$ 1,000,000	\$ 297	0.00%
Commonwealth Bank of Australia	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 696	0.01%
ME Bank	Term Deposit	BBB	0.55%	\$ 1,000,000	\$ 467	0.00%
Commonwealth Bank of Australia	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 696	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 340	0.00%
Commonwealth Bank of Australia	Term Deposit	AA-	0.36%	\$ 2,000,000	\$ 612	0.01%
Suncorp	Term Deposit	A+	0.48%	\$ 1,000,000	\$ 408	0.00%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 1,000,000	\$ 595	0.01%
ME Bank	Term Deposit	BBB	1.27%	\$ 1,000,000	\$ 1,079	0.01%
Bank of Queensland	Term Deposit	BBB+	0.43%	\$ 2,000,000	\$ 730	0.01%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,189	0.01%
ME Bank	Term Deposit	BBB	1.47%	\$ 1,000,000	\$ 1,248	0.01%
National Australia Bank	Term Deposit	AA-	1.30%	\$ 1,000,000	\$ 1,104	0.01%
Bank of Queensland	Term Deposit	BBB+	0.90%	\$ 1,000,000	\$ 764	0.01%
P & N Bank	Term Deposit	BBB	2.48%	\$ 1,000,000	\$ 408	0.00%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,189	0.01%
Commonwealth Bank of Australia	Term Deposit	AA-	0.53%	\$ 2,000,000	\$ 900	0.01%
National Australia Bank	Term Deposit	AA-	2.72%	\$ 2,000,000	\$ 4,620	0.04%
ME Bank	Term Deposit	BBB	2.77%	\$ 1,000,000	\$ 2,353	0.02%
Suncorp	Term Deposit	A+	0.52%	\$ 1,000,000	\$ 442	0.00%
Commonwealth Bank of Australia	Term Deposit	AA-	1.82%	\$ 1,000,000	\$ 1,546	0.01%
Westpac Banking Corporation	Term Deposit	AA-	3.25%	\$ 4,000,000	\$ 11,041	0.10%
Bank of Queensland	Term Deposit	BBB+	2.15%	\$ 1,000,000	\$ 1,826	0.02%
P & N Bank	Term Deposit	BBB	2.96%	\$ 1,000,000	\$ 2,514	0.02%
National Australia Bank	Term Deposit	AA-	0.64%	\$ 1,000,000	\$ 544	0.01%
Suncorp	Term Deposit	A+	0.62%	\$ 4,000,000	\$ 2,106	0.02%
Westpac Banking Corporation	Term Deposit	AA-	0.81%	\$ 2,000,000	\$ 1,376	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	3.07%	\$ 1,000,000	\$ 505	0.00%
National Australia Bank	Term Deposit	AA-	3.07%	\$ 2,000,000	\$ 3,869	0.04%
Suncorp	Term Deposit	A+	1.48%	\$ 2,000,000	\$ 2,514	0.02%
Commonwealth Bank of Australia	Term Deposit	AA-	3.40%	\$ 2,000,000	\$ 4,285	0.04%
Commonwealth Bank of Australia	Term Deposit	AA-	0.76%	\$ 2,000,000	\$ 1,291	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.90%	\$ 2,000,000	\$ 1,529	0.01%
Commonwealth Bank of Australia	Term Deposit	AA-	2.12%	\$ 2,000,000	\$ 3,601	0.03%
Commonwealth Bank of Australia	Term Deposit	AA-	0.76%	\$ 2,000,000	\$ 1,291	0.01%

**Estimated Interest
on Investments
for July 2022**

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
IMB Bank	Term Deposit	BBB	3.48%	\$ 1,000,000	\$ 858	0.01%
Summerland Credit Union	Term Deposit	Not Rated	0.60%	\$ 1,000,000	\$ 510	0.00%
Westpac Banking Corporation	Term Deposit	AA-	0.97%	\$ 4,000,000	\$ 3,295	0.03%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.82%	\$ 2,000,000	\$ 1,393	0.01%
National Australia Bank	Term Deposit	AA-	0.82%	\$ 2,000,000	\$ 1,393	0.01%
Suncorp	Term Deposit	A+	3.68%	\$ 1,000,000	\$ 907	0.01%
Suncorp	Term Deposit	A+	1.15%	\$ 1,000,000	\$ 977	0.01%
Commonwealth Bank of Australia	Term Deposit	AA-	3.68%	\$ 2,000,000	\$ 6,251	0.06%
National Australia Bank	Term Deposit	AA-	3.24%	\$ 2,000,000	\$ 5,504	0.05%
Bendigo Adelaide Bank	Term Deposit	BBB+	3.47%	\$ 1,000,000	\$ 2,187	0.02%
Commonwealth Bank of Australia	Term Deposit	AA-	3.92%	\$ 2,000,000	\$ 2,578	0.02%
Bendigo Adelaide Bank	Term Deposit	BBB+	3.72%	\$ 1,000,000	\$ 3,159	0.03%
Suncorp	Term Deposit	A+	1.93%	\$ 2,000,000	\$ 3,278	0.03%
Suncorp	Term Deposit	A+	3.60%	\$ 2,000,000	\$ 4,537	0.04%
Bendigo Adelaide Bank	Term Deposit	BBB+	2.72%	\$ 2,000,000	\$ 4,620	0.04%
AMP Bank	Term Deposit	BBB	2.90%	\$ 3,000,000	\$ 7,389	0.07%
Suncorp	Term Deposit	A+	3.75%	\$ 2,000,000	\$ 1,233	0.01%
Commonwealth Bank of Australia	Term Deposit	AA-	4.03%	\$ 2,000,000	\$ 1,325	0.01%
Westpac Banking Corporation	Term Deposit	AA-	3.61%	\$ 1,000,000	\$ 692	0.01%
National Australia Bank	Term Deposit	AA+	3.72%	\$ 3,000,000	\$ 9,478	0.09%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 934	0.01%
Bank of Queensland	Term Deposit	BBB+	0.60%	\$ 1,000,000	\$ 510	0.00%
RaboBank	Term Deposit	Not Rated	3.45%	\$ 1,000,000	\$ 2,930	0.03%
RaboBank	Term Deposit	Not Rated	3.35%	\$ 1,000,000	\$ 2,845	0.03%
National Australia Bank	Term Deposit	AA-	0.95%	\$ 1,000,000	\$ 807	0.01%
Investment on Hand				\$ 133,262,000	\$ 144,120	1.34%

Note 1

Interest on Investments Redeemed during month to reporting date (26/07/2022)

Commonwealth Bank of Australia	Term Deposit	AA-	0.45%	\$ 2,000,000	\$ 468	0.00%
Suncorp	Term Deposit	A+	0.58%	\$ 1,000,000	\$ 350	0.00%
Westpac Banking Corporation	Term Deposit	AA-	0.44%	\$ 1,000,000	\$ 289	0.00%
P & N Bank	Term Deposit	BBB	0.39%	\$ 1,000,000	\$ 267	0.00%

1.35%

\$ 145,494

Investment Income Earned vs. Budget Year to Date

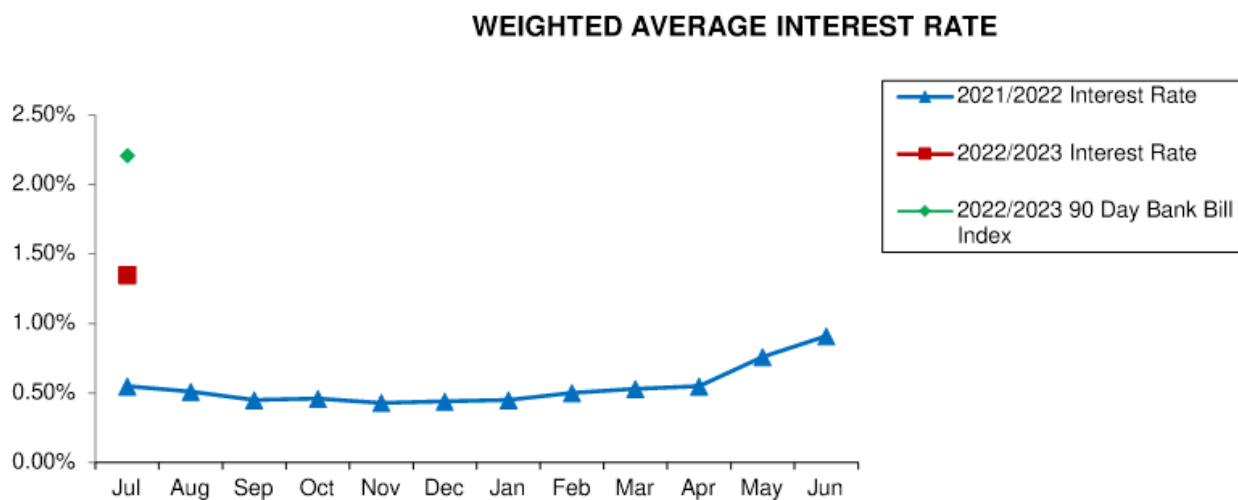
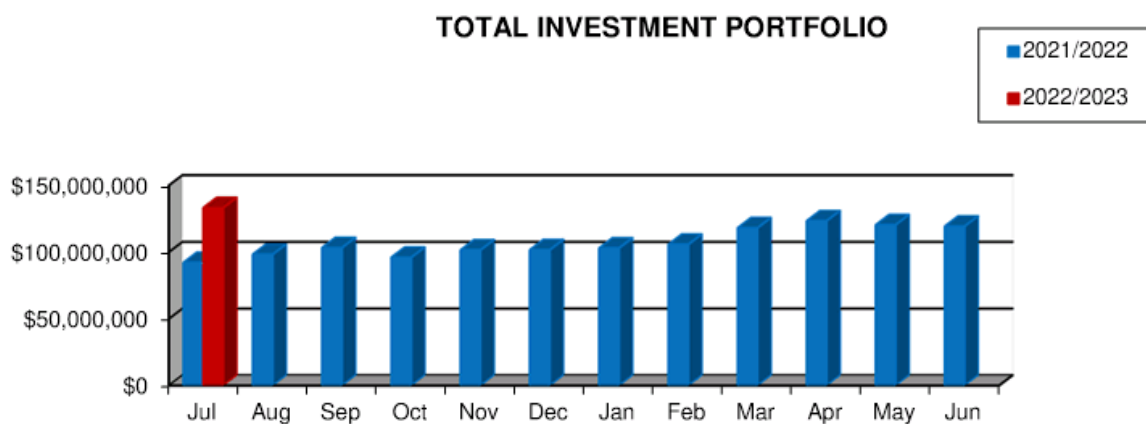
Estimated interest earned to date	\$ 145,494
Pro Rata annual budget	\$ 72,075

Note 1: Estimated Interest for Period is calculated by multiplying the annualised rate by the purchase price and reflects both interest accrued and received.

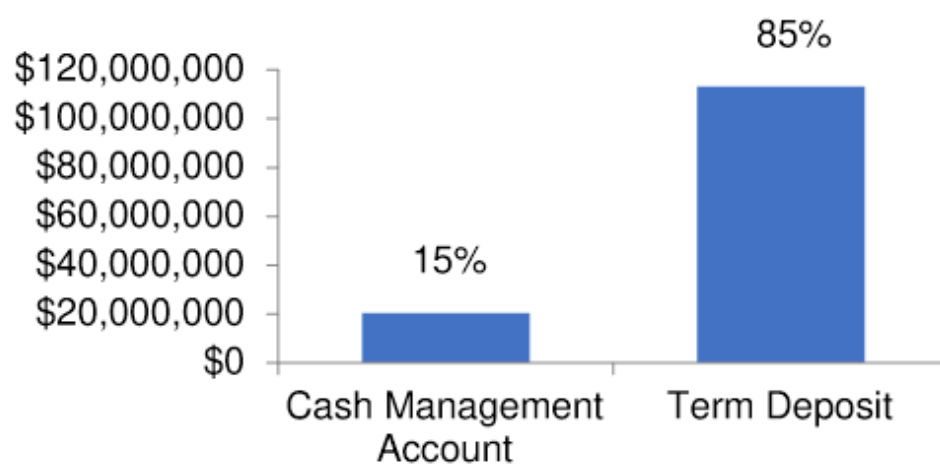
Note 4: "Indicative" Interest Earned based on the restricted/unrestricted fund balances as at reporting date.

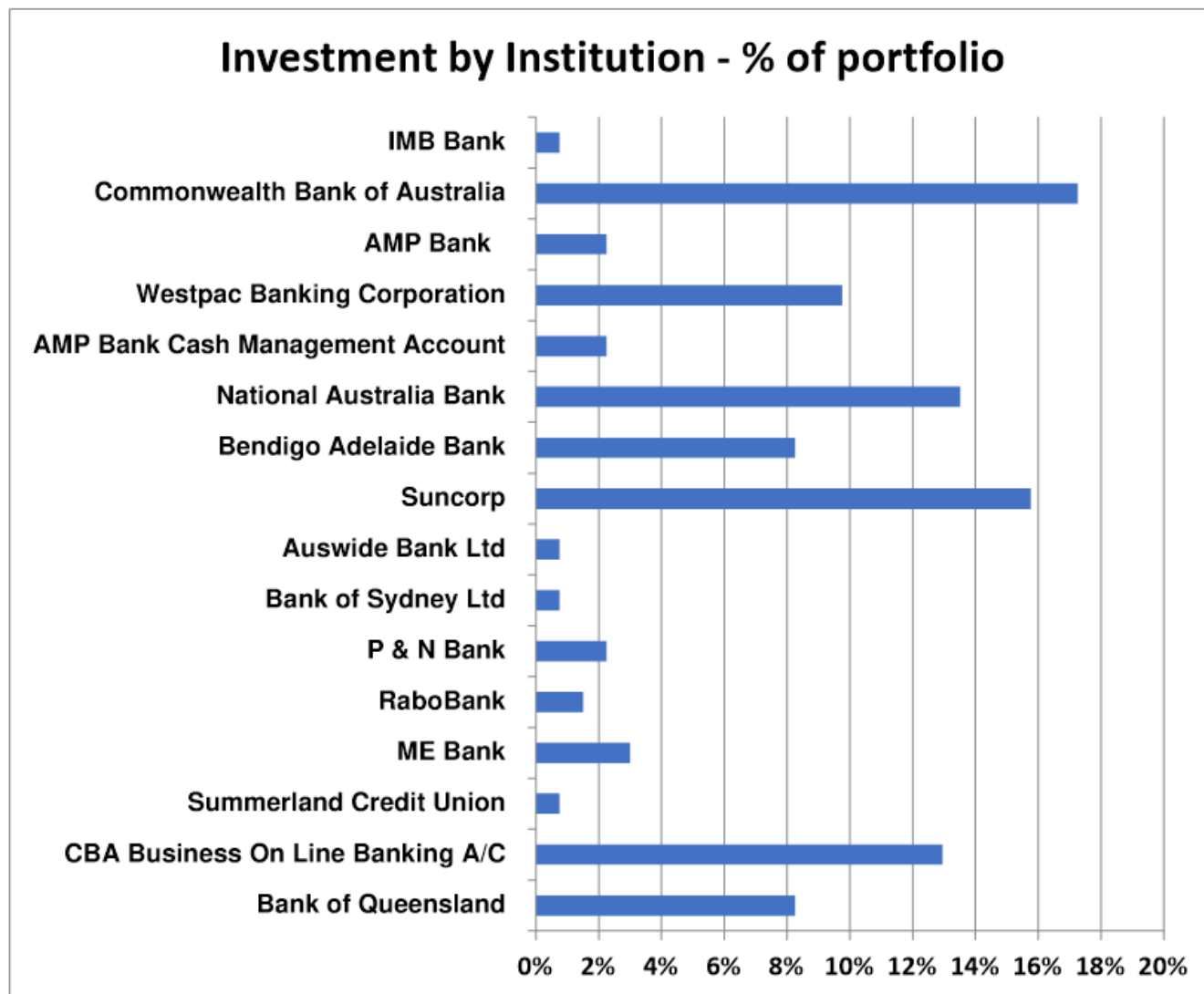
"Indicative" Interest Earned

Externally Restricted - Water Fund	\$ 19,350
Externally Restricted - Wastewater Fund	\$ 45,569
Externally Restricted - Other	\$ 33,470
Externally Restricted - RTRL	\$ 2,242
Internally Restricted	\$ 44,864
Unrestricted	\$ -
	\$ 145,494



INVESTMENT BY TYPE





Report

Subject	Amendment to Chapter 8 of the Development Control Plan - Interim changes to flood controls for residential development
TRIM Record No	BP22/471:EF22/89
Prepared by	Strategic Planner
Reason	To amend current flood controls for residential re-development in Lismore to provide guidance to those looking to build back in the short-term.
Strategic Theme	Our built environment
Strategy	Our built environment is managed and enhanced to meet the needs of our growing community.
Action	Provide development assessments in a timely, customer friendly and sustainable manner.

Executive Summary

A small number of amendments have been made to sections of this chapter relating to residential development in the Floodway, High Flood Risk and Flood Fringe areas in response to the flood events of February and March 2022. These interim planning controls are intended to provide a higher level of safety for residents wanting to replace or raise their house and provide some certainty in understanding Council's requirements for rebuilding in flood impacted areas. The drafted controls increase the required minimum habitable floor level for any residential re-development.

A new chapter of the Development Control Plan relating to all developments within the flood planning area will be written upon completion of the Lismore Floodplain Risk Management Plan which is likely to redefine flood risk categories and the geographical area to which the categories apply.

Recommendation

That:

1. the amended Development Control Plan 2012 Part A Chapter 8, as identified in this report, go out to public exhibition for a period of 21 days.
2. Council confirms that should no objections be made during the public exhibition stage, the Development Control Plan comes into effect; or should any objections be raised, a further report be made back to Council prior to the Development Control Plan coming into effect outlining the submissions received and any subsequent changes.

Background

Part A, Chapter 8 of the Development Control Plan (DCP) relates to Flood Prone Land. The chapter permits development on flood prone land where it is appropriate to the degree of flooding hazard with the intention of minimizing the risk to life and damage to property.

The chapter classifies four flood categories that apply to different land parcels in Lismore, shown in table 1.

Table 1 – Current flood categories and permissibility

Flood Category	New Residential	Residential Alterations	New Commercial	New industrial
Floodway – This is where significant discharge of water occurs during floods, hence velocity and depths are high.	X	X	X	X
High Flood Risk Area – This is where there is potential for flooding to cause danger to personal safety and/ or loss or damage to light structures	X	✓*	✓*	✓*
Flood Fringe – this area is defined by the limit of the 1 in 100 Average Recurrence Interval (ARI) flood level (1% Annual Exceedance Probability).	✓**	✓*	✓*	✓*
Low Flood Risk – This area is defined by the Probably Maximum Flood (PMF) level, but beyond the 1% ARI Flood Fringe Area.	✓	✓	✓	✓

*= subject to criteria being met

** = infill only, subject to criteria being met

Whilst **new** residential development is prohibited in the Floodway and High-Risk Area, Section 5.9(3) of the Lismore Local Environmental Plan 2012 (LEP) enables homes that have been damaged or destroyed by a natural disaster to be repaired or replaced, as long as the development application is submitted no later than five (5) years after the natural disaster.

It is for this reason that Chapter 8 of the DCP has controls relating to the replacement, alteration and/ or raising of existing residential dwellings in the Floodway and High Flood Risk area as well as controls for new development in the Flood Fringe area.

Introduction

It must be noted that amendments put forward by this report are intended to be applied as soon as possible to give some guidance to those residents who are ready and wanting to build back. The changes are being proposed in response to the high numbers of queries being received by the Planning team from community members seeking clarity on how high they can build back. This question was also raised at recent public forums.

These changes are only intended to be provisional. Once the Lismore Floodplain Risk Management Plan is completed, or an interim report received, staff will be in a better position to consider more permanent controls that best achieve the objective of minimising risk to life and damage to property. This is likely to involve a whole re-write of the chapter as the flood risk categories, as well as where they apply, are likely to change.

Interim Amendments

Limited amendments have been made to Chapter 8. **The amendments relate only to the residential element** in the Floodway, High Flood Risk area and Flood Fringe area as highlighted in the table below. An introductory paragraph has been added at section 8.3 of the DCP chapter that clarifies the changes made are interim controls and that the chapter will be completely re-written in the near future. A marked-up version of DCP Chapter 8 can be found at attachment 1. The marked-up version shows text to be deleted in red strikethrough font and text to be added in green font.

Table 2 – summary of amendments

Flood Category	Type of development clause applies to (new or existing)	Proposed Amendment
Floodway	Replacement or raising	A new clause has been added to ensure all habitable floor areas are at or above the 0.2% AEP level (previously referred to as the 1 in 500-year ARI) plus 0.5 metres freeboard. <i>Currently, there is no provision relating to the minimum height for habitable floor areas.</i>
High Flood Risk Area	Replacement, raising or alteration	The existing clause has been amended to increase the level for habitable rooms to be at or above the 0.2% AEP level (previously referred to as the 1 in 500-year ARI) plus 0.5 metres freeboard. <i>Currently, replacement, alteration or raising of homes must be above the 1% AEP (previously referred to as the 1 in 100-year ARI).</i>
Flood Fringe	Replacement or raising	A new clause has been added to ensure all habitable floor areas are at or above the 0.2% AEP level (previously referred to as the 1 in 500-year ARI) plus 0.5 metres freeboard. <i>Currently, there is no minimum height provision for replacement, alteration or raising of homes.</i>
	New	The existing clause has been amended to increase the level for habitable rooms to be at or above the 0.2% AEP level (previously referred to as the 1 in 500-year ARI) plus 0.5 metres freeboard. <i>Currently, new infill development must be above the 1% AEP (previously referred to as the 1 in 100-year ARI).</i>
Low Flood Risk	NA	No changes proposed

Additionally, the amendments to the chapter now use the Australia-wide newly accepted terminology of **Annual Exceedance Probability (AEP)** rather than the previous **Average Recurrence Interval (ARI)** for the measurement/ communication of flood probability.

Average Recurrence Interval (ARI)

As stated by the Bureau of Meteorology, the use of Average Recurrence Interval (ARI) is now discouraged as it is problematic for frequent events in seasonal climates and leads to confusion with the public for rare events. It is a term which is easily misunderstood because the ARI of 1 in 100 does not mean that the event will only occur once every 100 years. In fact, for each and every year, there is a 1 in 100 chance that the flood level will be equaled or exceeded.

Annual Exceedance Probability (AEP)

The use of Annual Exceedance Probability (AEP) to describe the chance of a particular rainfall is preferred as it conveys more clearly the probability or chance that exists for each year. When using the AEP, the frequency of the event is communicated in a percentage of likelihood in any given year, rather than an average of occurrence. So, the 1 in 100-year ARI is now the 1% AEP, and the 1 in 500-year ARI is now

the 0.2% AEP. The use of AEP simplifies the language and clarifies that the probability relates to the likelihood and not the frequency.

Application of Amended Controls

The height of the 1% and 0.2% AEP peak level varies from site to site. This means that every resident seeking to rebuild will build back at a level specific to them. To give an indicative guide to the heights being set there are some general ranges that apply in different areas of Lismore, and these are outlined below – it must be stressed that these are indicative only.

Table 3 – indicative peak levels for a 0.2% AEP flood event (1 in 500-year)

Location	0.2% AEP (1 in 500yr)	1% AEP (1 in 100yr)
South Lismore	12.0 – 13.3m	11.6 – 12.8m
Central Lismore	12.8 – 13.0m	12.1 – 12.5m
North Lismore	13.3m	12.8m

As set out in table 2, the current DCP Chapter 8 does not set a minimum replacement/ raising height for all homes that have been affected. Currently, those in the Floodway or Flood Fringe have no minimum height control set in relation to replacing, altering, or raising their homes. The proposed control will provide essential clarity to residents in these areas who are looking to replace or raise their homes.

The current DCP Chapter 8 currently requires those in the High Flood Risk area to alter, raise or replace their homes at a minimum set against the 1% AEP (1 in 100-year) peak level. For these people, the proposed changes would see a minimal increase in heights based on the change from the 1% to the 0.2% AEP. Using the indicative peak levels shown in table 3, the average increase to be incurred by the proposed changes are South Lismore + 0.4m; Central Lismore + 0.7m; and North Lismore + 0.5m.

On the ground, these changes mean that anyone seeking to replace or raise their homes will need to do so at a minimal increase to the existing level (where applicable). This change in height is expected to have minimal cost and visual impact, especially when compared against the benefit to safety and reduced damage that the increased height may bring.

Public consultation

Council will commence a twenty-one (21) day community consultation post Council resolution.

Notification will include:

- A newspaper advertisement (Local Matters) that circulates in the area affected by the planning proposal
- On the website of Lismore City Council

The written notice will:

- Provide a brief description of the objectives or intended outcomes of the amendments to the DCP chapter
- State where and when the draft DCP chapter can be inspected
- Provide detail that will enable members of the community to make a submission

Following consultation, staff will review the submissions and consider if any further changes be made.

Should any objections be made, a further report to Council will be made, outlining a summary of all submissions. Staff may or may not recommend further changes to the chapter at this stage and will clarify this in the further report.

Should no objections be made, and no further changes to the DCP proposed, staff will publish the DCP Chapter and consider it made.

Comments

Finance

Not applicable.

Conclusion

This report discusses proposed amendments to Lismore's DCP Part A Chapter 8. The changes seek to enable flood affected residents to re-build their homes higher than before and are in response to feedback and queries received from the community. The changes will mean homes will be required to be re-built at the 1 in 500-year event equivalent as a minimum, rather than the 1 in 100-year event equivalent.

DCP Chapter 8 will undergo a thorough investigation and re-write once the Lismore Floodplain Risk Management Plan has been finalised, or an interim report received. The changes proposed now offer an interim solution for those residents who are ready to re-build their homes. The changes are expected to result in homes being built higher than before. The safety benefits this offers is considered to outweigh any visual impact the higher homes may have on the visual amenity of Lismore.

Additionally, the way in which flood event probability is communicated is being changed within the draft amendments to the DCP, with the 1 in 500-year ARI being changed to the 0.2% AEP – clarifying the measurement relates to the probability, not the frequency of events.

Pending resolution, the draft Chapter 8 will be publicly exhibited for a three-week period to enable feedback from the community and relative stakeholders.

Attachment/s

1. [↗](#) DCP Part A, Chapter 8: Draft Changes (Over 7 pages)

Report

Subject	Hepburn Park - temporary accommodation
TRIM Record No	BP22/520:AF22/1806
Prepared by	General Manager
Reason	To advise Council of current request received from the NSW Government
Strategic Theme	Our built environment
Strategy	Our land-use planning caters for all sectors of the community.
Action	Ensure a diverse range of land use and development opportunities are available.

Executive Summary

A report was tabled at the July Ordinary Council meeting advising correspondence had been received from the Northern Rivers Reconstruction Corporation requesting an agreement to lease part of Hepburn Park as a temporary housing site.

The motion lapsed due to want of a seconder.

On 18 July 2022 Council received correspondence from the Minister for Emergency Services and Resilience and Minister for Flood Recovery requesting Council's agreement again for use of the site due to no other suitable alternative sites.

Recommendation

That Council note the request received from the NSW Government for the use of Hepburn Park as a temporary housing site.

Background

A report was tabled at the July Ordinary Council meeting advising correspondence had been received from the Northern Rivers Reconstruction Corporation requesting an agreement to lease part of Hepburn Park as a temporary housing site.

The motion lapsed due to want of a seconder.

On 18 July 2022 Council received correspondence from the Minister for Emergency Services and Resilience and Minister for Flood Recovery requesting Council's agreement again for use of the site due to no other suitable alternative sites.

The NSW Government has verbally advised it would compensate Council significantly should agreement be forthcoming.

Public consultation

Not required

Conclusion

Due to the lack of support from the Council for this proposal this report seeks to note the receipt of the correspondence and advise the Minister accordingly.

Attachment/s

1. [↓](#) Letter from NSW Government



The Hon. Steph Cooke MP
Minister for Emergency Services and Resilience
Minister for Flood Recovery

OFFICIAL

Ref: D22/7449

Cr Steve Krieg
Mayor
Lismore City Council
43 Oliver Avenue
GOONELLABAH NSW 2480

Dear Mayor Krieg,

Thank you for your outstanding collaboration with the NSW Government to support the flood-impacted communities in Lismore. I write in regard to our shared objective of ensuring appropriate housing is in place for persons displaced by the February - March flood events

As you are aware, the NSW Government has been working closely with Lismore City Council and other Northern Rivers councils to establish temporary housing villages to meet the significant demand for medium-term housing for persons displaced by the floods.

The first temporary housing site at Wollongbar Sports Field has been operational since May and is already providing housing to people from Lismore. I am also pleased that we have been able to secure additional sites within the Lismore LGA, including at Southern Cross University (SCU) and at Alphadale Road in Lindendale. I note that access to the Lismore Golf Club had been secured through Crown Lands, but the site is unlikely to progress due to construction complexities related to the significant site incline.

As the current sites do not have the capacity to meet the expected demand for medium-term housing within the Lismore LGA, we need to urgently secure additional housing sites.

Consequently, I request the Council's agreement for the NSW Government to use Hepburn Park, which is owned by Council, as a temporary housing site. The use of the site would require Council's agreement to enter into a lease agreement with Resilience NSW, with an expected term of three years. The site has been proposed following a significant review of suitable land in the area and with consideration to maintaining community amenities, such as sports fields where possible.

While I acknowledge Council's concerns that the use of this site will mean that the land is no longer available as a community sports and recreation area, I understand that no alternative sites offering a comparable yield, site amenity, and site works timeline have been identified within the Lismore LGA. I assure you the NSW Government will continue to work with Council to determine what alternative support may be available to assist with the enhancement of other sporting facilities across the LGA.

Without Council's agreement to utilise Hepburn Park as a temporary housing site, it is highly likely that we will not be able to meet the critical housing needs of displaced persons within the Lismore LGA.

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GPO Box 5341 Sydney NSW 2001 ■ P: (02) 8574 5220 ■ W: nsw.gov.au/ministercooke

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Once again, I would like to thank you for your collaboration to date in working to support the Lismore community following the significant February - March floods, and for your consideration of the above matter.

Should you wish to discuss this matter further, please do not hesitate to contact Dominic Lane, Executive Director Local Coordination & Service Delivery, Resilience NSW at Dominic.Lane@resilience.nsw.gov.au.

Yours sincerely,



The Hon. Steph Cooke MP
Minister for Emergency Services and Resilience
Minister for Flood Recovery

18 July 2022

OFFICIAL

2

Report

Subject	Growth and Realignment Strategy
TRIM Record No	BP22/477:EF18/698-4
Prepared by	Acting Strategic Planning Coordinator
Reason	To seek Council support to amend the Local Strategic Planning Statement
Strategic Theme	Our built environment
Strategy	Our land-use planning caters for all sectors of the community.
Action	Ensure land is available and serviced to meet population growth in locations that are accessible, close to services and employment, and suitable for development.

Executive Summary

The draft Growth and Realignment Strategy identifies land that is potentially suitable for future housing, commercial and industrial purposes by ensuring future growth areas are consistent with the planning priorities identified in the Local Strategic Planning Statement and meet the economic, social, and environmental expectations of the community. It does this by ensuring growth areas are planned and located in areas that have minimal constraints and can be adequately serviced by necessary and appropriate infrastructure. Identification in the strategy is the first step in the planning process to changing or intensifying the land use of a particular site. Detailed site-specific investigations are then required through a planning proposal application to rezone land or amend any LEP density provisions.

The floods of February and March and the threat of more frequent and heavier rain events leading to more frequent and severe flooding as a result of Climate Change have led to a fundamental rethink about how we plan for Lismore's future. The disruption and displacement of residents and businesses from Lismore has been so profound that it is not possible to predict with any level of accuracy what the long-term implications will be for Lismore's population over the 20-year horizon of this strategy. The aim of this strategy is to plan for a high growth scenario and to ensure there is sufficient flood free residential and employment lands to facilitate relocation and allow growth over time.

Recommendation

That:

1. Council refers the attached draft Growth and Realignment Strategy to the Department of Planning and Environment for comment, followed by a public exhibition and consultation period.
2. minor amendments are made to the Local Strategic Planning Statement to ensure consistency with the draft Growth and Realignment Strategy.
3. following public consultation, a report be brought back to Council with a revised Local Strategic Planning Statement that incorporates the Growth and Realignment Strategy.

Background

Council's Growth Management Strategy 2015-2035 (GMS) was adopted by Council in May 2015. It identifies land that is potentially suitable for future housing, commercial and industrial purposes to accommodate future population growth to 2035. A periodic review was due to be undertaken as identified

in Council's Delivery Program and Operation Plan (D3.1.2) with a target that a Revised Growth Management Strategy be adopted by Council by 30 June 2022.

The floods of February and March and the threat of more frequent and heavier rain events leading to more frequent and severe flooding as a result of Climate Change have led to a fundamental rethink about how we plan for Lismore's future.

The attached Draft Growth and Realignment Strategy is intended to be included as an addendum to the Local Strategic Planning Statement (LSPS) that was adopted by Council in July 2020. The LSPS is a relatively new requirement for all NSW Councils under the *Environmental Planning and Assessment Act* and sets out the Council's 20-year vision for land use planning and reflects the community's priorities regarding economic, social, and environmental matters. Upon adoption of this strategy and its inclusion in an amended LSPS, it is intended to replace the need for a separate GMS.

This strategy is the first step in the planning process to changing or intensifying the land use of a particular site. Detailed site-specific investigations are then required through a planning proposal application to rezone land or amend any LEP density provisions.

Discussion Paper and Community Consultation

In May 2022 Council produced a discussion paper as part of the review process and undertook a six-week period of community engagement from 2 May – 13 June. The discussion paper was intended to provide a framework and starting point for community engagement and feedback on land use options and how Lismore could build back better after the devastating floods. The discussion paper attracted significant local and national media interest and staff undertook a range of engagement activities including two face-to-face forums and a livestream to Facebook, as well as other targeted engagement.

A total of 327 submissions were received which were analysed and summarised in a workshop to councillors on 21 June. The slideshow from the Council workshop was made available to the public via Council's Your Say website and everyone who made a submission was notified of its availability so they could see the outcomes from the engagement process. Feedback from the submissions has informed the development of the attached draft strategy.

Key Elements of the Draft Strategy

Growth projections

Two separate population and demographic modelling exercises were undertaken in 2021. The first by .id (Informed Decisions) anticipated Lismore's population to grow to 51,023 by 2041 which is a growth of 13.6% over 20 years. The second by the NSW Department of Planning and Environment (DPE) anticipated a decline in population to 39,500 by 2041, which is a decline of 9% over 20 years. The difference in the projections is due to different assumptions in the modelling, with DPE anticipating Lismore's outward migration of population to be significantly greater than inward migration.

Both modelling exercises were undertaken pre-floods and rely upon a set of 'business-as-usual' assumptions. The disruption and displacement of residents and businesses from Lismore has been so profound that both .id and DPE have acknowledged that it is not possible to predict with any level of accuracy what the long-term implications will be for Lismore's population over the 20-year horizon of this strategy. The aim, therefore, is to plan for a high growth scenario and to ensure there is sufficient flood free residential and employment lands to facilitate relocation and allow growth over time.

Planned Retreat

The impact of the 2022 floods and the threat of ongoing and increased flood risk has led to questions about the ongoing suitability of some areas of Lismore to be used for ongoing habitation. The guiding principle of planned or managed retreat is to permanently remove people and assets from harm's way where the risk cannot be adequately mitigated or managed.

Lismore City Council will advocate for State and Federal Governments to fund and assist with the implementation of a voluntary buyout and relocation program to support the staged relocation of residential properties from the most flood prone areas. The areas of North and South Lismore within the 'floodway' and 'high flood risk' category areas (as defined in Council's Floodplain Risk Management Plan) will most likely be the highest priority areas, but a detailed set of criteria will need to be determined to manage the process. Council will work closely with the Northern Rivers Reconstruction Corporation (NRRC) to develop a framework for any future buyout or relocation program.

Guiding principles for any land swap scheme should include those existing dwellings be moved where it is possible and feasible to do so and that relocation opportunities be offered by street or precinct areas so that existing community networks and connections be maintained. Any buyout and relocation scheme should be offered on a voluntary basis. Any reclaimed land within the floodplain will be subject to future strategic planning work, but in general terms, should be utilised for open space, recreation, and revegetation. Where landowners elect not to relocate, voluntary house raising, and other flood adaptation work may be encouraged.

It is acknowledged that a planned retreat from high flood risk areas is a long-term strategy that will require significant and ongoing funding and support from all levels of government.

Urban Growth Areas (Greenfield sites)

The areas identified in the GMS at Trinity Drive and Lagoons Grass will be retained for future growth, with some variation to the shape of the investigation area based upon the inundation area of the 2022 floods, the slope of the land and feedback from the community.

An additional greenfield urban release area of approximately 28 hectares has been identified on land at 1055 Bruxner Highway, Goonellabah. This site has access from Oliver Avenue and is adjacent to existing residential land. A mix of medium density residential, along with some areas of commercial or mixed-use zoning is anticipated to facilitate a live/work precinct along with significant areas of open spaces will be required to provide a buffer to the existing horticulture (macadamia plantation) to the east.

Medium Density Precincts

An expansion of the existing medium density Health Precinct around Lismore Base Hospital is proposed, along with an additional precinct at East Lismore that is located near St Vincent's hospital and the golf course. Medium density housing may also be incorporated into the design and planning controls for the greenfield site at 1055 Bruxner Highway.

Re-imagining East Lismore

A re-imagining of East Lismore and a refocus of future development above the Probable Maximum Flood (PMF) extent in this area provides an opportunity for Lismore to adapt to the threats from future flooding posed by Climate Change whilst maintaining the foundations of its existing settlement patterns.

The golf course land at East Lismore is Crown Land managed by Lismore City Council. It is predominantly outside of the PMF extent and is uniquely and strategically located next to existing residential and commercial land as well as St Vincent's private hospital as well as being close to the existing CBD and Southern Cross University.

The draft strategy recommends preliminary design work be undertaken to establish the feasibility of a new commercial and residential mixed-use centre on an area of approximately 33 hectares of the golf course land. The design and feasibility work should identify infrastructure requirements and address stormwater drainage issues and other environmental, social and community impacts. The objectives of any design work for the site should maximise the retention of mature trees and aim to create a centre that promotes walkability and 'micro mobility' transport devices and minimises vehicles movements within the centre.

At the other end of East Lismore there is potential for future development to occur on land around Southern Cross University. This includes land owned by SCU on the east side of Rifle Range Road, the industrial

precinct along Industry Drive and Rifle Range Road, the vacant residential land on Airforce Road and the zoned mixed-use land owned by SCU along Crawford Road. Detailed master planning and engagement with SCU should be undertaken for this precinct to determine its highest and best use that could include the relocation of schools that were severely impacted by floods, along with other commercial, industrial, residential and community land uses. The master planning should identify transport linkages and other infrastructure requirements.

It is acknowledged that low lying parts of East Lismore are also susceptible to flood inundation and a range of flood mitigation and adaptation options will need to be considered, including the possibility of retreat and relocation in some circumstances.

Urban Infill and Fringe Development Sites

Amendments and additions to sites identified as potentially suitable for small scale urban residential rezoning. Other forms of infill residential development through increased density on land already zoned for residential use that is outside of flood affected areas will be encouraged through the Affordable and Diverse Housing Strategy to be considered by Council in the coming months.

Village and Large Lot Residential Land

Growth areas identified in the GMS at The Channon and Wyrallah will continue to be included for potential future growth in these areas. Additional land has also been identified at Bexhill, Modanville and Tullera.

No further expansion at Dunoon or Nimbin is proposed, with two sites at Gungas Rd and Tunttable Falls Rd on the outskirts of Nimbin that are currently included in the GMS to be removed. This follows extensive community consultation in 2020/21 and a Council resolution of July 2021.

The draft strategy is recommending that significant expansion at Clunes and Caniaba be considered. The proposal at Clunes is for an area of approximately 63 hectares on the western side to be included for a potential eco-village that would include a mix of housing types and sizes, community facilities such as sporting fields, playgrounds, cafes etc. Any future development of this site would also facilitate a buffer between macadamia plantations and residential dwellings. A development of this size and scale is likely to require a community-scale sewerage treatment facility as there is no reticulated sewerage in Clunes and the desired densities could not be achieved by standard on-site sewage management systems. Impacts to the surrounding amenity and infrastructure including roads will need to be addressed. It is proposed that a concept plan for the site be prepared by the landowners and that a process of engagement with the Clunes community be undertaken to understand the level of support or otherwise for this type of development.

An expansion of Caniaba village was also identified through community engagement as potentially suitable for expansion given its proximity to the CBD and elevation above flood levels. Additional areas have been identified north of the Perradenya estate and east of the Caniaba Public School. Further investigations of the reticulated water and sewer infrastructure requirements will need to be undertaken prior to any expansion of the village area.

Affordable Housing Contribution Scheme

An Affordable Housing Contributions Scheme (AHCS) is a mechanism enabled by the *Environmental Planning and Assessment Act, 1979* that allows Councils to levy developer contributions from landowners who benefit from an 'upzoning' of their land. The contribution may be in the form of land, housing or a monetary contribution made to Council that is to be utilised for the purpose of providing affordable housing by a registered Community Housing Provider.

Councils are required to identify the areas of land to which an AHCS will be applied and then to determine a viable affordable housing contribution rate. Different rates may be applied to different areas. All land identified for potential rezoning or upzoning (such as increased density permissible through changes to height controls) identified in Section 2 of the draft strategy (**Maps 1-17**) will be subject to viability testing for a future AHCS to be referenced in the Lismore Local Environmental Plan 2012 (LEP).

Employment Lands

Lismore's capacity to attract new business and industry and to create employment opportunities will have a significant impact on its ability to retain and attract residents. Therefore, the creation of new flood free commercial and industrial precincts is a priority of the draft strategy.

An area of approximately 50 hectares has been identified as a potential significant expansion of the Goonellabah Industrial precinct that would support new business opportunities and the relocation of existing businesses. Two other small potential industrial sites have been identified at Wyrallah Road, Monaltrie and Three Chain Road, South Lismore.

Lismore City Council will also consider additional site-specific rezoning or utilising the 'additional permitted use' provisions within the LEP to facilitate the relocation of significant industries or critical infrastructure from out of the floodplain. This could include schools, sewage treatment facilities, airport services or critical employers such as NORCO. This approach will allow some flexibility for a site-specific merit-based assessment to be undertaken for land that has not been identified through the consultation period and review undertaken in May-June 2022 but may be suitable for a particular industry or infrastructure purpose.

The Lismore CBD will need to reinvent itself, both due to the ongoing flood risk and the global trend towards retail trading happening on-line. Service and creative industries and businesses that are able to mobilise quickly in the event of flood warnings are likely to be more likely to adapt better than businesses that rely on large amounts of stock or heavy equipment being located on site. Council will undertake further planning and engagement work with businesses and the wider community to understand how it can best support the reinvention of the CBD as a vibrant, flood resilient commercial and community centre.

The draft strategy also recommends the establishment of additional commercial precincts that are flood free and located close to residential areas, particularly at East Lismore as addressed at Section 2.4 of the strategy.

A small expansion of the Eastpoint Shopping Village at Goonellabah is proposed and community engagement indicated there was a desire for improved walkability, liveability, and access to services in new and existing residential areas. Future strategic planning work will be undertaken to identify whether other small commercial and community focus points could be established in suitable locations to facilitate a series of localised 'urban villages'.

Infrastructure Requirements

The draft strategy identifies the various infrastructure planning work that will need to be undertaken to ensure that capital works programs are funded, prioritised, and delivered in a coordinated manner to support growth areas.

Northern Rivers Reconstruction Corporation

The Northern Rivers Reconstruction Corporation (NRRC) is a development corporation set up by the NSW State Government to manage the post flood rebuilding of communities across seven Local Government Areas in the Northern Rivers region. The NRRC will coordinate planning, rebuilding, and construction of a diverse range of infrastructure projects and has a significant range of powers to implement its agenda.

Lismore City Council aims to work collaboratively with the NRRC to align our priorities in the rebuilding and reimagining of Lismore.

Consistency with the Draft North Coast Regional Plan (2041)

The North Coast Regional Plan 2041 (NCRP) is on public exhibition till 24 August 2022. The NCRP 2041 is the State Government's overarching strategic land use planning document for the region and contains settlement planning guidelines that establish key aims and principles to be considered by Councils when developing new settlement strategies. A table is provided at Section 7 of the draft strategy demonstrating consistency with the NCRP settlement planning guidelines.

Comments

Finance

Not applicable.

Public consultation

Feedback from the public consultation processes undertaken in May and June have informed the development of the strategy. A further period of community consultation is to be undertaken after comment has been received from the Department of Planning and Environment (DPE) prior to final adoption by Council.

Conclusion

The threat of more frequent and heavier rain events leading to more frequent and severe flooding as a result of Climate Change have led to a fundamental rethink about how we plan for Lismore's future. The draft Growth and Realignment Strategy sets the strategic direction for future land use planning in the Lismore LGA to 2040.

Given the uncertainty of future population and demographic projections as a result of the disruption and displacement of residents and businesses after the February and March floods, the aim of the strategy is to plan for a high growth scenario and to ensure there is sufficient flood free residential and employment lands to facilitate relocation and allow growth over time.

The draft strategy identifies land that is potentially suitable for future housing, commercial and industrial purposes by ensuring future growth areas are consistent with the planning priorities identified in the LSPS and meet the economic, social, and environmental expectations of the community. It does this by ensuring growth areas are planned and located in areas that have minimal constraints and can be adequately serviced by necessary and appropriate infrastructure.

Attachment/s

1. [↔](#) Draft Lismore Growth and Realignment Strategy (Over 7 pages)

Report

Subject	Lismore Youth Precinct
TRIM Record No	BP22/489:EF22/8
Prepared by	Community Recreation Planner
Reason	To seek Councillors support for the Lismore Youth Precinct to commence grant funding application.
Strategic Theme	An inclusive and healthy community
Strategy	Our sporting facilities and recreational spaces encourage active and passive community participation.
Action	Provide high-quality sporting facilities to meet the diverse needs of the Community.

Executive Summary

Lismore Skatepark, at Riverside Park Victoria Street, is at the end of its useful life and requires replacement.

Lismore Park is the preferred location for the relocation and upgrade of the youth facility. A new concept design for a modern Youth Precinct has been developed. The concept design will be used to apply for relevant State and Federal grant applications.

The Youth Precinct will include national standard skateboard facility, youth play experiences, sports climbing feature, bespoke youth seating, shade, and sports lighting. The precinct will have the capacity to run events for the whole community.

Funding opportunities currently exist in NSW for the Multi-Sport Facility Fund through the Office of Sport and Recreation. This report seeks confirmation that funding opportunities be sought for this project.

Recommendation

That Council pursue State and Federal funding opportunities to secure funds to progress the development of the Lismore Youth Precinct, with no Council contribution.

Background

The Lismore Skatepark, currently located at Victoria Street, is in very poor condition and has reached the end of its useful life. The skatepark was built in 1994 and is not fit for purpose to current standards of facility provision for youth. The elements within the park have deteriorated to an extent that would require significant expense to remediate. The skatepark will pose a significant safety risk to Council if no action is taken in the near future.

Rather than repair the current skatepark, Council is proposing to provide a new skatepark as part of a modern Youth Precinct strategically located in the centre of Lismore within Lismore Park. Some obstacles of the existing skatepark will be removed and other elements may be repurposed where feasible.



Figure 1: Map of proposed site of Youth Precinct

Lismore Park provides a key recreational area linkage between the hospital precinct, The Quad, and the CBD. The site presents a great opportunity for Lismore to develop a youth and family space in a relatively under-utilised space. Easily accessible by vehicle and public transport, the space is designed to be available to all demographics and provides the opportunity to lift the public profile for youth.

The Youth Precinct will be a signature facility for the Northern Rivers designed to be a point of difference to other facilities in the region. The facility will create a dynamic and activated central community hub to offer recreational and social experiences for all members of the community, from day-to-day usage to larger community events. As one of the foremost youth spaces within the area it will be a strategic public realm hub for Lismore and the wider northern rivers area, becoming a destination for youth within the region. It will be a tourism drawcard. Furthermore, the addition of the Youth Precinct will revitalise the Lismore town centre and its most valuable public green space.

Concept Design

A concept design for the proposed Youth Precinct has been developed by CONVIC, industry leaders in youth precinct design and delivery in Australia. See Attachment 2: Lismore Youth Hub Draft Concept Design.



Figure 2: Lismore Youth Precinct 3d Concept Design

The concept design was developed in conjunction with stakeholders, including key facility users, police, and community organisation representatives.

A Have Your Say consultation was undertaken in December 2021, with 139 responses. The information within the responses from Have Your Say informed the scope and development of the preliminary concept design. A leading industry consultant, CONVIC, was engaged to develop the concept design.

CONVIC developed a preliminary draft concept based on Have Your Say feedback and initial discussion with key stakeholders.

Consultation on the draft concept design included key stakeholder meetings:

- End users on 02/03/22 and 27/04/2022 to inform and review concept
- Police and community groups were consulted about the draft concept design

From the consultation several key items were identified and have been included in the concept design, where applicable. One of the key distinctions between other facilities in the Northern Rivers is the inclusion of a street based skatepark, suitable for National scale events. Other key items include sports lighting, shade, and open plan with good natural surveillance.

Further the Youth Precinct will include:

- National skateboarding course, with elite level elements up to Olympic level
- Sports lighting to activate night use
- Shelters, shade, and picnic areas for all ages
- Retention of trees and new trees within the youth precinct area
- Youth seating areas
- Space for grandstands and event mode
- Events power
- Art content, including the integration of art into the precinct
- A vibrant colour scheme showcasing the heart of Lismore
- Identified key pedestrian links to The Quad and CBD
- Sports climbing bouldering obstacle

- Youth play elements such as giant basket swings and large see saws
- CCTV

Flooding Considerations

Lismore Park is situated within a flood zone and will flood in a 1:10 event. Fortunately, the youth facility will be constructed predominantly of concrete and as such has a high flood tolerance and fast remediation post flood. In the design phase of the project, play, lighting, and electrical needs will stipulate materials suitable for flood affected conditions. A Review of Environmental Factors will be undertaken as part of the design phase.

Order of Costs

The cost estimate provided by the consultant CONVIC was \$3,916,400, including provisional items. A revised estimate by Council officers, to include additional contingency is \$4,000,000.

Ongoing Maintenance Costs

Ongoing Maintenance costs will be comparable with existing facilities of a similar standard, such as Goonellabah and Nimbin. The new facility will include sports lighting which has been considered as an increase in costs from the existing facilities. See attachment 2 Lismore Youth Precinct Maintenance Costs. Maintenance expenditure currently attributed to the Victoria St facility would transfer to the new Youth Precinct.

Comments

Finance

The report has identified that the existing asset is beyond its useful life and needs replacing. It is considered that grant funding is the preferable source of funding as the estimated replacement cost is significant. The ongoing maintenance costs have been estimated to be comparable to the existing asset although this will need to be confirmed once more detailed information is available. In addition, there will be a depreciation expense on the new asset of \$133,000 based on a useful life of 30 years (provided by the project manager), this is a non-cash expense.

Other staff comments

Not applicable.

Public consultation

Further city-wide consultation will be held when funding is received.

Conclusion

The existing skatepark in Riverside Park, Victoria St requires replacement. Officers have prepared a concept design for a new Youth Precinct, suitable for grant funding applications. This report seeks confirmation that Council continues efforts to secure funding for the Youth Precinct. Should funding be successfully secured, additional community consultation will be carried out. Once completed the new Lismore Youth Precinct will be a pivotal recreation space within the CBD and a tourist destination.

Attachment/s

1. ➡ Attachment 1 - Lismore Youth Hub Draft Concept Design, CONVIC May 2022 (Over 7 pages)
2. ⬇ Attachment 2 - Lismore Youth Precinct Maintenance Costs

Lismore Youth Precinct – Summary of ongoing costs

Total Annual Ongoing Maintenance Costs = \$13540

Total Annual Usage costs (excluding water) = \$1426

Total replacement costs during facility useful life = \$21700

Table of expected ongoing maintenance costs for Lismore Youth Precinct

ITEM	DESCRIPTION	FREQUENCY	NO.	QUANTITY	UNIT	RATE	TOTAL COST/YEAR
1				SCHEDULED MAINTENANCE			
1.1	Debris Removal Daily removal all loose debris leaves and rubbish.	Weekly	52	0.5	hours	\$90	\$2340
1.2	Gardening Garden bed and grass maintenance	Fortnightly	26	0.5	hours	\$90	\$1170
1.3	Lighting Cleaning and luminaire replacement.	5 Yearly	0.2 (% for 5 years)	1	item	\$5000 (cost for maintenance every 5 years)	\$1000
1.4	Inspection of facility	Quarterly	4	0.5	hours	\$75	\$150
1.5	One off clean for flooding or storm event	annually	1	1	item	\$2000	\$2000
1.6	Pressure Clean	Every second year.	1	0.5	Year	\$3000	\$1500
1.7	Repainting of skate obstacles	annually	1	7	year	\$90	\$630
2				UNSCHEDULED MAINTENANCE			
2.1	General Repairs, rectification of Damage Concrete Chips, vandalism, damaged surfaces due to wear and tear	Annually	1	1	item	\$4750	\$4750*
Total				\$13540			

*General repairs as a percentage of useful life (used to calculate 2.1 in above table)

Years 1 – 5 Minimal expected maintenance costs as facility becomes condition 1	Year 5 – 15 Increased maintenance costs as facility becomes condition 2	Year 15 – 25 Increased maintenance costs as facility becomes condition 3	Year 25 – 30 High maintenance costs as facility becomes condition 4
\$1000 per year Total = \$5,000	\$3500 Per year Total = \$35000	\$6000 Per year Total = \$60,000	\$8500 Per year Total = \$42500
Total Average cost over life of facility	\$142,500 / 30 years = \$4,750 per year		

Operational Usage

ITEM	DESCRIPTION	Usage	NO.	QUANTITY	UNIT	CALC	TOTAL COST/YEAR
Lighting	Usage of sports lighting.	4 hours per night (6pm – 10pm)	6 lights. 3 double lights per pole. Total – 18 fittings. 300 w per fitting	54Kwh per light Feed in tariff \$1.90 per day	9.3 per Kwh \$1.90	0.093c x 5.4kwh x 4 hrs x 365 days \$1.90 per day x 365 days	\$733 per year \$693 Total lighting \$1426 per year

Replacement costs

ITEM	DESCRIPTION	Useful life	Purchase price	Replacement value (RV) (with CPI 40%)	Yearly cost for replacement RV / 15
Picnic Table Replacement	Gossi Picnic tables	15 years	1900	2670	178
Seating Replacement	Gossi Boardwalk bench	15 years	600	840	56
Play Items	Ninja Course	15 years	150,000	210,000	14,000
Play Items	Basket Swing	15 years	80,000	112,000	7466
Total required per year for replacement					21700

Report

Subject	Draft Code of Meeting Practice & Briefing Policy
TRIM Record No	BP22/508:EF19/483-4
Prepared by	Governance & Customer Service Manager
Reason	Review the Code of Meeting Practice & Briefing Policy

Executive Summary

In accordance with provisions of the *Local Government Act 1993* (the Act) and the *Local Government (General) Regulation 2021* (the Reg) council must adopt a code of meeting practice within 12 months of an ordinary election of councillors.

The Code of Meeting Practice (COMP) must be placed on public exhibition for a period of not less than 28 days and submissions invited from members of the public.

The Office of Local Government (OLG) released a new Model Code of Meeting Practice in 2021 (the Model). The Model has both mandatory provisions and non mandatory provisions.

A Lismore City Council Code of Meeting Practice has been drafted consistent with the Model.

Council's briefing policy is also in need of review.

Recommendation

That:

1. in accordance with section 361 of the *Local Government Act 1993*, the draft Code of Meeting Practice at Attachment 1 to this report be placed on public exhibition for a period of 28 days.
2. in accordance with section 361 of the *Local Government Act 1993*, a period of 42 days is provided for the Public to make submissions on the draft Code of Meeting Practice.
3. Council endorses the inclusion of the following optional clauses and parts as set out in the attached Lismore City Council Draft code of meeting practice:
 - a) Clauses 3.10, 3.12 and 3.13 – Giving notice of business to be considered at council meetings
 - b) Clause 3.17 (a) – Agenda and business papers for ordinary meetings.
 - c) Clauses 3.33 to 3.39 inclusive – Briefings Sessions
 - d) Part 4 – Public Forums
 - e) Clauses 5.14 and 5.15 – The quorum for a meeting
 - f) Clauses 5.16, 5.17 & 5.18 – Meetings held by audio-visual
 - g) Clauses 5.19 to 5.30 – Attendance by councillors at meetings by audio-visual link
 - h) Part 7 – Modes of Address
 - i) Clause 8.2 – Order of Business for Ordinary Council Meetings

- j) Clause 9.10 – Mayoral Minutes
 - k) Clause 10.9 – Motions requiring the expenditure of funds
 - l) Clause 11.11 – Voting at Council Meetings
 - m) Part 13 – Dealing with Items by Exception
 - n) Clause 14.20 – Obligations of councillors attending meetings by audio-visual link
 - o) Clause 15.15 and 15.16 – Expulsion from meetings
 - p) Clause 15.21 & 15.22 How disorder by councillors attending meetings by audio-visual link may be dealt with
 - q) Clause 16.2 - Conflicts of Interest
 - r) Clause 17.10 – Rescinding or altering council decisions
 - s) Clause 17.15 to 17.20 - Recommitting resolutions to correct an error
 - t) Part 18 – Time Limits on Council Meetings
 - u) Clause 19.2 (a) – Minutes of meetings
 - v) Clause 20.23 (a) & 20.24 – Minutes of council committee meetings
4. the amended Council Briefing Policy be placed on public exhibition for 28 days and be reported back to Council for consideration with any submission received.

Background

To comply with Section 360 of the Act as shown below Lismore City Council must adopt a COMP within 12 months of 4 December 2021. The COMP adopted by Council must not contain anything that is inconsistent with the Model.

360 Conduct of meetings of councils and committees

- (1) The regulations may prescribe a model code of meeting practice for the conduct of meetings of councils and committees of councils of which all the members are councillors.
- (2) The model code may contain both mandatory and non-mandatory provisions.
- (3) A council must, not later than 12 months after an ordinary election of councillors, adopt a code of meeting practice that incorporates the mandatory provisions of the model code prescribed by the regulations. The adopted code may also incorporate the non-mandatory provisions and other provisions.
- (4) A code adopted or amended by the council must not contain provisions that are inconsistent with the mandatory provisions.
- (5) A council and a committee of the council of which all the members are councillors must conduct its meetings in accordance with the code of meeting practice adopted by it.

Section 361 of the Act prescribes that the COMP must be placed on public exhibition for a period of not less than 28 days. Members of the public must also be provided with a period of 42 days following the COMP being placed on exhibition to make submissions.

Section 232 of the Reg prescribes the Model as produced by the OLG.

The draft COMP contains the mandatory provisions of the Model as well as the optional provisions shown below.

Giving notice of business to be held considered at council meetings

- 3.10 A councillor may give notice of any business they wish to be considered by the council at its next ordinary meeting by way of a notice of motion. To be included on the agenda of the meeting, the notice of motion must be in writing and must be submitted **ten* (10)** business days before the meeting is to be held - *only highlighted text is optional*.
- 3.12 If the general manager considers that a notice of motion submitted by a councillor for consideration at an ordinary meeting of the council has legal, strategic, financial or policy implications which should be taken into consideration by the meeting, the general manager may prepare a report in relation to the notice of motion for inclusion with the business papers for the meeting at which the notice of motion is to be considered by the council.
- 3.13 A notice of motion for the expenditure of funds on works and/or services other than those already provided for in the council's current adopted operational plan must identify the source of funding for the expenditure that is the subject of the notice of motion. If the notice of motion does not identify a funding source, the general manager must either:
 - (a) prepare a report on the availability of funds for implementing the motion if adopted for inclusion in the business papers for the meeting at which the notice of motion is to be considered by the council, or
 - (b) by written notice sent to all councillors with the business papers for the meeting for which the notice of motion has been submitted, defer consideration of the matter by the council to such a date specified in the notice, pending the preparation of such a report.

Agenda and business papers for ordinary meetings

- 3.17 (a) Subject to unforeseen circumstances, the General Manager will endeavour to cause the business paper to be provided to Councillors no later than one (1) week prior to the scheduled Ordinary Council meeting.

Briefing Sessions

- 3.33 Prior to each ordinary meeting of the council, the general manager may arrange a pre-meeting briefing session to brief councillors on business to be considered at the meeting. Pre-meeting briefing sessions may also be held for extraordinary meetings of the council and meetings of committees of the council.
- 3.34 Pre-meeting briefing sessions are to be held in the absence of the public.
- 3.35 Pre-meeting briefing sessions may be held by audio-visual link.
- 3.36 The general manager or a member of staff nominated by the general manager is to preside at pre-meeting briefing sessions.
- 3.37 Councillors must not use pre-meeting briefing sessions to debate or make preliminary decisions on items of business they are being briefed on, and any debate and decision-making must be left to the formal council or committee meeting at which the item of business is to be considered.
- 3.38 Councillors (including the mayor) must declare and manage any conflicts of interest they may have in relation to any item of business that is the subject of a briefing at a pre-meeting briefing session, in the same way that they are required to do so at a council or committee meeting. The council is to maintain a written record of all conflict of interest declarations made at pre-meeting briefing sessions and how the conflict of interest was managed by the councillor who made the declaration.

- 3.39 Council manages other briefing sessions and workshops in line with policy 1.2.20
Council Briefings Policy

Public Forums

Public Access Session – Addressing Council on an Agenda Item

- 4.1 The council holds public access sessions during each ordinary meeting of the council for the purpose of hearing oral submissions from members of the public on items of business to be considered at the meeting.
- 4.2 Public access may be held by audio-visual link at the discretion of the mayor.
- 4.3 Public access is to be chaired by the mayor or their nominee.
- 4.4 To speak at public access, a person must first make an application to the council in the approved form. Applications to speak at the public forum must be received a minimum of four (4) hours before the scheduled start time of the Council meeting and must identify the item of business on the agenda of the council meeting the person wishes to speak on, and whether they wish to speak 'for' or 'against' the item.
- 4.5 A person may apply to speak on no more than three (3) items of business on the agenda of the council meeting.
- 4.6 Legal representatives acting on behalf of others are not to be permitted to speak at public access unless they identify their status as a legal representative when applying to speak at public access.
- 4.7 The general manager or their delegate may refuse an application to speak at public access. The general manager or their delegate must give reasons in writing for a decision to refuse an application.
- 4.8 No more than four (4) speakers are to be permitted to speak 'for' or 'against' each item of business on the agenda for the council meeting.
- 4.9 If more than the permitted number of speakers apply to speak 'for' or 'against' any item of business, the general manager or their delegate may request the speakers to nominate from among themselves the persons who are to address the council on the item of business. If the speakers are not able to agree on whom to nominate to address the council, the general manager or their delegate is to determine who will address the council at public access.
- 4.10 If more than the permitted number of speakers apply to speak 'for' or 'against' any item of business, the general manager or their delegate may, in consultation with the mayor or the mayor's nominated chairperson, increase the number of speakers permitted to speak on an item of business, where they are satisfied that it is necessary to do so to allow the council to hear a fuller range of views on the relevant item of business.
- 4.11 Approved speakers at public access are to register with the council any written, visual or audio material to be presented in support of their address to the council at the public forum, and to identify any equipment needs a minimum of four (4) hours before the scheduled start time of the Council meeting. The general manager or their delegate may refuse to allow such material to be presented.
- 4.12 The general manager or their delegate is to determine the order of speakers at public access.

- 4.13 Each speaker will be allowed four (4) minutes to address the council. This time is to be strictly enforced by the chairperson.
- 4.14 Speakers at public access must not digress from the item on the agenda of the council meeting they have applied to address the council on. If a speaker digresses to irrelevant matters, the chairperson is to direct the speaker not to do so. If a speaker fails to observe a direction from the chairperson, the speaker will not be further heard.
- 4.15 A councillor (including the chairperson) may, through the chairperson, ask questions of a speaker following their address at public access. Questions put to a speaker must be direct, succinct and without argument.
- 4.16 Speakers are under no obligation to answer a question put under clause 4.15. Answers by the speaker, to each question are to be limited to two minutes.
- 4.17 Speakers at public access cannot ask questions of the council, councillors, or council staff.
- 4.18 The general manager or their nominee may, with the concurrence of the chairperson, address the council for up to four (4) minutes in response to an address to the council at public access after the address and any subsequent questions and answers have been finalised.
- 4.19 Where an address made at public access raises matters that require further consideration by council staff, the general manager may recommend that the council defer consideration of the matter pending the preparation of a further report on the matters.
- 4.20 When addressing the council, speakers at public access must comply with this code and all other relevant council codes, policies, and procedures. Speakers must refrain from engaging in disorderly conduct, publicly alleging breaches of the council's code of conduct or making other potentially defamatory statements.
- 4.21 If the chairperson considers that a speaker at public access has engaged in conduct of the type referred to in clause 4.20, the chairperson may request the person to refrain from the inappropriate behaviour and to withdraw and unreservedly apologise for any inappropriate comments. Where the speaker fails to comply with the chairperson's request, the chairperson may immediately require the person to stop speaking.
- 4.22 Clause 4.21 does not limit the ability of the chairperson to deal with disorderly conduct by speakers in public access in accordance with the provisions of Part 15 of this code.
- 4.23 Where a speaker engages in conduct of the type referred to in clause 4.20, the general manager or their delegate may refuse further applications from that person to speak at public access for such a period as the general manager or their delegate considers appropriate.
- 4.24 Councillors (including the mayor) must declare and manage any conflicts of interest they may have in relation to any item of business that is the subject of an address at public access, in the same way that they are required to do so at a council or committee meeting. The council is to maintain a written record of all conflict of interest declarations made in public access and how the conflict of interest was managed by the councillor who made the declaration.
- 4.25 A public question time will be held following public access at each ordinary meeting of the council for fifteen (15) minutes on the following basis:

- (a) The person wishing to ask a question relating to a matter on the agenda must submit their question electronically via councils website at least fifteen (15) minutes before the scheduled start of the meeting.
- (b) The person once called by the chairperson, will approach the microphone, give their name and ask their question as submitted.
- (c) The person must not make any defamatory or insulting statements, and must not discuss another person's personal information.
- (d) The chairperson may refuse to deal with any question.
- (e) A councillor who has been asked a question may through the chairperson call on the general manager to assist in answering the question.
- (f) Any councillor or the general manager who has been asked a question may take the question on notice and respond in writing within ten working days. A copy of the written response will be sent to all councillors.
- (g) Questions are limited to two (2) per person.

The Quorum of a meeting

- 5.14 Where, prior to the commencement of a meeting, it becomes apparent that a quorum may not be present at the meeting, or that the health, safety or welfare of councillors, council staff and members of the public may be put at risk by attending the meeting because of a natural disaster or a public health emergency, the mayor may, in consultation with the general manager and, as far as is practicable, with each councillor, cancel the meeting. Where a meeting is cancelled, notice of the cancellation must be published on the council's website and in such other manner that the council is satisfied is likely to bring notice of the cancellation to the attention of as many people as possible.
- 5.15 Where a meeting is cancelled under clause 5.14, the business to be considered at the meeting may instead be considered, where practicable, at the next ordinary meeting of the council or at an extraordinary meeting called under clause 3.3

Meetings held by audio-visual

- 5.16 A meeting of the council or a committee of the council may be held by audio-visual link where the mayor determines that the meeting should be held by audio-visual link because of a natural disaster or a public health emergency. The mayor may only make a determination under this clause where they are satisfied that attendance at the meeting may put the health and safety of councillors and staff at risk. The mayor must make a determination under this clause in consultation with the general manager and, as far as is practicable, with each councillor.
- 5.17 Where the mayor determines under clause 5.16 that a meeting is to be held by audio-visual link, the general manager must:
- (a) give written notice to all councillors that the meeting is to be held by audio-visual link, and
 - (b) take all reasonable steps to ensure that all councillors can participate in the meeting by audio-visual link, and
 - (c) cause a notice to be published on the council's website and in such other manner the general manager is satisfied will bring it to the attention of as many people as possible, advising that the meeting is to be held by audio-visual link and providing information about where members of the public may view the meeting
- 5.18 This code applies to a meeting held by audio-visual link under clause 5.16 in the same way it would if the meeting was held in person.

Note: Where a council holds a meeting by audio-visual link under clause 5.16, it is still required under section 10 of the Act to provide a physical venue for members of the public to attend in person and observe the meeting.

Attendance by councillors at meetings by audio-visual link

- 5.19 Councillors may attend and participate in meetings of the council and committees of the council by audio-visual link with the approval of the council or the relevant committee.
- 5.20 A request by a councillor for approval to attend a meeting by audio-visual link must be made in writing to the general manager prior to the meeting in question and must provide reasons why the councillor will be prevented from attending the meeting in person.
- 5.21 Councillors may request approval to attend more than one meeting by audio-visual link. Where a councillor requests approval to attend more than one meeting by audio-visual link, the request must specify the meetings the request relates to in addition to the information required under clause 5.20.
- 5.22 The council must comply with the Health Privacy Principles prescribed under the *Health Records and Information Privacy Act 2002* when collecting, holding, using and disclosing health information in connection with a request by a councillor to attend a meeting by audio-visual link.
- 5.23 A councillor who has requested approval to attend a meeting of the council or a committee of the council by audio-visual link may participate in the meeting by audio-visual link until the council or committee determines whether to approve their request and is to be taken as present at the meeting. The councillor may participate in a decision in relation to their request to attend the meeting by audio-visual link.
- 5.24 A decision whether to approve a request by a councillor to attend a meeting of the council or a committee of the council by audio-visual link must be made by a resolution of the council or the committee concerned. The resolution must state:
- (a) the meetings the resolution applies to, and
 - (b) the reason why the councillor is being permitted to attend the meetings by audio-visual link where it is on grounds other than illness, disability, or caring responsibilities.
- 5.25 If the council or committee refuses a councillor's request to attend a meeting by audio-visual link, their link to the meeting is to be terminated.
- 5.26 A decision whether to approve a councillor's request to attend a meeting by audio-visual link is at the council's or the relevant committee's discretion. The council and committees of the council must act reasonably when considering requests by councillors to attend meetings by audio-visual link. However, the council and committees of the council are under no obligation to approve a councillor's request to attend a meeting by audio-visual link where the technical capacity does not exist to allow the councillor to attend the meeting by these means.
- 5.27 The council and committees of the council may refuse a councillor's request to attend a meeting by audio-visual link where the council or committee is satisfied that the councillor has failed to appropriately declare and manage conflicts of interest, observe confidentiality or to comply with this code on one or more previous occasions they have attended a meeting of the council or a committee of the council by audio-visual link.
- 5.28 This code applies to a councillor attending a meeting by audio-visual link in the same way it would if the councillor was attending the meeting in person. Where a councillor is permitted to attend a meeting by audio-visual link under this code, they are to be taken as attending the meeting in person for the purposes of the code and will have the same voting rights as if they were attending the meeting in person.

- 5.29 A councillor must give their full attention to the business and proceedings of the meeting when attending a meeting by audio-visual link. The councillor's camera must be on at all times during the meeting except as may be otherwise provided for under this code.
- 5.30 A councillor must be appropriately dressed when attending a meeting by audio-visual link and must ensure that no items are within sight of the meeting that are inconsistent with the maintenance of order at the meeting or that are likely to bring the council or the committee into disrepute.

Modes of Address

- 7.1 If the chairperson is the mayor, they are to be addressed as 'Mr Mayor' or 'Madam Mayor'.
- 7.2 Where the chairperson is not the mayor, they are to be addressed as either 'Mr Chairperson' or 'Madam Chairperson'.
- 7.3 A councillor is to be addressed as 'Councillor [surname]'.
- 7.4 A council officer is to be addressed by their official designation or as Mr/Ms [surname].

Order of Business for Ordinary Council Meetings

- 8.2 The general order of business for an ordinary meeting of the council shall be:
1. Opening of meeting
 2. Acknowledgement of country
 3. Pause for Reflection
 4. Apologies and applications for a leave of absence or attendance by audio-visual link by councillors
 5. Confirmation of minutes
 6. Disclosures of interests
 7. Public Forums
 8. Mayoral Minute(s) and Condolence Motions
 9. Reports of committees
 10. Matters Arising
 11. Reports of the General Manager
 12. Notices of motions/Questions with notice
 13. Confidential matters
 14. Conclusion of the meeting

Mayoral Minutes

- 9.10 Where a mayoral minute makes a recommendation which, if adopted, would require the expenditure of funds on works and/or services other than those already provided for in the council's current adopted operational plan, it must identify the source of funding for the expenditure that is the subject of the recommendation. If the mayoral minute does not identify a funding source, the council must defer consideration of the matter, pending a report from the general manager on the availability of funds for implementing the recommendation if adopted.

Motions requiring the expenditure of funds

- 10.9 A motion or an amendment to a motion which if passed would require the expenditure of funds on works and/or services other than those already provided for in the council's current adopted operational plan must identify the source of funding for the expenditure that is the subject of the motion. If the motion does not identify a funding source, the council must defer consideration of the matter, pending a report from the general manager on the availability of funds for implementing the motion if adopted.

Voting at council meetings

- 11.11 All voting at council meetings, (including meetings that are closed to the public), must be recorded in the minutes of meetings with the names of councillors who voted for and against each motion or amendment, (including the use of the casting vote), being recorded.

Note: If clause 11.11 is adopted, clauses 11.6 – 11.9 and clause 11.13 may be omitted.

Dealing with items by exception

- 13.1 The council or a committee of council may, at any time, resolve to adopt multiple items of business on the agenda together by way of a single resolution.
- 13.2 Before the council or committee resolves to adopt multiple items of business on the agenda together under clause 13.1, the chairperson must list the items of business to be adopted and ask councillors to identify any individual items of business listed by the chairperson that they intend to vote against the recommendation made in the business paper or that they wish to speak on.
- 13.3 The council or committee must not resolve to adopt any item of business under clause 13.1 that a councillor has identified as being one they intend to vote against the recommendation made in the business paper or to speak on.
- 13.4 Where the consideration of multiple items of business together under clause 13.1 involves a variation to the order of business for the meeting, the council or committee must resolve to alter the order of business in accordance with clause 8.3.
- 13.5 A motion to adopt multiple items of business together under clause 13.1 must identify each of the items of business to be adopted and state that they are to be adopted as recommended in the business paper.
- 13.6 Items of business adopted under clause 13.1 are to be taken to have been adopted unanimously.
- 13.7 Councillors must ensure that they declare and manage any conflicts of interest they may have in relation to items of business considered together under clause 13.1 in accordance with the requirements of the council's code of conduct.

Representations by members of the public – *only highlighted text is optional*

- 14.11 Where the matter has been identified in the agenda of the meeting under clause 3.21 as a matter that is likely to be considered when the meeting is closed to the public, in order to make representations under clause 14.9, members of the public must first make an application to the council in the approved form. Applications must be received **a minimum of four (4) hours** before the meeting at which the matter is to be considered.
- 14.13 No more than **four** (4) speakers are to be permitted to make representations under clause 14.9.
- 14.16 Where the council or a committee of the council proposes to close a meeting or part of a meeting to the public in circumstances where the matter has not been identified in the agenda for the meeting under clause 3.21 as a matter that is likely to be considered when the meeting is closed to the public, the chairperson is to invite representations from the public under clause 14.9 after the motion to close the part of the meeting is moved and seconded. The chairperson is to permit no more than **four** (4) speakers to make representations in such order as determined by the chairperson.
- 14.17 Each speaker will be allowed **four** (4) minutes to make representations, and this time limit is to

be strictly enforced by the chairperson. Speakers must confine their representations to whether the meeting should be closed to the public. If a speaker digresses to irrelevant matters, the chairperson is to direct the speaker not to do so. If a speaker fails to observe a direction from the chairperson, the speaker will not be further heard.

Obligations of councillors attending meetings by audio-visual link

- 14.20 Councillors attending a meeting by audio-visual link must ensure that no other person is within sight or hearing of the meeting at any time that the meeting is closed to the public under section 10A of the Act.

Expulsion from meetings

- 15.15 All chairpersons of meetings of the council and committees of the council are authorised under this code to expel any person other than a councillor, from a council or committee meeting, for the purposes of section 10(2)(b) of the Act. Councillors may only be expelled by resolution of the council or the committee of the council.
- 15.16 Clause 15.15 does not limit the ability of the council or a committee of the council to resolve to expel a person, including a councillor, from a council or committee meeting, under section 10(2)(a) of the Act.

How disorder by councillors attending meetings by audio-visual link may be dealt with

- 15.21 Where a councillor is attending a meeting by audio-visual link, the chairperson or a person authorised by the chairperson may mute the councillor's audio link to the meeting for the purposes of enforcing compliance with this code.
- 15.22 If a councillor attending a meeting by audio-visual link is expelled from a meeting for an act of disorder, the chairperson of the meeting or a person authorised by the chairperson, may terminate the councillor's audio-visual link to the meeting.

Conflicts of interest

- 16.2 Councillors attending a meeting by audio-visual link must declare and manage any conflicts of interest they may have in matters being considered at the meeting in accordance with the council's code of conduct. Where a councillor has declared a pecuniary or significant non-pecuniary conflict of interest in a matter being discussed at the meeting, the councillor's audio-visual link to the meeting must be suspended or terminated and the councillor must not be in sight or hearing of the meeting at any time during which the matter is being considered or discussed by the council or committee, or at any time during which the council or committee is voting on the matter.

Rescinding or altering council decisions

- 17.10 A notice of motion to alter or rescind a resolution relating to a development application must be submitted to the general manager no later than 4pm on the day after the meeting at which the resolution was adopted.

Recommitting resolutions to correct an error

- 17.15 Despite the provisions of this Part, a councillor may, with the leave of the chairperson, move to recommit a resolution adopted at the same meeting:
- (a) to correct any error, ambiguity or imprecision in the council's resolution, or
 - (b) to confirm the voting on the resolution.
- 17.16 In seeking the leave of the chairperson to move to recommit a resolution for the purposes of clause 17.15(a), the councillor is to propose alternative wording for the resolution.

- 17.17 The chairperson must not grant leave to recommit a resolution for the purposes of clause 17.15(a), unless they are satisfied that the proposed alternative wording of the resolution would not alter the substance of the resolution previously adopted at the meeting.
- 17.18 A motion moved under clause 17.15 can be moved without notice. Despite clauses 10.20–10.30, only the mover of a motion referred to in clause 17.15 can speak to the motion before it is put.
- 17.19 A motion of dissent cannot be moved against a ruling by the chairperson under clause 17.15.
- 17.20 A motion moved under clause 17.15 with the leave of the chairperson cannot be voted on unless or until it has been seconded.

Time Limits on Council meetings

- 18.1 Meetings of the council and committees of the council are to conclude no later than 10.30pm.
- 18.2 If the business of the meeting is unfinished at 10.30pm, the council or the committee may, by resolution, extend the time of the meeting by a maximum of 30 minutes.
- 18.3 If the business of the meeting is unfinished at 10.30pm, and the council does not resolve to extend the meeting, the chairperson must either:
- (a) defer consideration of the remaining items of business on the agenda to the next ordinary meeting of the council, or
 - (b) adjourn the meeting to a time, date and place fixed by the chairperson but no later than 14 days after the deferred meeting.
- 18.4 Clause 18.3 does not limit the ability of the council or a committee of the council to resolve to adjourn a meeting at any time. The resolution adjourning the meeting must fix the time, date and place that the meeting is to be adjourned to.
- 18.5 Where a meeting is adjourned under clause 18.3 or 18.4, the general manager must:
- (a) individually notify each councillor of the time, date and place at which the meeting will reconvene, and
 - (b) publish the time, date and place at which the meeting will reconvene on the council's website and in such other manner that the general manager is satisfied is likely to bring notice of the time, date and place of the reconvened meeting to the attention of as many people as possible.

Minutes of meetings

- 19.2 At a minimum, the general manager must ensure that the following matters are recorded in the council's minutes:
- (a) the names of councillors attending a council meeting and whether they attended the meeting in person or by audio-visual link,

Minutes of council committee meetings

- 20.23 Each committee of the council is to keep full and accurate minutes of the proceedings of its meetings. At a minimum, a committee must ensure that the following matters are recorded in the committee's minutes:
- (a) the names of councillors attending a meeting and whether they attended the meeting in person or by audio-visual link,

- 20.24 All voting at meetings of committees of the council (including meetings that are closed to the public), must be recorded in the minutes of meetings with the names of councillors who voted for and against each motion or amendment, (including the use of the casting vote), being recorded.

Briefing Policy

Recommended changes to the policy are highlighted on the attached draft. The draft amended briefings policy now limits speakers at the public forum session to four minutes each with a one minute time limit on responses to questions. This will allow for better planning and more members of the public to become involved in the time allocated. Another change stipulates that Council is to maintain a written record of all conflict of interest declarations made at briefing sessions. This is consistent with the Code of Meeting Practice.

The briefing policy has also been amended to allow for workshops (training sessions) between councillors and staff.

Following a period of public exhibition, the draft COMP and the amended briefing policy will be brought back to Council for adoption.

Comments

Finance

Not required.

Public consultation

Any new or amended Code of Meeting Practice needs to be advertised, with the period of public exhibition not less than 28 days. The public notice must also specify a period of not less than 42 days after the date on which the draft COMP is placed on public exhibition during which submissions may be made to the council.

Attachment/s

1. ➡ DRAFT Code of Meeting Practice for Public Exhibition August 2022 (Over 7 pages)
2. ➡ DRAFT 1.2.20 Council Briefing Policy August 2022 (Over 7 pages)

Report

Subject	Delivery Program - Progress Report - Quarter 4 - April to June 2022
TRIM Record No	BP22/512:EF18/696
Prepared by	Community Engagement Coordinator
Reason	In accordance with the Local Government Act 1993, the General Manager is required to provide Council with a report on Delivery Program implementation at least every six months. Lismore City Council currently reports quarterly.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The attached Progress Report provides a summary of progress against each of the activities in Council's combined Delivery Program 2017–2021 and Operational Plan 2021-22 between April and June 2022. The natural disaster in February 2022 is the leading cause of actions being reported as off track or cancelled/deferred with actions either being directly impacted by the flood event or impacted because of the reallocation of resources and priorities due to the flood event. Council staff are actively taking steps to mitigate these impacts within available resources and communicate any material services delivery impacts with key stakeholders.

Recommendation

That Council receive and endorse the attached Q4 Progress Report for the period April to June 2022.

Background

The Integrated Planning and Reporting (IP&R) Framework is the set of tools that Council uses to design and deliver a portfolio of services and projects that work towards the community's vision and goals for the Lismore local government area. In accordance with this framework, we currently have in place a Community Strategic Plan 2017-2027, prepared by Council on behalf of the community, which sets out the community's vision for Lismore by 2027; and a combined Delivery Program 2017-2021 (Council's commitment to the community) and Operational Plan 2021-22.

The *Local Government Act 1993* requires the General Manager to provide a report on the progress of implementing Council's Delivery Program at least every six months. We currently report progress quarterly, aligned with Quarterly Budget Review Statements, so that Council can consider its budget performance in conjunction with progress against the activities that this budget pays for. The attached progress report covers the period 1 April to 30 June 2022.

The report includes traffic light status updates with supporting commentary for each action in the Operational Plan 2021/22. It also includes progress for the year to date for measures against each operational activity. As measures were introduced this financial year for the first time, there are still some areas of inconsistency in the report for some measures. As an organisation, we are on a continuous

improvement journey with the way we report progress, and it is important to note that significant progress has been made this financial year. As we continue to uplift the role and discipline of IP&R in the organisation, we anticipate these areas of inconsistency will significantly decrease.

In terms of operational performance, of the 169 actions, 57 (34%) are completed, 73 (43%) are reported as on track (green). We are actively taking steps to address impacts or delays to 32 actions (19%) reported as amber, and a further 7 actions (4%) have been deferred to a later time or cancelled (blue). No actions reported as requiring critical attention.

The natural disasters which have occurred in our LGA is the leading causes of actions being reported as off track. Active steps are being taken by Council staff to recover assets and operations impacted by flood events, in collaboration with relevant state agencies and funding bodies and at the direction of Council. With respect to COVID-19 impacts, it is anticipated that rolling staff shortages and supply chain disruptions will continue to impact some services and projects for the remainder of the financial year.

These cumulative impacts will be managed as best as possible within available resources, and Council staff will continue to communicate with Council and the community regarding any material changes to service levels via the website, social media, Your Say Lismore, and direct communication.

Comments

Finance

Not required

Public consultation

The report will be placed on Council's website as well as the Your Say Lismore Engagement portal for community access.

Conclusion

This Progress Report details progress against the operational activities and projects as set out in the Imagine Lismore Delivery Program 2017-2021/Operational Plan 2021-22 for the period April to June 2022.

Attachment/s

1. [↔](#) Delivery Program 2017 - 2021 Progress Report Quarter 4 - April to June 2022 (Over 7 pages)

Report

Subject	Lismore Lake Pool
TRIM Record No	BP22/494:T21/10
Prepared by	Manager Assets
Reason	To advise Council of the outcome of Expressions of Interest to restore and manage the Lake Pool.
Strategic Theme	An inclusive and healthy community
Strategy	Our sporting facilities and recreational spaces encourage active and passive community participation.
Action	Provide high-quality open spaces, parks and reserves.

Executive Summary

Following a Council resolution in 2020 to seek expressions of interest (EOI) to manage the Lismore Lake Pool, an EOI process was conducted in October 2021. No responses were received and Council must now determine the way forward with this land.

Recommendation

That:

1. having received no responses to the expression of interest process, Council take no further action in regard to re-establishing or re-opening the Lismore Lake Pool.
2. potential future uses for the land be explored and coordinated with work arising from Council's decision of 8 February 2022 – Item BP22/44 regarding the Lismore Lake precinct.
3. staff prepare a scope of works and costings for a staged demolition of the Lake Pool and associated infrastructure, excluding the existing amenities building, for inclusion in a QBRS and/or Council's long term financial plan to allocate funding.

Background

The Lake Pool was closed by resolution of Council on 8 November 2011 as a result of serious work, health and safety issues and significant costs to repair plant and equipment that had reached the end of its life. Since that time it has remained unused with staff regularly emptying water from the pool and undertaking other maintenance around the site.

As the pool had been a free facility, this decision understandably was unpopular at the time and a number of individuals and groups sought to have the pool re-opened. A brief chronology of the history is as follows:

Date	Action
8/11/2011	Council resolution in 3 parts with the following effect: • Lismore Lake Pool not to re-open for 2011/12 season • Reduced fees for LMB for 2011/12 • Staff develop a plan for redevelopment of the site to facilitate ongoing community recreation space and meeting place through CSP
23/2/2016	Councillor briefing on opportunity to sell the Lake Pool land.
8/3/2016	Notice of Motion and resolution to investigate cost of repair and re-opening of Lake Pool and report back to Council before selling, rezoning etc. Reported back to July 2016 meeting recommending no further action due to excessive capital and ongoing costs.
May 2016	Councillor briefing on costs and issues associated with re-opening Lake Pool
12/7/2016	Notice of Motion to commit Council to restoring the Lake Pool through CSP, no lifeguards, and all capital works from existing budgets or grants.
8/5/2017	Report to Council recommending Council include \$2.7M for reconstruction of the Lake Pool and \$160K for ongoing operations, based on Concept Design & Feasibility Assessment completed in March 2017. Council resolved to not re-open pool, include \$450K in 2018/19 budget to demolish pool and LTFP provision of \$30K for ongoing maintenance.
8/3/2018	Notice of Motion to re-open the Lake Pool. Council resolves to defer any decision on demolition/refurbishment until Lismore Lake Inc. Committee can present a proposal for free community facility by August 2018.
June 2018	Council decision to defer \$450K allocated funding for demolition of Lake Pool from 2018/19 budget.
11/9/2018	Report to Council advising no submission from Lismore Lake Inc. Committee. Recommending that if no submission received by Oct 2018, then matter will not be able to be considered for 2019/20 budget. Council resolves to form a Committee to report back within 6 months with findings.
March 2019	Findings of Committee to be reported back to Council. Four (4) Committee meetings held at a cost to Council of \$5,600 for servicing the Committee. No outcomes or recommendations from Committee. No submission from Lismore Lake Inc.

Several attempts have been made over the last decade to re-open the lake pool, and over that period, there has been no proposal presented by any party for analysis or review by Council other than the March 2017 costings commissioned by Council.

At its ordinary meeting of 12 November 2020 Council resolved that:

1. Staff develop an Expression of Interest to go to the market to assess if there are any legitimate parties within the community that would be willing to take over the land on which the Lake Pool is located.
2. Staff develop a leasing or licensing framework that would enable any interested parties with appropriate background and experience in similar project delivery to apply for grants, organise community funding, make representations to Government and undertake works. This timeframe for the lease is to be no less than five years.
3. Any ongoing maintenance or operational costs for a facility, and that are proposed to revert to Council's ownership or care and control will only be considered for transfer to Council by resolution in response to a properly costed proposal that complies with relevant industry standards for the infrastructure proposed.
4. Inclusion be made in future budget funding upon request for DAs, permits or other Council related fee support to assist with progressing any properly costed proposals."

An EOI document was prepared and Expressions of Interest were called, closing on 29 October 2021. Whilst a number of enquiries were received during the advertising period, no formal responses were received.

The pool is now in significant disrepair and is an eyesore at the southern entry to Lismore on the Bruxner Highway. It has been this way for over 10 years and the time is right to start a discussion about how to make this space an attractive and inviting entry to Lismore that complements the adjacent lake.

An opportunity exists to consider future use of this land as part of the Lismore Lake precinct planning process.

At the Council meeting of 8 February 2022 Council resolved in relation to the Lismore Lake precinct that:

- "1. Council includes the Lismore Lake Precinct in the Community Strategic Plan, Delivery Program, and the Operational Plan as an unfunded line item;*
- 2. Council enters a License Agreement with Lismore Lake Incorporated, allowing Lismore Lake Incorporated to:*
 - a. secure insurance at no cost to Council to cover volunteers;*
 - b. undertake bush regeneration work at the Lismore Lake Precinct at no cost to Council according to the previously submitted and approved Lismore Lake Incorporated Landcare bush regeneration plan;*
 - c. undertake other works at the Lismore Lake Precinct at no cost to Council subject to the current Bob Gates Memorial Recreation Reserve Plan of Management and staff oversight and final determination; and*
 - d. actively seek out and pursue State and Federal untied funding grants at no cost to Council to be considered by Council prior to being accepted or rejected."*

Point 1 of the resolution is a reference to there currently being no funding available to update the Plan of Management for the precinct.

Whilst that process occurs, the pool and associated plant and equipment should be demolished. The amenities block would remain as it could be refurbished and utilised in future plans for the site.

A previous estimate to completely demolish and remove the concrete pool, plant and equipment and storage shed and fill the pool with soil and turf affected areas as a single project was approximately \$400,000. This would need to be updated, and could include consideration of different options for demolition/disposal.

Clearly Council does not have this sort of funding available at present and staff would also explore alternate methods to either stage the demolition to reduce upfront costs and spread over time, or defer some demolition items so that costs could be included in potential grants for future upgrade of the area.

Once these issues have been explored, a scope of works and costings would be developed to stage the works with funding for the demolition sought to be allocated in a QBRS or as part of Council's long term financial plan.

Comments

Finance

The recommendation as printed for the development of a scope of works and costings for a staged demolition is supported. Once the cost of the project has been quantified, Council can then determine the delivery of the project within Council's financial constraints and competing strategic priorities.

Public consultation

Not required.

Conclusion

The Lake Pool was closed in 2011 as a result of safety issues and significant costs associated with replacing plant and equipment that had reached the end of its life. As a result of the 2022 floods, the dilapidated lake pool has experienced damage to fencing, and represents an ongoing risk to public health and safety in its present condition.

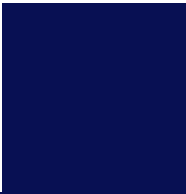
An expression of interest process to identify any potential community groups or other interested parties to repair, manage and operate the pool on Council's behalf did not yield any responses.

As such it is time to move forward with demolishing the pool and planning the future use of this space in conjunction with planning of the Lismore Lake precinct.

Attachment/s

There are no attachments for this report.

Committee Recommendations



Committee Recommendation

Floodplain Management Committee Minutes - Meeting 12 May 2022

Recommendation

That the attached:

1. minutes of the Lismore Floodplain Management Committee meeting held on 12 May 2022 be received and the recommendations contained in the minutes be adopted.
2. Terms of Reference, as amended by the Committee at the meeting held on 12 May 2022 be adopted by Council.

Attachment/s

1. [↓](#) Floodplain Risk Management Committee minutes
2. [↓](#) Terms of Reference

Lismore Floodplain Management Committee Minutes 12 May 2022

MINUTES OF THE LISMORE FLOODPLAIN MANAGEMENT COMMITTEE HELD IN COUNCIL CHAMBERS ON THURSDAY, 12 MAY 2022 AT 2PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Councillor Elly Bird, Councillor Vanessa Ekins (appointed Chair), Councillor Electra Jensen (left 4.50pm), Councillor Big Rob, Jeremy Stewart, Andrew Logan, Caroline Sullivan, Martin Rose (*arrived 1.50pm – left 5.04pm*) and Graham Askey.

In Attendance

*Andy Parks, LCC Acting Strategic Planning Coordinator
Julie Hull, LCC Administration
Sandra Campbell, LCC Administration
Eber Butron, LCC
Scott Turner, LCC
Observers:
Councillor Adam Guise
Beth Trevan – via teams
Our Future Northern Rivers – via teams*

Appointment of Chair of this meeting

Councillor Jenkins could not attend in person. Councillor Rob and Councillor Ekins nominated for Chair.

Councillor Ekins - IN FAVOUR: 4 (Jeremy Stewart, Caroline Sullivan, Councillor Bird, Councillor Ekins) AGAINST: 1 (Councillor Rob)

Councillor Big Rob - IN FAVOUR: 1 (Councillor Big Rob)

After a show of hands Councillor Ekins became Chair of the meeting.

Apologies

Toong Chin, Lindy Margan, Ed Bennett, Chad Ellis

Non Attendance

Scott Jones – Lismore Chamber of Commerce

**Lismore City Council
Minutes of Lismore Floodplain Management Committee Meeting held 12
May 2022**

1

Lismore Floodplain Management Committee Minutes 12 May 2022

Disclosure of Interest

Jeremy Stewart – partner owns property in South Lismore prior to flood.
Jeremy Stewart – planning to purchase Lismore property in CBD.
Graham Askey has previously disclosed he has property in North Lismore

Motion put forward by Graham Askey to adjourn meeting to another date

Seconded: Councillor Big Rob

IN FAVOUR: 2 (Councillor Big Rob, Graham Askey)

AGAINST: 5 (Councillor Ekins, Councillor Bird, Councillor Jensen, Andrew Logan, Caroline Sullivan)

Business

4.1 Floodplain Management Committee new Terms of Reference

The Committee amended the Terms of Reference (TOR) in accordance with the Council resolution of April 12, 2022.

Amendments were made by majority vote following discussion on specific clauses.
Council's acting strategic planning coordinator was asked to complete the draft.

Once completed, the draft TOR is to be submitted to the next Council meeting for acceptance.

Graham Askey asked to move a Condolence motion to note Ron Hepburn's passing.

Seconded by Councillor Big Rob

Voted unanimously

Closure

This concluded the business and the meeting terminated at 5.25 pm.

Next meeting TBC



Floodplain Risk Management Committee

Terms of Reference (As amended by the Committee 12/5/22)

1. Name

Floodplain Risk Management Committee

2. Background

The NSW Government's **Floodplain Development Manual** and the **Flood Prone Land Policy** guide local government in managing flood risk in their communities.

The main objective of the Policy is to reduce the impact of flooding and flood liability on owners and occupiers of flood-prone property and reduce public and private losses. The Policy recognises the benefits of use, occupation and development of flood-prone land. The Policy is incorporated into the NSW Floodplain Development Manual, which emphasises the importance of developing and implementing floodplain risk management plans. The purpose of a floodplain risk management plan is to evaluate all factors (including social, economic, ecological and cultural impacts and flood risk) that affect the use of flood prone land and address existing, future and continuing flood risks in a comprehensive manner through a range of different management measure.

The Manual supports the Policy and guides councils through the floodplain risk management process. The Manual helps councils develop and implement local floodplain risk management plans and outlines the technical assistance provided by the NSW Government.

The **Floodplain Risk Management Guidelines** complement the Manual to help councils to fulfil their role in developing and managing flood-prone land while reducing damage from floods.

The purpose of a **Floodplain Risk Management Plan** is to provide input into the strategic and statutory planning roles of councils. It does not, by intent, purport to be the only document relevant to development of flood prone land. The Plan provides the type of information necessary for adequate forward planning for flood prone land.

The first formal step in the process is the formation of a committee chaired by Council. It is advisory in nature as responsibility for planning matters lies with Council as a whole. Therefore, the committee should report directly to Council.



3. Scope

The principal objective of the Committee is to assist Council in the development and implementation of a Plan for the area(s) under its jurisdiction. However, the Committee also assists in:

- formulating objectives (in accordance with ecologically sustainable development principles), strategies and outcomes sought from the process;
- providing a link between the local community and Council;
- Identifying the flood problem to be assessed and the study areas;
- considering and making recommendations to Council on appropriate development controls for use until the Plan is completed, approved and implemented;
- supervising the collection of necessary data and supervising and monitoring the progress and findings of studies being undertaken in the various stages of the Plan;
- providing input into known flood behaviour as part of the flood study;
- identifying management options and providing input into their consideration as part of the management study;
- identifying implementation strategies for the Plan;
- monitoring and assessing the effectiveness of the Plan during and after its implementation;
- coordinating and monitoring the public education programs essential to the long-term viability of the Plan; and
- coordinating with other relevant agencies.

Once the Committee has completed the prime task of developing a Plan and associated implementation strategy, and Council has adopted these, a limited group, including community representatives, to be defined by Council will remain to oversee implementation.

4. Limitations

- The Committee does not have any formal powers, as it has an advisory role.
- The Committee is unable to commit Council to any expenditure or specific course of action.
- Committee members are not authorised to speak or issue media releases on behalf of the Committee or Council.

5. Membership of the Committee

The Committee consists of:



- A minimum of two (2) Lismore City Councillors (with the Chair of the Committee to be the Mayor or the Mayor's nominee).
- 1 technical specialist from Lismore City Council;
- 1 technical specialist from Rous County Council;
- 1 technical specialist from Southern Cross University;
- 1 representative from DPE; and
- 1 representative from SES.

And up to 6 community members as follows:

- 1 community member from North Lismore;
- 1 community member from South Lismore;
- 1 other community member (not geographically specific)
- 1 First Nation's community member
- 1 community member representing business owners; and
- 1 community member representing environmental groups.

Representatives from the following organisations will be invited as advisory members to the committee but will not be included as formal members of the committee for the purpose of establishing quorum:

- Northern Rivers Reconstruction Corporation; and
- CSIRO

Technical specialist and representative positions on the Committee will be nominated by their relevant organisations. In accordance with the **Floodplain Development Manual**, State and Federal Government agency representatives do not have voting rights but provide advice in relation to their area of expertise and departmental function. The Lismore City Council staff position will also not have voting rights.

Community member positions on the Committee are to be filled following an Expressions of Interest process and selection by Council.

The selection criteria for community representatives will be as follows:

- Demonstration of connection and links to their geographic community or community of interest (as appropriate) and;
- Demonstration of awareness in relation to flood risk management issues.



5.1 Technical Sub-Committee

The Committee should also maintain a specialist Technical Sub-Committee to deal with complex technical issues. The role of the Sub-Committee is to provide technical assistance and advice to enable the Committee to fulfill its advisory role to Council efficiently, confident that studies and option assessments are technically adequate, and the options proposed are practical and feasible.

The Sub-Committee includes membership from Council, Rous County Council and the Department of Planning and Environment (DPE) and other technical experts as required. A representative of SES is also included when the Sub-Committee is considering emergency management issues.

5.2 Term of the Committee

- Membership of the Committee is for a period commencing from the date of selection by Council, to be within six months of the most recent general election and continuing until six months after the next general election, or as soon as otherwise practicable.
- The Committee may be dissolved or established by Council resolution.
- Casual vacancies on the Committee may be filled by Council resolution.
- A Committee member will cease being a member of the Committee if:
 - (a) the Committee is dissolved by Council resolution;
 - (b) a written notice of resignation is provided by a member;
 - (c) a member is absent for three consecutive meetings; or
 - (d) if a technical specialist or representative, a member ceases working for or representing their relevant organisation.

6. Meeting Protocol & Procedure

- Meetings of the Committee will follow the Agenda.
- Agenda items will be requested when a meeting is called.
- Members will speak through the Chairperson.
- Members will be respectful of each other and not interrupt a speaker.
- Professional or specialist advisers may be invited to address Committee meetings from time to time as required.
- Matters will be decided by show of hands. Proxy votes will not be accepted.
- Members of the public will be welcomed to meetings of the Committee but shall not vote on matters before the Committee. Members of the public may



request to make representations to the Committee or to raise questions at the discretion of the Chairperson.

- Members of the public cannot make audio or video recordings of the meetings. Notes can be taken.
- Minutes will be taken at each meeting, and they will be made available to Committee members and the public when they become available.
- Minutes will be reported to the next scheduled Council meeting for consideration and adoption.

7. Meeting Frequency

The Committee will meet as needed during the preparation of the Floodplain Risk Management Plan as directed by the Chairperson.

8. Quorum

Quorum consists of half the currently appointed members plus one.

9. Conflict of Interest

Committee members are required to disclose any potential conflict of interest and appropriately manage any conflict to the satisfaction of Council.

Committee Recommendation

Traffic Advisory Committee Minutes - Meeting of 18 May 2022

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Traffic Advisory Committee Minutes - Meeting of 18 May 2022

Traffic Advisory Committee Minutes 18 May 2022

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE HELD IN COUNCIL CHAMBERS ON WEDNESDAY, 18 MAY 2022 AT 10.00AM

Please note: These minutes are subject to confirmation at the next Council meeting.

Present

Cr Jeri Hall (Chairperson), Caleisse Dunston (Transport for NSW) and Sgt Clint Williams (Lismore Police).

In Attendance

Rochelle Hellier (Property Officer and Native Title Manager), Leanne Clark (Events Officer), Nathan Dee (Events Client Service Officer), Barry Goodwin (Design Services Engineer) and Maddison Spencer (minutes).

Apologies

Apologies for non-attendance were received on behalf of Janelle Saffin, MP (Member for Lismore).

Confirmation of Minutes

The Committee was advised that the Traffic Advisory Committee minutes of 13 April 2022 were received and adopted by Council at Council's ordinary meeting on 10 May 2022.

Disclosure of Interest

Nil.

Part 'A' – Committee Recommendations

4.2 Request for No Stopping zone - Dibbs Street, East Lismore

Request received from East Lismore resident requesting the Committee consider installation of a No Stopping zone between 158-160 Dibbs Street.

The request relates to:

- Insufficient distance between the two driveways at these residences for a vehicle to park.
- Vehicles parking across the driveways.
- The parking space being in close proximity of a Bus Stop.
- Increase in traffic as a result of the school opposite these residents being re-activated as temporary schooling premises.
- Sight distance issues.

Traffic Advisory Committee Minutes 18 May 2022

Dibbs Street is a local collector road, being a two way undivided nominal 10m wide carriageway with onstreet parking. It is a primary link between Ballina Road (B60) south to East Lismore. Traffic count data (2013) indicates the average daily traffic (ADT) of approximately 4,350 vehicles including 4% heavy vehicles. It provides access for daily school bus services.

The site has attracted more traffic in recent months as a result of the re-activation of Our Lady of Lourdes School to house primary students from schools damaged by the February flood events.

There is a Bus zone (during peak times) north of House No. 158 and the available area for a car to park does not meet relevant standards. In addition there is a Council water hydrant that may require access in an emergency situation, which may not be available if a vehicle is parked in this location.

It should also be noted that the minimum length of a park is 5.5m.

TAC45/22 **RECOMMENDED** that:

1. The existing Bus zone north of 158 Dibbs Street, East Lismore, be removed.
2. Timed parking zones (15mins) be introduced during School zone times in replacement of the Bus zone.
3. A request be issued to Council's Civic Services Section to update signage from a Bus zone to timed parking.
4. The writer be advised of the outcome.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

4.4 Request for Change to Access - DA21/585 - 65 Rous Road, Goonellabah

Request received for the Committee to consider changes to the driveway access at 65 Rous Road, Uniting Caroon Goonellabah, in conjunction with proposed Development Application DA21/585.

The proposed development includes the addition of approximately 10 carparks in the north-western area of the property, which is in the closest vicinity of the existing access that currently allows egress movements only onto Rous Road. This driveway is currently an egress point only with the primary ingress off Rous Road at the intersection with Oliver Avenue.

The request is to widen the existing driveway to 6.0m to allow entry and exit movements to the facility, restricting vehicles to left in/left out only movements onto Rous Road. It also includes the extension of the centre median to the east to restrict vehicles to a left in/left only manoeuvre. This will impact the residents of House Nos. 68 and 70 on the northern side of Rous Road and direct them to the roundabout at the intersection of Oliver Avenue to turn around to travel west along Rous Road.

Rous Road, Goonellabah is an arterial road under Council's road hierarchy and is the primary road connecting with HW60 Ballina Road. It is a two-way nominal 13m wide carriageway generally with onstreet parking. Traffic data indicates that this section of Rous Road caters for approximately 9,000 (2016) ADT (Average Daily Traffic) with approximately 4% heavy vehicles, including commercial and school bus services.

There has been one recorded accident in the vicinity (2019), located approximately 50m east of the pedestrian refuge, resulting in a serious injury. The single vehicle accident southbound lost vehicle control and impacted with a stationary object.

Traffic Advisory Committee Minutes 18 May 2022

TAC46/22 **RECOMMENDED** that:

1. Council support in principle the changes to driveway access at 65 Rous Road, Uniting Caroon Goonellabah, in conjunction with proposed Development Application DA21/585, including the extension of the centre median to the east to restrict vehicles to a left in/left out only manoeuvre.
2. The concept and design plan received as part of the Development Application process be referred back to the Committee.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

Items for Discussion

5.2 CBD Temporary Changes to Parking Zones

Request received from Council's Regulatory Services Coordinator regarding temporary changes to parking zones within the Lismore CBD to accommodate trade staff undertaking re-building activities to assist with the Flood Recovery Program.

Site 3 - Molesworth Street – Temporary Pedestrian Crossing

- Temporary pedestrian crossing to be installed and 40 kph roadworks to calm traffic in Molesworth Street opposite the Clyde Campbell Car Park. Koori Mail has set up some tents to provide food and assistance in Molesworth Street and are concerned about pedestrians crossing the road. A temporary light tower has also been installed.

TAC47/22 **RECOMMENDED** that:

1. Council not support the implementation of a formal pedestrian crossing on Molesworth Street, opposite the Clyde Campbell Car Park.
2. Investigations be undertaken to relocate the Koori Mail flood recovery facility due to traffic safety concerns.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

5.4 Request for One Way Traffic Movements – Mill Street, The Channon -

Request received from Council's Construction Engineer for the Committee to consider conversion of the existing two way laneway at Mill Street, The Channon, to a one-way lane (northbound), between the Terania Street intersection and The Channon Store.

A request has been received for the introduction of a One-Way Only (northbound) for Mill Street, The Channon, between the Terania Street intersection and The Channon Store.

Mill Street incurred extensive pavement damage as a result of recent flood events. The available road no longer meets the necessary width for a two-way road.

TAC488/22 **RECOMMENDED** that:

1. Council support in principle the conversion to a one-way lane (northbound) for Mill Street, The Channon, between the Terania Street intersection and The Channon Store.
2. Council officers undertake community consultation.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

Traffic Advisory Committee Minutes 18 May 2022

Part 'B' – Determined by Committee

4.1 Traffic Safety Issues - Sunset Drive, Goonellabah

Request received from a Goonellabah resident requesting the Committee consider traffic safety issues as a result of an increase in onstreet parking in Sunset Drive.

The writer has specifically mentioned the area where there are units constructed, claiming that it is impossible to pass vehicles simultaneously and citing traffic safety issues on refuse collection days.

Sunset Drive is a local access road under Council's road hierarchy and provides connectivity between Fig Tree Drive to the west and Invercauld Road to the east. Both streets are Local Collectors and provide access to East Lismore and Goonellabah. It is a two way nominal 8.2m wide carriageway which allows for onstreet parking. The road is approximately 250m in length and the only units are located at 2 Sunset Drive. There is off-street parking for these units catering for six vehicles.

Lismore City Council Development Design Specification D1 Geometric Road Design (Urban and Rural) Table D.1.5. Characteristics of Roads in residential Subdivision in Road Networks indicate for a local street classified road that there be 7-9m carriageway width, which allows for mountable kerb for onstreet parked vehicles to traverse the kerb and gutter.

There is no recorded traffic data for Sunset Drive but the street caters for a set of units and 22 residential dwellings, and a calculation as per Council's relevant Development Design Specification recommends considering 10 vehicle trips per day.

TAC49/22 **AGREED** that:

1. The request for the Committee to review traffic safety issues at Sunset Drive, Goonellabah has been noted and discussed.
2. The Committee not support the request for dedicated No Stopping zones.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.
Voting against: Nil.

4.3 Request for No Stopping Zone - 115 Donnans Road, Lismore Heights

Request received from a Lismore Heights resident for the Committee to consider installation of a No Stopping zone on the Council road verge in the vicinity of 115 Donnans Road.

The writer indicates that vehicles are being parked on the Council road verge creating traffic safety issues for refuse collection vehicles.

Donnans Road is a Local Collector road under Council's road hierarchy, providing connectivity between High Street to the north and Bangalow Road HW62, and attracts heavy vehicles. It is used as a "rat run" between the areas and is a designated bus route. The road is a two-way nominal 6.0m wide carriageway with no formal parking areas provided. There is no recorded traffic data for this section of Donnans Road, however traffic data from 1996 (approximately 1.3km west of the site) indicates 1,500 vehicles as Average Daily Traffic (ADT).

The site is located on a reverse curve with double barrier pavement markings. There is a small road verge approximately 2m wide on the western side which abuts a retaining wall and concrete drain. On the eastern side of the carriageway is a variable width ranging from 1.5m to 3.0m which interfaces with a steep bank of approximately 40% slope down

Traffic Advisory Committee Minutes 18 May 2022

to residents in Maluta Place. Due to land topography, a service road exists for properties on the western side of Donnans Road, being House Nos. 113 to 131.

Refuse collection is undertaken in a northbound direction.

There has been one recorded accident in this area in 2002 where a northbound vehicle impacted with a stationary vehicle resulting in injury to the driver.

TAC50/22 **AGREED** that:

1. Council's Design Services team liaise with the Waste Collections team about refuse collection impacts along Donnans Road between Nos. 113 to 131.
2. The Committee defer the matter to a future meeting pending a response from the Waste team.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

4.5 Local Street Guide Outdoor Dining Policy & Lismore Pies Outdoor Dining - Changes to Dining Area

Request received from Council's Property Officer seeking the Committee's consideration of proposed changes to the existing Pie Cart dining area in Magellan Street, Lismore CBD.

The Local Street Guide was discussed, where the following was acknowledged:

- In November 2020 Council adopted the NSW State Outdoor Dining Policy and accompanying User Guide.
- The Local Street Guide is to allow Council to apply unique or specific requirements that are not dealt with in the broader policy document.
- Public Notice of the Local Street Guide was placed on *Your Say Lismore* for public comment and submissions closed 6 May 2022.
- A Council report has been drafted recommending Council adopt the Local Street Guide, as publicly exhibited.

With respect to Lismore Pies, the proposal is to modify the existing dining area layout in accordance with the stamped approved plans. Magellan Street is a Local Collector in Council's road hierarchy. It is a one way (westbound) 9.0m wide carriageway, including onstreet parking on both sides of the carriageway. It provides egress from Magellan Street for shoppers including service vehicles providing deliveries to the CBD inner laneways. Traffic data for Magellan Street (2014) indicates an average daily traffic ADT of 2,054 including 3% heavy vehicles, and an 85% percentile (average vehicle speed) of 22 kph.

The proposal has been considered in accordance with the Local Street Guide Outdoor Dining Policy (to be recommended for adoption at a future Council meeting) and NSW Outdoor Policy and NSW Outdoor Dining User Guide.

TAC51/22 **AGREED** that the Committee support in principle:

1. The continued operation of the Pie Cart and existing kerbside dining in its current location.
2. Expansion of the dining area along the wall of the old post office, subject to appropriate wayfinding aid warning indicators (e.g. tactile ground surface indicators (TGSIs)), in order to present sufficient, distinguished, predictable and physical warning of the dining area for people who are blind or have a vision impairment (reasoning: this side of Magellan Street does not provide any consistent wall).

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

**Lismore City Council
Minutes of Traffic Advisory Committee Meeting held 18 May 2022**

5

Traffic Advisory Committee Minutes 18 May 2022

Items for Discussion

5.1 CBD Temporary Changes to Parking Zones

Request received from Council's Regulatory Services Coordinator regarding temporary changes to parking zones within the Central Business District (CBD) to accommodate trades staff undertaking re-building activities to assist with the Flood Recovery Program.

Site 1 - Carrington Street – Temporary Accessible Park

- A request has been put forward from Council's Manager Built Environment following a Councillor Request regarding the installation of a temporary Accessible Park in Carrington Street during the operation of the polling booth for pre-poll voting. There is a kerb ramp at the rear of the parking space adjoining the kerb blister to provide access. There is a permanent second Accessible park south of this site. It has been requested that it remain in operation until close of voting Saturday, 21 May 2022.
- There has been a request to include a temporary access area for a Taxi zone during the CBD Flood Recovery Works.

Site 2 - Keen Street – adjacent to BWS and Lismore Central

- Taxi zone during the CBD Flood Recovery Works - The previous Taxi zone in Carrington Street is being used as a container storage area.

TAC52/22 **AGREED** that:

1. The Committee support in principle the proposed temporary changes to CBD parking to assist with the flood recovery program.
2. The Committee acknowledge temporary changes to car parks in the CBD are at the Rangers' discretion.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

5.3 Traffic Management Plan - Lismore Lantern Parade

Request for approval of Traffic Guidance Scheme for the annual Lismore Lantern Parade planned for 25 June 2022.

The Lismore Lantern Parade is returning to the Lismore CBD on Saturday, 25 June 2022. The Organisers will engage Lack Group to implement the car park and road management.

Friday, 24 June - Establishment

Carrington Street from Magellan Street to the Woolworths Ramp will be closed from 12pm Friday, 24 June to enable construction of the stage and marquee cover.

Saturday, 25 June - Parade Route - 4.30pm-6.30pm

The parade will assemble in Magellan Street between Keen Street and Dawson Street at approximately 4.30pm. The parade will commence at 5.30pm and shall proceed along Magellan Street, turning into Molesworth Street (eastern side) allowing egress for NSW Fire & Rescue vehicles if required. The parade will then turn into Market Street and Victoria Street past the skate park.

The audience will assemble along Victoria Street from the skate park to the corner and on the lower level of the levee bank. The large feature lanterns will continue around the corner and into the Riverside Park car park (fenced), then return to the Victoria Street viewing area.

Procession of The North and South – 5.45pm–6.30pm

At 5.45pm a small procession performance (50 people) will depart from the former

Traffic Advisory Committee Minutes 18 May 2022

Railway Station and proceed along the Union Street footpath past NORCO and across the Ballina Street Bridge and down the steps to meet up with the other parade. Participants will remain on the footpath.

Fiery Finale - 6.30pm–7pm

A short theatrical display on the levee bank will follow the parade. The audience will view from Victoria Street and the lower parts of the levee bank. The general public will not be permitted on the river (western side) of the levee bank. The pathway along the riverside from Market Street will be closed to prevent entry into the Riverside Park area from the west (back stage), and there will be professional security in this area.

TAC53/22 **AGREED** that:

1. The Committee support in principle the Traffic Guidance Scheme for the Lismore Lantern Parade to be held in the Lismore CBD on 25 June 2022.
2. The final/ approved Traffic Guidance Scheme be referred to the Committee meeting of 15 June 2022 to discuss and approve.
3. The event organisers obtain approval from relevant authorities.
4. The organisers install relevant pedestrian safety barriers as determined by NSW Police and in consideration with Hostile Vehicle Guidelines for Crowded Places documentation.
5. The event organisers undertake a risk management review.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Sgt Clint Williams.

Voting against: Nil.

Closure

This concluded the business and the meeting terminated at 11.45am.

Committee Recommendation

Traffic Advisory Committee Minutes - Meeting of 15 June 2022

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Traffic Advisory Committee Minutes - Meeting of 15 June 2022

Traffic Advisory Committee Minutes 15 June 2022

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE HELD IN COUNCIL CHAMBERS ON WEDNESDAY, 15 JUNE 2022 AT 10.00AM

Please note: These minutes are subject to confirmation at the next Council meeting.

Present

Cr Jeri Hall (Chairperson), Caleisse Dunston (Transport for NSW), Sgt Clint Williams (Lismore Police) and Harry Gregg (on behalf of Janelle Saffin, MP).

In Attendance

Jyllie Jackson (Lismore Lantern Parade Organiser – Item 4.4), Jim Roberts (Community Recreation Planner – Item 4.1), Mayor Steve Krieg (Item 5.4), Cr Peter Colby (Deputy Mayor – Item 5.4), Barry Goodwin (Design Services Engineer) and Maddison Spencer (minutes).

Apologies

Apologies for non-attendance were received on behalf of Janelle Saffin, MP (Member for Lismore).

Confirmation of Minutes

TAC54/22 The Committee was advised that the Traffic Advisory Committee minutes of 18 May 2022 were deferred at Council's ordinary meeting of 14 June 2022. The minutes are to be considered at Council's ordinary meeting on 12 July 2022.

Disclosure of Interest

Nil.

Part 'A' – Committee Recommendations

4.2 Request for Give Way Sign Controlled Intersection - Wedgetail Court, Goonellabah

A request has been received from Council's Development Engineer in relation to the provision of a Give Way controlled intersection at the intersection of Just Street and the proposed Wedgetail Court, Goonellabah.

Development Application DA02/771.4 Condition 85 requested the developer to provide traffic calming devices at the intersection of Just Street and Wedgetail Court to minimise traffic flow and speed into lower order streets in the road network.

The proposed road (Wedgetail Court) is designed on a slight curvature of 200m linear distance and is two way with a proposed road width of 9.0m and intersects with Just

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Street with a T intersection.

Sight distance along Just Street to the north is approximately 100 metres and to the south approximately 60m.

TAC55/22 **RECOMMENDED** that Council support the request for the developer to install a Give Way sign for the proposed intersection of Just Street and Wedgetail Court, Goonellabah.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

4.3 Request for Traffic Calming, Proposed Road of William Blair Avenue, Goonellabah

A request has been received from Council's Development Engineer in relation to the Committee providing advice in relation to a Development Application condition requesting the installation of traffic calming devices at the intersection of William Blair Avenue and Blair Place, Goonellabah.

Development Application DA5.2013.65.1 Condition 29 had requested the developer to provide traffic calming devices at the intersection of William Blair Avenue and Blair Place.

Council's Development Engineer is requesting feedback from the Committee in the relation to the need for traffic calming treatments on Blair Place and for any comments in relation to intersection treatments for the proposed road extension of William Blair Avenue.

TAC56/22 **RECOMMENDED**

1. That Council do not support the request for the developer to provide traffic calming devices at the intersection of William Blair Avenue and Blair Place, Goonellabah.
2. That future stages of the development be referred to the Committee for comment on traffic related items.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

Items for Discussion

5.1 Speed Zone Reviews - Various Sites

Requests have been received for Speed Zone Reviews (SZRs) at various sites within Lismore LGA.

SZRs are managed by Transport for NSW with a previous agreement by the Committee for any requests to be discussed by the Traffic Advisory Committee.

5.1.1. Richmond Hill Road

A resident from Richmond Hill Road has requested that the 50kph speed zone be extended past the previously approved speed zone as reviewed by TfNSW in 2020. The request is to extend the existing 50kph speed zone a further 400m past the Vistara Primary School at 41 Richmond Hill Road.

The School zone is currently managed by 40kph flashing lights and relevant signage and pavement markings.

5.1.2 Tregeagle Road

A resident from Tregeagle has requested Council investigate options to reduce speeding vehicles in the vicinity of the Tregeagle Public School on Tregeagle Road. The writer claims that drivers are ignoring the School zone flashing lights and putting children at risk.

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There are flashing lights present, pavement markings and signage in accordance with relevant standards. The School zone is currently managed by 40kph flashing lights during peak school times.

TAC57/22 **RECOMMENDED** that:

1. Council do not support the request for the extension of the 50kph speed zone along Richmond Hill Road.
2. A site inspection be undertaken in the vicinity of the Tregeagle Public School for the Committee to consider speed calming devices.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

5.2 Temporary Parking Changes - Keen Street, Lismore CBD

A request has been received for temporary changes to parking in Keen Street during the proposed reconstruction of the footpath on the western side of the street.

A request has been received from the Project Manager of the proposed reconstruction of the footpath in Keen Street for temporary parking changes including:

1. Relocation of the Loading zone on the western side of Keen Street to the centre parking area.
2. The inclusion of site laydown area in Larkin Lane near the Keen Street intersection.

A traffic guidance scheme is being prepared for this request.

Council is finalising the planning of footpath reconstruction works on the western side of Keen Street between Magellan Street north to Woodlark Street.

This will involve changes to pedestrian movements and some temporary parking changes.

The project team is seeking endorsement of the proposed changes effective during the reconstruction works.

TAC58/22 **RECOMMENDED** that:

1. Council support in principle the Traffic Guidance Scheme (TGS) for the temporary parking changes in Keen Street.
2. The final/approved TGS be referred to the Committee meeting of 20 July 2022.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

Part 'B' – Determined by Committee

4.1 Traffic Management Plan - Clifford Park, Goonellabah

A request has been received from Council's Community Recreation Planner for the Committee to discuss and provide advice in relation to parking and traffic management for proposed events at Clifford Park, Cassia Crescent, Goonellabah.

Clifford Park is located adjacent to a Council owned building which was upgraded in 2015 and is available for lease from the community.

Council's Community and Recreation Planner has been requested to investigate the possibility of holding senior Rugby League matches at the site and cater for an estimated 500 spectators.

Interest has been received from Northern United Rugby League Club in developing the ground and facilities as a home ground.

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Jarjum Pre School is located adjacent to Clifford Park but does not operate on weekends, refer *Development Approval 5.2018.27.2*.

Clifford Park is a sporting oval which provides facilities for Australian Football and Cricket matches. It is located in a residential precinct of Goonellabah of Cassia Crescent.

TAC59/22 **AGREED** that:

1. A trial match of a senior Rugby League match be held for a small meet (not a derby) onsite, with surveillance of spectators undertaken to count guest numbers and way of arrival.
2. The Organisers provide the Committee with a formal Traffic Guidance Scheme (TGS) for approval, prior to proposed trial match.
3. Outcome of spectator surveillance be referred back to the Traffic Advisory Committee for further discussion of the request.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

4.4 Traffic Guidance Scheme - Lismore Lantern Parade, 25 June 2022

Request for approval of Traffic Guidance Scheme for the annual Lismore Lantern Parade planned for 25 June 2022.

The Lismore Lantern Parade is returning to the Lismore CBD on Saturday, 25 June 2022.

The matter was raised at the 18 May 2022 Traffic Advisory Committee meeting with the following recommendation provided:

TAC 52/22 AGREED that:

1. *The Committee support in principle the Traffic Guidance Scheme for the Lismore Lantern Parade to be held in the Lismore CBD on 25 June 2022.*
2. *The final/ approved Traffic Guidance Scheme be referred to the Committee meeting of 15 June 2022 to discuss and approve.*
3. *The event organisers obtain approval from relevant authorities.*
4. *The organisers install relevant pedestrian safety barriers as determined by NSW Police and in consideration with Hostile Vehicle Guidelines for Crowded Places documentation.*
5. *The event organisers undertake a risk management review.*

A Traffic Guidance Scheme has been prepared by Lack Group to accompany the event.

The organiser of the event has been invited to attend the meeting to address the Committee.

NOTE

An updated TGS was presented to the Committee on 21/6/2022, which was endorsed for implementation.

The following notes and endorsed TGS were sent Councillors 22/6/2022.

The TGS (traffic management plan) provided by the event organisers raised some areas of concern and some locations were determined as not meeting relevant safety device/ treatments for the community during public events, and was inconsistent with pedestrian safety in other TGSs for major public events in the CBD.

The following minute has been included in the TAC minutes, to be submitted to Council's July meeting.

The TAC concerns and recommendations were passed on to the organiser to include in a modified TGS and return as a matter of urgency. However, as a modified TGS had not been received by staff by yesterday, and in the interest of progressing relevant paper work

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for approval from NSW Police, Council's staff with traffic control officer qualifications have prepared a traffic management TGS for the event (see attachment).

The current TGS has been forwarded to the organiser to allow sufficient time to coordinate signage and traffic management implementation, confirming that the TGS has been prepared consistent with other major public events in the Lismore CBD for the maximum protection of the public. Any deviation from the plan during implementation is at the risk of the organisers.

TAC60/22 **AGREED** that:

1. The Traffic Guidance Scheme (TGS) provided to the Committee was not supported.
2. Lismore City Council's Design Services Engineer and Lismore Police delegate provide feedback to LACK Group to update TGS.
3. Updated TGS be distributed to the Committee members for approval prior to the Lantern Parade.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

Items for Discussion

5.3 Carparking Issues – Lismore Memorial Gardens

A request was received from Council's Commercial Services Business Manager regarding issues with car parking in the Lismore Memorial Garden Carpark.

A request was received from Council's Commercial Services Business Manager regarding issues with a number of cars parking in the Lismore Memorial Gardens Carpark weekdays filling much needed parking spaces when funeral services are on.

The request was to investigate implementing time parking at the carpark to prevent day parking, with the need to keep two carpark un-timed for staff parking (one for Council office and one for the Funeral Director).

TAC61/22 **AGREED** that:

1. The Committee do not support the request for timed parking at Lismore Memorial Gardens.
2. The writer be advised of the outcome.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

5.4 Traffic Safety Issues – Clyde Campbell Carpark, Koori Mail Hub

A call has been received from NSW Police in regards to the Koori Mail Hub occupying space in the Clyde Campbell Carpark.

Lismore City Council received a call from NSW Police regarding the Koori Mail Hub occupying space within the Clyde Campbell Carpark and enquiring about their plan/strategy going forward, traffic safety issues on the site and need for adequate signage if it is a long term occupation.

The matter was raised at the Traffic Advisory Committee meeting of 18 May 2022, with the recommendation below:

"TAC47/22

RECOMMENDED that:

1. Council not support the implementation of a formal pedestrian crossing on

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Molesworth Street, opposite the Clyde Campbell Car Park.

2. *Investigations be undertaken to relocate the Koori Mail flood recovery facility due to traffic safety concerns."*

Traffic is being directed to no entry signage, with a blockage for the northern entrance. Council rangers have also raised concerns for traffic safety issues on site.

TAC53/22 **AGREED** that a formal letter be written to the Koori Mail to acknowledge the work they have done for the community and put forward concerns surrounding traffic safety issues at the sight and put forward alternative sites/options.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

Closure

This concluded the business and the meeting terminated at 11.55 am.

Committee Recommendation

Traffic Advisory Committee Minutes - Meeting of 20 July 2022

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Traffic Advisory Committee Minutes - Meeting of 20 July 2022

Traffic Advisory Committee Minutes 20 July 2022

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE HELD IN COUNCIL CHAMBERS ON WEDNESDAY, 20 JULY 2022 AT 11.20AM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Cr Jeri Hall (Chairperson), Caleisse Dunston (Transport for NSW), Sgt Clint Williams (Lismore Police) and Harry Gregg (on behalf of Janelle Saffin, MP).

In Attendance

Stephen Nelson (Item 4.3), Tina Irish (Manager Economic Development – Items 5.4 & 5.5), Wil Polson (Tourism Destination Officer, Nimbin – Items 5.4 & 5.5), Tracey Niddrie (Transport for NSW), Tania Brown (Transport for NSW), Barry Goodwin (Design Services Engineer) and Maddison Spencer (minutes).

Apologies

Apologies for non-attendance were received on behalf of Janelle Saffin, MP (Member for Lismore).

Confirmation of Minutes

TAC63/22 The Committee was advised that the Traffic Advisory Committee minutes of 18 May 2022 & 15 June 2022 were deferred at Council's ordinary meeting of 12 July 2022. The minutes are to be considered at Council's ordinary meeting of 9 August 2022.

Disclosure of Interest

TAC64/22 Cr Hall declared a pecuniary interest in Item 5.8, the Committee determined Cr Hall could still vote.

Part 'A' – Committee Recommendations

4.1 Traffic Safety & Sight Distance Issues - Intersection of Ballina Road and Nielson Street, East Lismore

Council has received reports of traffic safety issues at the intersection of Ballina Road (B60) and Nielson Street, East Lismore with vehicles parking too close to the intersection, reducing sight distance to the east.

Nielson Street is a Local Access under Council's road hierarchy and provides connectivity between East Lismore east and west on Ballina Road (B60).

It is used as a "rat run" to avoid the Ballina Road and Dibbs Street Intersection.

The intersection provides a dedicated left and right turn into Ballina Road, with sight

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distance to the east reduced when vehicles park too close to the intersection.

Sight distance along Ballina Road to the east is approximately 120 metres, when unrestricted which complies with Australian Standards for a 60km/hr road being entered.

- TAC65/22 **RECOMMENDED** that Council support the installation of No Stopping line marking on both sides of the intersection of Ballina Road and Nielson Street, to meet relevant sight distance requirements.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

4.4 Request for Accessible Parking Space - 29 Molesworth Street , Lismore CBD

A request has been received from Social Futures for the provision of an Accessible Parking Space in the vicinity of No. 29 Molesworth Street, Lismore CBD.

A request has been received from Social Futures for the provision of an Accessible Parking Space in the vicinity of No. 29 Molesworth Street, Lismore CBD.

The business is taking up occupancy in the Westlawn Building from early October and have identified a need for accessible parking in close proximity of the building and request a dedicated accessible car parking space and including kerb ramps.

Council has no immediate plans to review parking in the CBD.

The closest Accessible Park on the western side of Molesworth Street is approximately 90 meters to the south.

- TAC66/22 **RECOMMENDED** that Council support the request for the installation of one accessible car park in the vicinity of No. 29 Molesworth Street, Lismore CBD.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

Items for Discussion

5.8 Request for No Stopping zone and Timed Parking – Military Road, East Lismore

Request received from Transport for NSW (TfNSW) requesting the Committee consider the installation of a No Stopping zone and timed parking in the vicinity of Richmond River's temporary campus at 1B Military Road, East Lismore.

Transport for New South Wales Raised traffic and parking issues at Military Road being experienced as a result of the increase in traffic associated with additional temporary schools and provided as emergency flood activations.

- TAC67/22 **RECOMMENDED** that temporary parking restrictions in be implemented as suggested along Military Road.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

Part 'B' – Determined by Committee

4.2 Traffic Guidance Scheme - Darrell Chapman Fun Run 2022

Request received from Council's Events and Facilities Coordinator for approval of the Traffic Guidance Scheme (Traffic Management Plan) for the 2022 Darrell Chapman Fun Run event planned for 28 August 2022.

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The Darrell Chapman Fun Run is an event that has been established in Lismore for the past 24 years.

This year's event is planned for Sunday, 28 August 2022 and is raising funds for *Our Kids*, a local charity that raises money to purchase lifesaving equipment for our local hospitals to keep our kids local when needing medical care. This year the event will include a 4km walk/run, a 10km run and a 21km run.

Essentially the route will be managed by Lismore City Council staff who will provide adequate signage and traffic and pedestrian safety.

TAC68/22 **AGREED** that:

1. The Committee supports the proposal to hold the Darrell Chapman Fun Run planned for 28 August 2022.
2. Organisers gain relevant approvals and advise Emergency Services and NSW Police.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

4.3 Speeding Vehicles & Request for Speed Zone Review - Just Street, Goonellabah

A request has been received from residents from Just Street, Goonellabah in an online petition for Council to investigate options to assist with speed reduction, signage to alert motorists of wildlife in the vicinity and a request for speed zone review to 40kph.

An online petition has been created and signed by 144 people requesting the Committee look at several issues in Just Street to provide a safer driving conditions and pedestrian safety, including:

1. No Speed Signs advising of the 50kph speed zone.
2. Signage to alert motorists of fauna wildlife in the area.
3. Request for 40kph Speed Zone – CRM699/2022.

A request was raised in September 2021 for the installation of speed humps in the street which was not supported.

Note: Council's Design team has coordinated a speed data collection for the several locations on Just Street with data expected for review in August 2022.

Further consultation was received from the writer prior to the meeting with items outside the Committees role clarified including request for a concrete footpath (managed by Assets Team) and the potential for the street to accommodate a Bus Service (currently a requirement as part of Development Applications

A resident representing the Just Street Residents addressed the Committee echoing the communities concerns.

Discussion was around potential devices such as speed humps potentially creating noise issues and travel time delays for emergency vehicles.

Alternate devices were discussed (similar to calming devices in Dudley Drive) proving a cheaper yet affective treatment

It was noted that Traffic Counters were being installed in the ensuing week and that speed data would be available for a future meeting for review . Note there two other locations in Just Street being checked for speed, times and vehicle classification.

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TAC69/22 **AGREED** that:

1. Standard speed signage and line marking be installed at the existing speed hump (adjacent No. 33).
2. Results from traffic counters be tabled at future meeting.
3. The Committee supports the request for the installation of "Children Drive Slow" signage.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

Items for Discussion

5.1 Main Street, Clunes - Miscellaneous Items

Main Street, Clunes:

- Pedestrian and traffic safety concerns northern end of Clunes.
- Pedestrian refuge opposite Clunes Store.

Pedestrian and Traffic Safety Concerns - Northern end of Clunes, Main Street B62, Clunes – TAC40/22

This matter was raised in April 2022 following Transport for NSW receiving several reports of Traffic Safety Concerns in the area of the bus stop (informal) , pedestrian refuge and parking area being uses adjacent to the Coffee Shop (former Nursery).

An onsite meeting was undertaken prior to the formal Traffic Committee Meeting and attended with representatives from Byron Shire Council, Shop Owners , Greg Aldersons office and the TAC committee

As the Development Application relates to the property with Byron Shire LGA, they are managing the matter which will include a road safety audit of the site and share that information with the Committee to provide feedback to any design changes on Bangalow Road.

It was noted that the site is not a formal bus stop and that an alternate site such as the Bus Interchange on Walker Street be a more appropriate and safer site.

TAC70/22 **AGREED** that:

1. Byron Shire Council to review development application and potential traffic issues at 1391 Lismore Road, including a Road Safety Audit and those findings be discussed at a future meeting.
2. Cr Hall investigate which bus companies use the informal bus stop outside 1391 Lismore Road.
3. The Committee investigate alternate bus stop/s for relevant companies.
4. Transport for NSW review the justification for a formal bus stop at this site.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

5.2 Diadem Lane, Lismore - Request for Review of Parking Restrictions

A request has been received from a resident in Diadem Lane, Lismore requesting the Council review the existing parking restrictions within Diadem Lane

A request has been received from a resident in Diadem Lane, Lismore requesting the Council review the existing parking restrictions within Diadem Lane.

The current parking restrictions were implemented following a Traffic Committee Report from June 2009.

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"TAC 29/09

Recommended that a No Stopping Zone be introduced on the southern side of Diadem Lane from the Existing One Way Sign in front of No. 3 to the electricity Pole in front of No 1 (a distance of approximately 10m) providing agreement can be reached with adjoining property owners."

Note: The existing parking restrictions are in accordance with Councils relevant documentation Urban Residential Subdivision Chapter 5A (attached) references 6.0m laneways with no on street parking (two way) .

TAC71/22 **AGREED** that the Committee:

1. Undertook a site inspection and reviewed the existing parking restrictions.
2. Do not support the request for changes to parking restrictions within Diadem Lane.
3. The writer be advised of the outcome

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

5.3 Speed and Traffic Data Review - Miscellaneous Sites

18 Beaumont Drive, East Lismore

Traffic Safety Issues - 18 Beaumont Drive, East Lismore

Request received from a resident of Beaumont Drive in relation to several traffic safety issues, and requesting the Committee to consider the installation of signage and road humps.

Mackie Road, Rosebank

Request for Speed Zone Review - Mackie Road, Rosebank

Request received from a resident of Mackie Road for a formal speed zone review of the road.

Tregeagle Road (near Tregeagle School)

Speed Zone Reviews - Various Sites

Requests have been received for speed zone reviews (SZRs) at various sites within Lismore LGA.

Note: Speed data is being collected for Tregeagle Road and a site visit be planned for the August meeting

TAC 57/22

1. A site inspection be undertaken in the vicinity of the Tregeagle Public School for the Committee to consider speed calming devices.

TAC72/22 **AGREED** that:

1. The Committee reviewed and noted the traffic data reports for provided for Beaumont Drive and Mackie Road.
2. Writers be advised of the 85th percentile result of traffic data reports.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

5.4 Nimbin Wayfinding Project Schemata

Council's Nimbin Tourism Destination Officer and Manager Economic Development addressed the Committee to advise of the Streets as Shared Spaces grant provided by the NSW Government.

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As part of the NSW Government's Streets as Shared Spaces funding is being provided to Lismore City Council, the \$500,000 grant is set to enhance the area to residents, local businesses and tourists.

The Nimbin Village Wayfinder Project will deliver improved pedestrian mobility, safety and accessibility on Nimbin's main thoroughfare, Cullen Street.

Transport for NSW Executive Director Cities Revitalisation and Place, Dr Caroline Butler-Bowdon said *"These projects provide improvements to how we use our public spaces, support local economies and make our streets more attractive and welcoming. This project is one of the many that will activate and re-imagine an under-utilised space and provide social, health and economic benefits for the local community."*

"This project will not only ensure better footpaths and improve the experience of pedestrians, but also enhance public spaces with a number of elements, including new greenery, seating and artwork by local artists."

The trial project will start from December 2022 and be completed by March 2023.

The Streets as Shared Spaces program is part of the NSW Government's focused efforts to help communities and local economies following the COVID-19 pandemic. It provides funding for Councils to test and pilot new and innovative ideas that adapt streets as safe, shared public spaces to support healthier, safe and resilient communities.

Proposed plans to be provided to the Committee at a later date.

TAC73/22 **AGREED** that the Committee note the Nimbin Village Wayfinder project.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

5.5 Traffic Guidance Scheme – Woodlark Street, Night Markets

Request received from Council's Events & Facilities Coordinator to confirm if a Traffic Guidance Scheme is required for proposed weekly event at 126 Woodlark Street.

Council have been approached to support a weekly event on Saturday nights and is proposed to be held on Council owned land located at 126 Woodlark Street, Lismore. Advice was sought from Council's Events & Facilities Coordinator to confirm if a Traffic Guidance Scheme is required.

Woodlark Street Night Food Market

- Up to 10 local food vans (fully self-sufficient and LCC approved).
- One local talent acoustic performer (no stage required).
- Traffic Management Plan to establish bump in and bump out – food vendors would be at the back of the carpark and along the sides of the service station and building.
- Pedestrian entry via rear carpark.
- Adjoining owner approval to utilise undercover concrete area for seating and tables (with fairy lighting).
- Access to local nearby toilet facilities in Keen Street and at the Pop-up Precinct.
- No significant fencing needed – only to block off vehicle entry.
- Waste management by LCC.
- Time – 6pm to 9pm on a Saturday afternoon.
- No Alcohol.
- Police would be advised.
- A program of frequency would be developed working with Events to ensure it was complimentary to other activities in CBD – a trial for 6 months. Hoping to commence mid/late August.

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TAC74/22 **AGREED** that the Organisers provide the Committee with a formal Traffic Guidance Scheme (TGS) for approval.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

5.6 Traffic Safety Issues – Clyde Campbell Carpark, Koori Mail

Further update requested by the Committee regarding the Koori Mail Hub occupying the space in the Clyde Campbell Carpark.

Update was received by Council's Manager Assets:

- *Koori Mail will remain in their current location for some time to come yet. The reason for this is that repairs to their building are going to take quite some time to complete.*
- *Having said that we will be working with them and Resilience NSW to progressively scale back their operations as the need for their services reduces. As existing businesses in town re-open, there will be opportunities for them to scale back.*
- *We will also be looking to agree a sunset date with Koori Mail by which time we expect them to have finished their operations altogether and have packed up and moved out of the carpark. We would hope this will be prior to Christmas this year but it's not confirmed as yet.*
- *In regard to traffic movements, into, out of and through the carpark, some additional signage will need to be arranged. Koori Mail do not have the qualified staff or physical resources such as barricades or signs to do this. This will fall to Council to organise in consultation with the Koori Mail.*

TAC75/22 **AGREED** that Council staff prepare a formal Traffic Guidance Scheme (TGS) for approval.

Minute Addendum: Staff have prepared a formal TGS, which has been subsequently endorsed by the Traffic Advisory Committee and forwarded to Koori Mail representatives for implementation.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

5.7 Lismore Lantern Parade Debrief

A debrief of the annual Lismore Lantern Parade held on 25 June 2022 was undertaken and comments provided for distribution to the Committee.

TAC76/22 **AGREED** that the Lantern Parade debrief be provided to the Committee members for to review.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.
Voting against: Nil.

5.9 Riverbank Road – Speed Zone Review

Request received from Friends of the Koala representative for a formal speed zone review of Riverbank Road and Wyrallah Road.

Correspondence was received from Friends of the Koala and a resident from Riverbank Road requesting a speed zone review around the intersection of Riverbak Road and Wyrallah Road

A formal speed zone review was undertaken by Transport for New South Wales in 2020 for Riverbank Road.

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TAC77/22 **AGREED** that:

1. Transport for NSW undertake a formal speed zone review of Wyrallah Road.
2. Additional information to be sought from writer and referred to Committee at future meeting.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Harry Gregg.

Voting against: Nil.

Closure

This concluded the business and the meeting terminated at 12.58pm.

Confidential Business



Confidential Matters–Closed Council Meeting

A Council may close to the public only so much of its meeting as comprises the receipt or discussion of any of the following:

Section 10A(2) – Local Government Act 1993:

- a) personnel matters concerning particular individuals;
- b) the personal hardship of any resident or ratepayer;
- c) information that would, if disclosed, confer a commercial advantage of a person with whom the Council is conducting (or proposes to conduct) business;
- d) commercial information of a confidential nature that would, if disclosed:
 - i) prejudice the commercial position of the person who supplied it, or
 - ii) confer a commercial advantage on a competitor of the Council, or
 - iii) reveal a trade secret;
- e) information that would, if disclosed, prejudice the maintenance of law;
- f) matters affecting security of the Council, Councillors, Council staff or Council property;
- g) advice concerning litigation, or advice, that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege;
- h) information concerning the nature and location of a place or an item of Aboriginal significance on community land.

Clause 34 of Council Code of Meeting Practice

Representations from the public as to whether part of the meeting should be closed to the public can be made after the motion to close the meeting has been moved and seconded for a period of 10 minutes.

Recommendation

That the Council exclude members of the press and public from the meeting and move into Closed Council Meeting to consider the following matters:

Item	18.1 Write-off accrued interest on Rates & Charges.
Grounds for Closure	Section 10A(2) (b):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to:the personal hardship of any resident or ratepayer.
Item	18.2 Unsolicited Proposal for Affordable Housing on Council owned land at 44 Bristol Circuit
Grounds for Closure	Section 10A(2) (d i):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to:commercial information of a confidential nature that would, if disclosed prejudice the commercial position of the person who supplied it.

MINUTES OF THE ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY 12 JULY 2022 AT 6.00PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Krieg; Councillors Bing, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Rob, together with the General Manager, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Built Environment, Manager Technology and Innovation, Technology Support Officer, Governance & Customer Service Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

Councillor Bird was granted a leave of absence at the last meeting.

A leave of absence was sought from:

- Councillor Colby from 6 to 20 August 2022
- Councillor Jensen from 14 July to 6 August 2022
- Councillor Rob from 25 to 27 August and 15 to 18 September 2022 to attend the Executive Certificate for Elected Members course

Confirmation of Minutes of Previous Meeting

87/22

RESOLVED that the minutes of the following meetings be confirmed:

- Extra Ordinary Meeting held on 23 June 2022
- Confidential Meeting held on 23 June 2022
- Ordinary Meeting held on 14 June 2022
- Confidential Meeting held on 14 June 2022

A typographical error was corrected by staff to reflect the vote of the confidential matter when open session resumed.

(Councillors Gordon/Bing)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Disclosure of Interest

Clr Gordon declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 9.1 Notice of Rescission - Development Application 5.2021.262.1 - Proposed Subdivision at 226 Invercauld Road, Goonellabah (Eastwood Estate extension)
Nature: as a real estate agent and will not be party to any future sales in the estate.

Clr Gordon declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 14.6 DA2021/467 – Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah
Nature: as a real estate agent I have not been to the site and will not be party to any future sales in the estate.

Clr Gordon declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 14.8 Land reclassification and rezoning – various parcels at Lismore Heights and Goonellabah
Nature: as a real estate agent I will not be party to any future sales of these parcels of land if it is resolved.

Clr Gordon declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 18.1 Write-off accrued interest on Rates & Charges
Nature: in the past I had a pecuniary interest at this address as a real estate agent, but no longer.

Clr Cook declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 14.3 Unreasonable Conduct Advisory Group
Nature: I know, and used to work with, one of the applicants

Clr Rob declared a Non-Pecuniary, Significant Conflict of Interest for the following item: 18.1 Write-off accrued interest on Rates & Charges
I will leave the Chamber

Clr Guise declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 10.2 House Relocations, Land swaps and Buy backs Acknowledgement
Nature: I own flood affected property on the floodplain but I believe 4.6(b) applies as I am of a broad class of ratepayers also flood impacted

Clr Guise declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 14.4 Rates & Charges Hardship Policy
Nature: I own flood affected property on the floodplain but I believe 4.6(b) applies as I am of a broad class of ratepayers also flood impacted

Public Access Session on Agenda Items

Prior to dealing with the circulated reports and associated information, a Public Access Session was held at which Council was addressed by the following:

Notice of Rescission

9.1 Development Application 5.2021.262.1 - Proposed Subdivision at 226 Invercauld Road, Goonellabah (Eastwood Estate extension)

AGAINST	Lib Ruytenberg
	Aliison Kelly, Friends of the Koala
	Burribi, Friends of the Koala
	Wendy Bithell, Vision Walks – Eco Tours
	Ina Egermann
	Sean O'Shannessy, NEFA
	Al Oshlack, Indigenous Justice Advocacy Network
	Cindy Roberts, Widjabul Wiabul
FOR	Adrian Zakaras, Newton Denny Chapelle

Reports of the General Manager

14.6 Development Application 2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

AGAINST	Dennis Thomson
	John Orr
FOR	Graham Meineke

Matter of Urgency

88/22 MOTION moved that the following issue be considered as a matter of urgency:

That based on the Mayor's comments on Four Corners calling for an autocratic regime and that the democratically elected Council be sacked, that Council expresses no confidence in the Mayor and calls on the Mayor to resign.

(Councillor Guise)

At this time the Mayor ruled that this is a matter of urgency

- 89/22 **DEFEATED** that based on the Mayor's comments on Four Corners calling for an autocratic regime and that the democratically elected Council be sacked, that Council expresses no confidence in the Mayor and calls on the Mayor to resign.

(Councillor Guise)

Voting for: Councillors Cook, Ekins, Guise and Rob

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen and Krieg

Mayoral Minute(s) and Condolence Motions

Altering Order of Business

- 90/22 MOTION moved that the order of business be altered to debate the following matters:

- 14.4 Rates & Charges Hardship Policy
- 14.5 Investments - June 2022
- 16.1 Documents for Signing

(Councillors Krieg/Gordon)

AMENDMENT moved that the order of business be altered to debate the following matters:

- 9.1 Notice of Rescission - Development Application 5.2021.262.1 - Proposed Subdivision at 226 Invercauld Road, Goonellabah (Eastwood Estate extension)
- 14.6 DA2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

(Councillors Guise/Ekins)

FORESHADOWED AMENDMENT that the order of business be altered to debate the following matter:

- 14.6 DA2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

(Councillor Rob/Cook)

- 91/22 On submission to the meeting the amendment was **DEFEATED** that the order of business be altered to debate the following matters:

- 9.1 Notice of Rescission - Development Application 5.2021.262.1 - Proposed Subdivision at 226 Invercauld Road, Goonellabah (Eastwood Estate extension)

- 14.6 DA2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

(Councillors Guise/Ekins)

Voting for: Councillors Cook, Ekins, Guise and Rob

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen and Krieg

92/22

On submission to the meeting the foreshadowed amendment became the amendment and was **RESOLVED** that the order of business be altered to debate the following matter:

- 14.6 DA2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

(Councillors Rob/Cook)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Hall, Jensen and Rob

Voting against: Councillors Guise and Krieg

93/22

The amendment became the motion and was **RESOLVED** that the order of business be altered to debate the following matter:

- 14.6 DA2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

(Councillors Rob/Cook)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.6 DA2021/467 - Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah

MOTION moved that Council refuses DA 2021/467 Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah under s4.15 (1) a-e of the *Environmental Planning & Assessment Act 1979* on the following grounds:

- the likely impacts of that development, including environmental impacts on both the natural and built environments
- the suitability of the site for the development
- the public interest

(Councillors Guise/Ekins)

FORESHADOWED MOTION moved that Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1**.

(Councillor Cook/Hall)

94/22

DEFEATED that Council refuses DA 2021/467 Subdivision to create 19 residential lots and 1 residual lot at 1A & 1B Northcott Drive, Goonellabah under s4.15 (1) a-e of the *Environmental Planning & Assessment Act 1979* on the following grounds:

- the likely impacts of that development, including environmental impacts on both the natural and built environments
- the suitability of the site for the development
- the public interest

(Councillors Guise/Ekins) (BP22/383)

Voting for: Councillors Ekins and Guise

Voting against: Councillors Bing, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

FORESHADOWED AMENDMENT that Council:

1. grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in Attachment 1
2. remove the condition requiring \$18,620.57 for cycleways

(Councillor Rob/Gordon)

95/2296/22

On submission to the meeting the foreshadowed amendment was that Council:

1. grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in Attachment 1
2. remove the condition requiring \$18,620.57 for cycleways

(Councillors Rob/Gordon) (BP22/383)

Voting for: Councillors Bing, Gordon, Hall, Jensen and Rob

Voting against: Councillors Colby, Cook, Ekins, Guise and Krieg

The vote being tied the Mayor declared the motion **DEFEATED** with his casting vote.

On submission to the meeting the foreshadowed motion became the motion that Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1**.

(Councillor Cook/Hall)

AMENDMENT moved that Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1** with the removal of lot 16.

(Councillor Ekins/Guise)

FORESHADOWED MOTION moved that:

1. Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1**.
2. the developer remediate any landslip issues on lot 16

(Councillor Rob)

Councillor Electra Jensen left the meeting, the time being 8:30PM

Councillor Electra Jensen returned to the meeting, the time being 8:31PM

97/22 On submission to the meeting the amendment was **RESOLVED** Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1** with the removal of lot 16.

(Councillors Ekins/Guise) (BP22/383)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Guise and Jensen

Voting against: Councillors Hall, Krieg and Rob

On submission to the meeting the amendment became motion that Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and

revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1** with the removal of lot 16.

(Councillors Ekins/Guise)

FORESHADOWED MOTION moved that:

1. Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1**.
2. the developer remediate any landslip issues on lot 16

(Councillor Rob)

98/22

On submission to the meeting the motion was **DEFEATED** that Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1** with the removal of lot 16.

(Councillors Ekins/Guise) (BP22/383)

Voting for: Councillors Cook, Ekins, Gordon and Jensen

Voting against: Councillors Bing, Colby, Guise, Hall, Krieg and Rob

99/22

On submission to the meeting the foreshadowed motion became the motion and was **RESOLVED** that:

1. Council grant consent to Development Application No. 5.2021.467.1 for a subdivision to create 19 residential lots and 1 residual lot and associated public road (cul-de-sac), bulk earthworks / retaining walls, infrastructure services, civil works, vegetation removal and revegetation works at 1A and 1B Northcott Drive, Goonellabah subject to the Conditions set out in **Attachment 1**.
2. the developer remediate any landslip issues on lot 16

(Councillors Rob/Hall) (BP22/383)

Voting for: Councillors Bing, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Ekins and Guise

9.1 Notice of Rescission - Development Application 5.2021.262.1 - Proposed Subdivision at 226 Invercauld Road, Goonellabah (Eastwood Estate extension)

100/22 **DEFEATED** that Council rescind its decision on Item 14.6 from 14 June 2022 meeting.
(Councillors Gordon/Bing) (BP22/474)

Voting for: Councillors Bing, Gordon and Krieg

Voting against: Councillors Colby, Cook, Ekins, Guise, Hall, Jensen and Rob

Councillor Electra Jensen left the meeting, the time being 9:09PM

Councillor Jeri Hall left the meeting, the time being 9:09PM

Councillor Jeri Hall returned to the meeting, the time being 9:10PM

Councillor Electra Jensen returned to the meeting, the time being 9:10PM

Notice of Motions

10.1 Planning Committee

MOTION moved that Council establish a Planning Committee and a workshop be held to draft Terms of Reference and other relevant matters.

(Councillors Ekins/Cook)

MOVED that the motion be put.

(Councillors Gordon/Hall) (BP22/453)

101/22 **DEFEATED** that Council establish a Planning Committee and a workshop be held to draft Terms of Reference and other relevant matters.

(Councillors Ekins/Cook) (BP22/453)

Voting for: Councillors Cook, Ekins and Guise

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen, Krieg and Rob

Altering Order of Business

102/22 **RESOLVED** that That the order of business be altered to debate the following matters:

- 14.4 Rates & Charges Hardship Policy
- 14.5 Investments - June 2022
- 16.1 Documents for Signing

(Councillors Krieg/Gordon)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen and Krieg

Voting against: Councillors Cook, Ekins, Guise and Rob

14.4 Rates & Charges Hardship Policy

MOTION moved that Council adopts the amended Rates & Charges Hardship Policy.

(Councillors Gordon/Colby)

103/22 AMENDMENT moved and **RESOLVED** that Council defer this matter to the August Council meeting and the Policy be put on public exhibition.

(Councillors Rob/Bing) (BP22/452)

Voting for: Councillors Bing, Colby, Cook, Ekins, Guise, Hall, Jensen, Krieg and Rob

Voting against: Councillor Gordon

104/22 On submission to the meeting the amendment became the motion and was **RESOLVED** that that Council defer this matter to the August Council meeting and the Policy be put on public exhibition.

(Councillors Rob/Bing) (BP22/452)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

14.5 Investments - June 2022

105/22 **RESOLVED** that the report be received and noted.

(Councillors Gordon/Bing) (BP22/448)

Voting for: Councillors Bing, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Ekins and Guise

Documents for Signing

16.1 Documents for Signing

MOTION moved that Council note the following documents be executed as negotiated under delegated authority by the General Manager:

Item A **Lease with Resilience NSW** over part Council land (Hepburn Park) located at 30 Holland Street, Goonellabah (part Lot 2 DP 1277273) for temporary emergency accommodation.
(Ref: P33248)

Item B **Funding agreement** with Department of Planning, Industry and Environment (Office of Local Government division) for Capacity and Capability Grant

(Councillors Colby/Krieg)

106/22 AMENDMENT moved that Items A & B be separate motions.

(Councillors Gordon/Hall) (BP22/464)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen and Rob

Voting against: Councillor Krieg

MOTION moved that Council note the following documents be executed as negotiated under delegated authority by the General Manager:

Item A **Lease with Resilience NSW** over part Council land (Hepburn Park) located at 30 Holland Street, Goonellabah (part Lot 2 DP 1277273) for temporary emergency accommodation.
(Ref: P33248)

(Councillor Krieg) (BP22/464)

The MOTION lapsed due to want of a seconder.

MOTION moved that Council note the following documents be executed as negotiated under delegated authority by the General Manager:

Item B **Funding agreement** with Department of Planning, Industry and Environment (Office of Local Government division) for Capacity and Capability Grant

(Councillors Gordon/Bing)

AMENDMENT moved that the matter be deferred to a later Council meeting to enable a briefing to be held.

(Councillors Ekins/Guise)

Councillor Andrew Bing left the meeting, the time being 10:27PM

Councillor Andrew Bing returned to the meeting, the time being 10:29PM

107/22 AMENDMENT moved and **DEFEATED** that the matter be deferred to a later Council meeting to enable a briefing to be held.

(Councillors Ekins/Guise) (BP22/464)

Voting for: Councillors Cook, Ekins, Guise and Rob

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen and Krieg

MOVED that the motion be put.

(Councillors Krieg/Gordon)

108/22 On submission to the meeting the motion was **RESOLVED** that Council note the following documents be executed as negotiated under delegated authority by the General Manager:

Item B **Funding agreement** with Department of Planning, Industry and Environment (Office of Local Government division) for Capacity and Capability Grant

(Councillors Gordon/Bing) (BP22/464)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen and Krieg

Voting against: Councillors Cook, Ekins, Guise and Rob

Closure

The time being 10.50pm the Mayor closed the meeting and deferred the following items to the August Council meeting, as per Section 18.3 (a) of the Code of Meeting Practice:

- 10.2 House Relocations, Land swaps and Buy backs Acknowledgement
- 10.3 Northern Rivers Reconstruction Corporation meeting
- 10.4 Free Julian Assange
- 13.1 Classification as Operational Land - 15 Industry Drive, East Lismore
- 13.2 Adoption of Local Street Guide Outdoor Dining Policy
- 13.3 Councillors Expenses & Facilities Policy
- 14.1 Competitive Neutrality Complaints Policy
- 14.2 Infrastructure Contributions Discount Policy
- 14.3 Unreasonable Conduct Advisory Group
- 14.7 Planning Proposal - 1443 Bangalow Road, Clunes
- 14.8 Land reclassification and rezoning - various parcels at Lismore Heights and Goonellabah
- 14.9 Councillors Expenses and Facilities Policy - January 2022 to June 2022 Reporting
- 14.10 Recruitment Process and Selection Panel
- 14.11 Annual Mayor and Councillor Fees
- 15.1 Traffic Advisory Committee Minutes - Meeting 18 May 2022
- 15.2 Traffic Advisory Committee Minutes - Meeting 15 June 2022
- 15.3 Floodplain Management Committee Minutes - Meeting 12 May 2022

CONFIRMED this > > 2022 at which meeting the signature herein was subscribed.

MAYOR